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Loudoun County Board of Supervisors, Business Meeting, Tuesday, April 21, 2026

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Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
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- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8161>
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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-10. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:08:06] Turn me on please. Thank you. Well good evening supervisors, good evening staff, and good evening Loudon. I'd like to call to order the April 21st, 2026 Loudon County Board of Supervisors Business Meeting. This room has a hearing loop. If you need hearing aid, if you need hearing assistance, please switch your hearing aid to the telecom mode. If you need a headset, we have those available as well. Please see the clerk to request one. Supervisors, before I go to Mr. Crony for a moment of um for pledge allegiance and words of wisdom i'm going to ask for a moment of personal

[00:08:42] privilege if you don't mind um i i once went went to arlington national cemetery with a friend and it was interesting because especially for older headstones on the front of every headstone and usually in a in a grave a husband and a wife are buried in the same in the same tomb. On the front of the headstone, it would say, here lies private so-and-so, and it would tell all of his information, what he did, if he earned any medals, where he fought, all of his information. On the backside of that same headstone, it would say, and his lovely wife, and that's all

[00:09:21] it would say. Some of the headstones would say, here lies lieutenant so-and-so, and again, all of their information. On the back of the headstone would say, and his lovely wife, Doris, but it wouldn't say Doris Smith, who was a good mother, who was a championship swimmer, who was involved in needlework. His lovely wife is all it said. This past week, we had a horrible tragedy in

[00:09:51] that the former lieutenant governor killed Dr. Serena W. Fairfax. And within 15 minutes, the report said, former Lieutenant Governor Justin Fairfax kills himself and his wife.

[00:10:12] No name, just his wife. She, within seconds, within an hour, became just his wife. So I want to take a second and read who Serena W. Fairfax was, because I believe she deserved more than just his wife. Dr. Serena W. Fairfax earned her Bachelor's of Science degree from Duke University in 1999. She then went on to obtain her doctor of dental surgery degree, graduating magna cum laude from VCU's Medical College of Virginia School of Dentistry in 2005

[00:10:51] and was inducted as a member of Omicron Kappa Upsilon, a dental honor society. She went on to complete a one-year residency in advanced education and dental surgery, also at MCV. Dr. Fairfax enjoyed all fields of dentistry.

[00:11:08] She completed hundreds of hours of continuing education focusing on conservative, comprehensive dentistry. Dr. Fairfax considered it an honor and a privilege to serve the community of Fairfax, Virginia. She was committed to serving not only her patients but others as well, to participation in community outreach programs, volunteering, sponsorship opportunities, vocational training programs, and contributions to local charities and nonprofits intended to aid individuals and/or organizations for people who needed help. Dr. Fairfax was a member of the American Dental Association, the Virginia Dental Association, the Northern Virginia

[00:11:47] Dental School, and the Omicron Kappa Upsilon Dental Society. She recently She received an Alumni Association award from VCU as an outstanding graduate of the last decade. In her spare time, Dr. Fairfax loved to read, run trails, and run trails with her dogs.

[00:12:06] She practiced Bikram yoga, she traveled, and she loved to spend time with her children. Dr. Serena W. Fairfax. This week we also lost Madison Warner. was the daughter of our United States Senator Mark Warner. She was 36 years old. She died of complications of juvenile diabetes. Senator Warner said of his daughter that she filled our lives with love and laughter. We're going to have a moment of silence for Dr. Serena

[00:12:39] Fairfax and Madison Warner. Thank you. Mr. Crony, do you have words of wisdom and pledge of allegiance for us. Yeah. Thank you, Chair Randall. Tomorrow is Earth Day. John Audubon once said, a true conservationist is a man who knows that the world is not given by his fathers, but borrowed from his children. It's a clear reminder of a simple but powerful truth. We are not owners

[00:13:14] of this world. We are its caretakers. The choices we make today, how we use our land, protect our water, and plan for growth are not just about the present, but about what we leave behind. Stewardship isn't about grand gestures, it's about consistent, responsible decisions and the discipline to think long-term.

[00:13:33] If we approach each decision with that mindset, we can ensure that what we pass on is not diminished, but strengthened, worthy of the generations who will inherit it. Would you please transfer the Pledge of Allegiance?

[00:13:51] I pledge allegiance to the flag of the United States of America and to the republic which it stands.

[00:14:07] Okay. For additions and deletions, the applicant has officially withdrawn LEGIE 2024-0002, the Concord Industrial Park ZMAP 2024-0001, and Special Exception 2024-0040, Special Exception 2025-0153, and Special Exception 2025-0161.

[00:14:36] Due to the withdrawal, Item 11 is removed from tonight's agenda. Are there any other additions or deletions to the agenda tonight? Seeing none, let me rethink the same agenda. It's a little bit long, so everyone just hold on with me if you don't mind. Item R1, the proclamation to recognize April 2026 as Arab American Heritage Month.

[00:14:58] It's for approval and presentation. The vice chair will join me down front for that. Item R2, the proclamation to recognize April 7th, 2026 as in Alexander Disease Day. We'll talk a little bit more of what that is when we get there.

[00:15:15] That will also be for approval and presentation. Item R3, proclamation to recognize April 19th through 2025, 2026 as Earth Day. That's for approval only. Item R4, resolution to recognize the 30th anniversary of the Falcons Landing Retirement Community That is for approval only. Ms. Bricksman, when you do go to Falcons Landing, can you let a couple of us know so we can join you, if you don't mind?

[00:15:39] Item R6, proclamation to recognize April 24th, 2026 is Arbor Day. That's for approval only. Item 1B, contract renewal road construction support services. Item 1C, contract renewal playground systems installation service and related items.

[00:15:58] Item 1D, Contract Award Adult Crisis Receiving and Stabilization Center Provider. Item 1E, Contract Award Engineering Services for the Stormwater Management Program. Item 1F, Contract Award for Evergreen Mills Realignment, Reservoir Road and Watson Road Utility Relocation.

[00:16:22] Item 1G, Contract Award Task Order Contracts for Traffic Calming Improvements and other safety-related enhancements to include related road maintenance and cleanup, item 1H, award authority increase natural gas supply, item 1I, Goose Creek Trailhead Park design endorsement, item 1J, conceptual interchange design endorsement at U.S. 50 Loudoun County Parkway, item 1K, Board of

[00:16:55] Equalization 2026 bylaws amendments, item 11, 2025 Loudoun County Animal Advisory Committee annual report. Item 1, I'm sorry, that was item 1L, that wasn't an 11, that was an L.

[00:17:10] Item 1M, 2025, disability services, annual report. Item 1N, Loudoun County Community Policy and Management Team 2025, annual report. Item 1O, Community Services Board, annual report.

[00:17:26] Item 1P, Water First Stabilization Project, Water Wheel Addition. Item 1Q, Resolution Authorizing the Issuance and Sale of General Obligation, Public Improvement and Refunding Bonds.

[00:17:42] Item 1R, Resolution Authorizing the Issues of Appropriations Backed Bonds through the Economic Development Authority of Loudoun County, Virginia. Item 3A, the 2026 Schedule of Meetings. Item 3B, additions and deletions to the joint committee work plan.

[00:18:00] Item 4A, appointments and confirmations. Item 5, administrative items report of April 21st, 2026. And item number 6, response to -- got all the way through before I messed that up.

[00:18:15] Response to board member initiative, demolition, dust, mitigation efforts. That is to consent agenda. I make a motion to approve. Is there a second? Seconded by the Vice Chair. Discussion on the consent agenda. I have a couple of things. One, on item 1D, today we attended the Valor Awards, and what

struck me and what often strikes me is over half of the emergency 911 calls that the Sheriff's Office and the Fire Department have received are calls of people who are having a mental health or behavioral crisis.

[00:18:51] The fact that we are doing the adult crisis receiving and stabilization center is so important. The fact that we have recognized that mental health is health and we have to take care of people with issues of mental health and to do it in the most concise, compassionate way as possible right here in Loudoun County is very important.

[00:19:16] I also want to say that the contract award for Evergreen Mills Road realignment is important. We have had some pretty bad accidents on that road. It's been a pretty dangerous road for a long time. I'm very, very, very concerned that with the General Assembly's passing of the Faith and Housing Bill, we could get thousands of homes, literally thousands of homes, along Evergreen Mill Road and we do not have a road system that will accept that many homes and I'm very concerned about that road.

[00:19:50] So really glad for the design endorsement and I want to say as I always say that our committee annual reports and this time it's the Animal Advisory Committee, the Disability Services Committee, the Policy Management Team and the Community Services Board annual report.

[00:20:06] Please go read them. They're packed full of helpful information. I'm also having a discussion with the CSB board about some things that we might want to see them do and information we may want to have them go out and get for us over the next couple of months.

[00:20:23] So that's all I have for that one. A discussion on the consent agenda. Ms. Bricksman. Thank you, Madam Chair. Just a couple items I wanted to highlight. The water wheel replacement at Waterford is going to be really cool.

[00:20:39] If anyone wants to kind of dig into that, I was out there last year for a hike and got to go into the building, and it's a really neat project. I also wanted to highlight the bonds. Go Bonds are bonds that our residents and voters approved, and in that list we have the Philomont Fire Station Replacement, the Leesburg South Station Fire Station, capital renewal and alteration a high school in Dulles North Parkview high school replacement and the Waterford elementary school renovation and addition on the appropriation backed bonds

[00:21:13] they don't require a vote but again we are responsibly using our debt capacity to make sure that we are financially healthy when we try to build these big projects that includes the route Route 7 Route 690 Interchange, Route 9 287 Roundabout, Shellhorn Road with MOA Property Boundary, Sterling Boulevard and W&OD Overpass, where we just had a groundbreaking yesterday to take the W&OD over Sterling Boulevard, Crosstrail Boulevard, Section C, Braddock Road, Widening, Route 15, Spinks Ferry, Westwind Drive and Waxpool Road,

[00:21:50] Loudoun County Parkway intersection improvements. Oh, I'm sorry, those are go bonds. The appropriation back bonds, I'll just talk about a couple of them. Eastern Services Center, Adult Detention Expansion, General Government Office Building coming up, LCPS School Bus Replacement and Acquisition, Oak Hill Property Acquisition, Union Street School Renovations, and Public Safety Core Radio System Upgrade.

[00:22:17] So sometimes we let these things fly by, but I think it's really important for the community to understand how fiscally responsible county is and trying to get these projects completed. Some are for health and safety and some are for services and some are for our schools and that is it. Thank you Madam

Chair. Thank you ma'am. Mr. Eternel. Yeah and in that vein I just wanted to take a second and acknowledge the Route 50 Loudoun County Parkway endorsement. You heard me talk about this at the Finance Committee meeting where we approve this but for the benefit of the whole board this locks in a conceptual interchange

[00:22:56] it's a change from what the previous design was which was a full cloverleaf and it will allow the project to really move forward in a way that will actually get built i know we're still waiting from uh to hear from vdot on the interchange access design process there hopefully that will be very soon we expect it will be very soon this is a 299 million dollar projects. For the first time, we have the majority of that funding in our six-year CIP, so we're starting to make progress. I want to particularly thank the Airports Authority for working with us on temporary right-of-way that's needed. The complicated thing with these projects is that

[00:23:32] you can't shut the intersection down when you build an interchange. You have to keep traffic going, which means you have to essentially relocate the intersection and then build the interchange. so that makes it expensive and complicated and uh involving more space than will ultimately be needed so we need to be on other people's property in order to do this and our staff has been working very diligently to make that happen so i just wanted to acknowledge everybody that's worked on it to this point um we added this as i said over 10 years ago is when we voted on the first design so it's been a long time coming but i'm excited for this milestone and hopefully more milestones to come. Thank you. Thank you very much. Mr. Hempstead, did you have something? Yes, ma'am,

[00:24:11] Chair. Just staff, I'd like to confirm that item R5, the sequinsensual celebration of the church, is on the consent agenda. The anniversary of the Ashburn Presbyterian Church? Yes. Yes.

[00:24:28] Yes, it is on the consent agenda. If I did not read that, I apologize. Yes, it is. All right, Mr. Turner. Thank you, ma'am, Chair. I just want to point out the design for the Goose Creek Park Trailhead Park I made the motion to purchase this property years ago and it's it's a great design it's going to be a terrific park it's right where Sickland Road crosses Goose Creek just before that the Hennessey property is a property it's down on the right the White House down there the park will basically surround the Hennessey property lots of trails boat ramp it's going to be a really nice park so I'm very pleased to see this thank you thank you I made the motion the motion seconded by Vice Chair Turner I'm Are those in favor to say aye?

[00:25:08] Aye. Any opposed? That motion will pass 6:03. I should say that Mr. Sainz is on his way. He will be here this evening. He's coming from D.C. He usually gets here probably about 5:30 or so. Mr. Kirshner sent me a text. His plane is delayed.

[00:25:24] His plane will not land until 6:30, so he probably won't get here until about 7:30. And Ms. Glass continues to be on family medical leave. So thank you. And I do think, Mr. Letourneau, I think you have some special guests in the room we want to acknowledge tonight.

[00:25:43] We do, Madam Chair. I'd like to congratulate and thank two members of Troop 2012 in ALDI, James Moy and Logan Kinkwa, who are here to receive their citizenship in the community merit badge, so they get to spend uh the evening with us and listening to all the exciting things that we do here in county government but i always say this is the best and the most effective form of government and it's also the one closest to all the citizens so uh always delighted to have scouts with us and uh congratulations and we wish you uh best of luck with your scouting journey would you like to stand

[00:26:19] up thank you for being here thank you for being here okay yeah i know they love they love that My report tonight is very short.

[00:26:37] All I will report is that on Thursday the 16th, I did have a meeting on the Commission on Local Public Health. Of course, I've said before, this is a national commission that I am sitting on. It was put together by former Governor of Ohio, John Kasich, and it is to try to have a discussion about how to discuss what should be public offerings of public health departments and how to, to be honest, get more trust back in public health because some was eroded and lost.

[00:27:14] And one of the things they did want us to share is some of the things the public health departments and public health has done before, vaccinations, water and environmental issues. Public health was the department that took the lead on nicotine and helping everyone know the issues with nicotine and the dangers.

[00:27:37] And I didn't know this until I came here, that public health took the lead on making sure that seatbelt laws were enacted all over the country. And so the discussion this time, as well as in addition to talking about what we've already done in public health in the future and what we look to do in public health in the -- what we've done in the past, what we look to do in the future, the discussion was how to roll this out and so it was decided that two of the places we would roll out the new agenda for public health and what that looks like going forward and of course I

[00:28:12] am I am on there because I am I was asked to be on this national body by the National Association of Counties my offering is if any public health offerings of mental health should be there which should they look like and and why and how we do that and so that's a discussion I'm having and I'm the one talking mostly about offering public health services for substance dependence and how that looks like from a public health point of view, a public health agency.

[00:28:48] The two places we decided to roll this out were the national, and Mr. Hempsey, you might want to help me with this, the National Association of County and City Health Officials. I think I got that right. Their conference is in early July, and it is in Kentucky. And so, half the people, like the former head of the American Association of Physicians is on the board.

[00:29:19] The person who was the Surgeon General under Barack Obama, she's on this board. So all the people, all the doctors, the doctor who was the head of all of Disney, all of Disney Parks, all of Disney services, Disney Cruises, she's on the board.

[00:29:37] So they're going to go to that committee and roll it out. And then the rest of us who are not nearly as learned and impressive, we will do our rollout at the National Association of Counties in July. I will have a big press conference present there and have a big rollout at the National Association of Counties in July, which some of you who are on the dais with me will be there for that, and so we're really excited about that, and I will keep you advised and abreast of how that is going.

[00:30:06] I do not have a voice for cause this evening, only because the evening is such a long evening and I move them the next time, but I will ask Mr. Hemstreet if you have any comments to make this evening. Thank you, Madam Chair. I have three. The first is that Loudoun County residents can discard potentially dangerous, expired, unused, and unneeded medications anonymously at several locations in the county this Saturday, April 25th.

[00:30:33] The Sheriff's Office is partnering with the U.S. Drug Enforcement Administration for the National Take Back Day event. Tablets, capsules, patches, and other solid forms of prescription drugs will be accepted. Details, including the location of the drop-off sites, are online at [loudon.gov slash take back](https://loudon.gov/take-back).

[00:30:51] Second, registration is open for Bike to Work Day 2026. Loudon County, once again, will host two morning pit stops along the Washington and Old Dominion Trail in Leesburg and Sterling on Friday, May 15th. New and experienced cyclists are welcome to take part in the free event.

[00:31:10] Pre-registered participants will be able to pick up a free t-shirt and other giveaways at the pit stops. Details include a link to register are available at [loudon.gov slash bike to work](https://loudon.gov/bike-to-work). And third, I am not creative enough to have drafted this, so this was not necessarily me that did this, but it is time to rhyme and shine.

[00:31:30] Some cash is on the line if your submission is among the best in the library's 2026 poetry contest. The Loudon County Public Library's poetry contest is underway. It's open to teens and adults in Loudon in the region. accepted forms include spoken word rhymes and free verse the deadline to enter is may 17th there are cash prizes details are online at [library.loudon.gov poetry contest](https://library.loudon.gov/poetry-contest) those are my comments this uh thank you and i join you in not being able to put a poem at all let alone write a haiku forget that um but i'm still working on it um uh supervisors and staff if you don't mind

[00:32:10] I'm going to actually switch I-2 and 3 today because I actually want the Boy Scouts to be here as long as possible. But I want them to see I-3 even more than I want them to see I-2. So if they can be here longer, that's great. But just for you two, I'm actually moving our agenda around today for you two just a little bit.

[00:32:27] So if the staff for I-3, the study of operations for segregated schools in Loudoun County, if you are here and you are ready, could you come down? We're going to do I-3. We're going to do I-1, I'm sorry, we're going to do I-3, we're going to do I-2, and then we're going to do the Environmental Excellence Awards, which could take a little bit more time.

[00:32:48] Mr. Turner, the Vice Chair Turner, will be joining me down for that, but we're going and do I-3 first. Good evening, gentlemen. Good evening. Good evening. Ready when you are.

[00:33:18] Good evening, Chair Randall, members of the board. I thank you for the opportunity to present to you today. The purpose of this presentation is to share the key findings from the study of the operation of segregated schools in Loudoun County.

[00:33:41] This overview is intended to present the findings clearly and factually that's documented in the study. At the outset, I wanted to emphasize that this presentation will be delivered in a very neutral and objective manner in order to preserve the fidelity of phase two of this work where a task force will review these findings and develop recommendations for your future consideration.

[00:34:06] Importantly, this study does not offer any recommendations, nor is it intended to assign blame or fault of any board or school board in the past. Rather, it provides a historical account to support understanding and to inform future discussions. It is also important to acknowledge that segregation as they existed during that period of time was a system established through law and public policy that affected all who lived under it, though not equally.

[00:34:30] While the study documents clear and significant disparities experienced by black community members and students, the effect of segregation extends across the broader community, including individuals of other racial and ethnic backgrounds by shaping institutions, governance, access to resources and patterns of daily life.

[00:34:49] And this way segregation influenced how communities were organized and how people experienced education and civic life across Loudoun County. This perspective is offered to support a fuller and more complete understanding of the historical context presented in this study. So by way of a background, in December 2022, the board approved a two-phase study examining the historical, educational, and economic, and social impacts of segregated schooling in Loudoun County.

[00:35:15] The study was conducted over a two-year period by the University of Virginia's Teacher and the Movement Oral History Project in collaboration with community members and historians and scholars. The final report was delivered in January 2025 and released in April 2025.

[00:35:31] and it examines a period from the 1880s to the early 1970s. So the key findings, the study documents that segregated schools in Loudoun County receive fewer resources than traditional white schools, and that the process of desegregation extended more than beyond a decade after Brown v. Board of Education in 1954.

[00:35:52] It also notes that the role of the governing bodies, including the school board and the board of supervisors, in the operation of schools during that time. At the same time, the study highlights the resilience and the strength of the black community. Oral histories reflect strong academic environments, deep ties to the community and a culture of care within those schools.

[00:36:13] Participants also expressed recognition of progress alongside their desire to increase representation with an overall sense of cautious optimism about the future. So I'd like to highlight briefly a few key sections from the report that provided important historical context.

[00:36:32] These were presented as part of the documented record without interpretation. First, in January 1956, the study describes discussions regarding a proposed bond expanded to expand facilities at historically black schools, including Banneker and Douglas.

[00:36:48] The report notes that the action of the bond was delayed pending assurance that black families would continue to accept segregated schooling. Ultimately, the bond was not approved with the considerations, including funding constraints and considered related to integration.

[00:37:04] Second, in August 1956, the study documents that a resolution opposing school integration was presented and adopted by the Board of Supervisors. The resolution characterized integration as harmful to public schools, cited constitutional provisions and in place at that time.

[00:37:21] It also stated that public funding was not to support schools undergoing integration. Third, in 1957, the study highlights discussions related to desegregation of the Perseville Library. Legal guidance indicated that public funding required integrated access.

[00:37:38] The board ultimately approved that budget that enabled desegregation of the library, while the school board implemented what was described as a limited or token desegregation within schools. These sections are included to provide specific examples of the broader historical context reflected in this study.

[00:37:59] I would also like to highlight that part of, in 1956, the person that led that resolution was then the Commonwealth's attorney for Loudoun County at that time as well.

[00:38:14] So moving forward, as we move forward, the phase of this work will focus on establishing a study task force or work group. This task force will conduct a comprehensive review of the findings of the work.

[00:38:32] It will work collaboratively with Loudoun County Public Schools and other stakeholders to develop evidence-based recommendations for the board's consideration. This step will ensure that any recommendations developed are through a thoughtful and inclusive and structured process.

[00:38:48] and a final report will be presented to the board. So by way of next steps, we are initiating a procurement process with the Department of Finance and Procurement to initiate finding a qualified vendor to facilitate phase two.

[00:39:07] And one of the reasons why we wanted to do that is to preserve that fidelity, but also have transparency in phase two. And that facilitator will help us to use best practices in selecting members of that work group or a task force to review and analyze the study.

[00:39:24] And as we mentioned before, the task force will develop those recommendations and present it to the board. And my closing remarks, this study reflects an effort to document an important part of Loudoun County's history, Virginia history, and United States and American history.

[00:39:40] It is presented with the respect of for those whose experiences are reflected and it highlights the enduring resilience and contributions of a community members who lived through it and still carry those memories. With that, I thank you for allowing me to present. I'm happy to answer any questions.

[00:39:56] - Mr. Rush, this is such a good report and I thank you for working on this and everyone in your office for helping with this as well. And I certainly appreciate your first comments. Questions for Mr. Rush, Ms. Umstead.

[00:40:11] - Thank you, Madam Chair. Mr. Rush, this is really good work and I really appreciate it. In the research that's been done so far, has there been any mention of the mutual assistance societies that existed in Leesburg and Loudoun County at the time, as well as the African-American churches and their support for any of these efforts?

[00:40:40] So in the report, it doesn't specifically call that out, but it's probably within the interviews, which we will have access to that, and there's many hours of those interviews as well. Very good. Thank you.

[00:40:56] Ms. Brixman. Thank you, Madam Chair. I don't know if I can do all my questions in three minutes, but I'll try. I thank you again, Mr. Rush, for this report. It's been a long time coming since we co-signed the letter with LCPS, the letter of apology that kind of started all this when I said words are words.

[00:41:21] We need to take some action to heal our community, and we're about to do that. So I really appreciate the report and all the work that went into it, And I appreciate that we went through a university to keep it non-partisan, for lack of a better word.

[00:41:37] You mentioned the bond. Was the bond that wasn't passed, was the question whether a bond would be put to the voters, that the board declined to put the bond on a ballot, or did the ballot fail?

[00:41:54] So that specific bond, it was a letter that came from the county wide league at that time, and they were requesting that bond, and it came before the board, and it was not. Okay, so it never went to the voters, it was the board of supervisors that declined to do that.

[00:42:13] And when you said there was a resolution by the Commonwealth's attorney, I kind of missed, what was that resolution? So it was a resolution to keep schools segregated. Okay, and it was authored by the Commonwealth's attorney at the time? Yes. Do you know what year that was? It was 1956.

[00:42:35] Okay, and Brown v. Board happened? 54. Okay. And you mentioned, so it took a court order for Loudoun County to desegregate eventually, correct? Yes.

[00:42:51] I guess one thing I'm interested in, I didn't quite see it in the report. I thought that we had something in our report about what other jurisdictions have done in this situation. If at some time you could point me to that, because I would be really interested in seeing how other jurisdictions went about this process and tried to reconcile and heal.

[00:43:14] I'd be interested in seeing those. I couldn't quite find it in the report. I guess for me, I'm happy to have an RFP go out for a facilitator. I think that's a great idea, again, to keep it transparent. and hopefully as apolitical as possible.

[00:43:30] And then secondly, the task force, I'm not sure, are you looking for guidance from us on what the task force should look like or? I am not. I'm actually going to leave that to the facilitator. The facilitator. To use best practices.

[00:43:46] Okay, great. I think some groups were mentioned. I think that, you know, at least for me, it's really important that the descendants are very much included. And I know that a lot of them are included in the study. And I'm really proud of this work, and you can't see it, but my heart is beating really fast that this has come back to the board, and I'm really proud of it.

[00:44:05] Thank you. Mr. Turner. Thank you, Madam Chair. This may be for you, Mr. Rush, but also could be for Mr. Rogers. So Brown v. Board was 1954, yet in August of 56, the board unanimously adopts a resolution calling integration extremely detrimental and disastrous and cited the Virginia Constitution Article 9.

[00:44:27] With Brown v. Board, wouldn't it render the Virginia Constitution moot and simply negate the Virginia Constitution, which is in direct contravention of a Supreme Court ruling? Yes, sir. You would think, under the Supremacy Clause, that that would take precedent over the provision in the Virginia Constitution.

[00:44:43] So basically, for any number of years, Loudoun County simply ignored the Supreme Court's decision. I gather we—I'll take silence his agreement. Okay. Thank you very much. So first of all, Mr. Rush, I really did appreciate your first statements that the effects of segregation impact and harm all people.

[00:45:07] I really appreciate that because the idea that segregation only hurts the people who are receiving less and the education that is not as good is not true. Diversity is a strength and diversity is a goal. And when you don't have that, everyone is impacted by not having those different experiences.

[00:45:25] So that was a very strong statement. I also want to say that the Douglas School closed for, as a segregated school for, in 1968. There are a lot of people who are maybe even in this room who are still alive in 1968, so we think about the, or who were born in or before 1968, so we think about this, we talk

about this, if this was years and years and years and years ago, when in fact it was in the lifetimes of so many people in this room right now are listening and that type of thing.

[00:45:58] I really, really, really appreciated the key findings, which is, I think, slide five. One of the key findings was that oral history highlights strong academic culture and community and care in black schools.

[00:46:15] In other words, even though those African Americans, those black Americans, were not given the dignity of the education that they should have been afforded to them, they took care of one another and they took care of themselves and they had a lot of pride within themselves and within the community and within their schools.

[00:46:36] And that is a very, very powerful thing to say because I never want it to be the ideal that somebody thinks that they were just victims. They were people who were victorious in taking care of ourselves themselves, and truthfully, those are the people that put me in office. I wouldn't -- that is the history. It is the victorious history that allowed me to run for that -- that allowed me to sit at a lunch counter, that allowed me to shop at a certain store, that allowed me to drink from a water fountain, that allowed me to run for office, that allowed me to vote.

[00:47:09] It was those victories. And so the fact that you've called out those victories is so, so powerful, so I want to thank you for that. I also want to say that it is important, and I'm not saying we should assign blame, but it is important that the person that did author to keep schools segregated was the commonwealth attorney because it gave power to the law.

[00:47:29] And so that's important to -- I don't care if we do assign blame, but it's important to assign blame to the person who's supposed to be upholding the law. The fact that he literally was breaking the law is an important thing to say and then finally I would say that this is this is an important history and history is history it just is it's just history and the people the people who get to tell history are always the the victors in the history that they tell and so the fact that we have more another voice in the an academic voice telling this history is so so powerful and so important so thank you very much and go

[00:48:09] forth and we look forward to what you do next we appreciate you very much thank you all right let's go back to item number two which is the aviation noise mitigation project with mr Peters and mr Glendo please come to the table good evening gentlemen evening chair Randall evening board members no PowerPoint tonight it's uh it's just me tonight okay just you talking giving you a couple just a couple

[00:48:49] points of update so it should be a fairly short item so as you mentioned chair randall this is an informational update regarding the runway 30 aviation noise mitigation project the board will recall that this project was last before you at the end of calendar year 2025 and Over the course of a couple of meetings in November and December, the board did endorse project recommendations, which I won't run through, but you'll remember that you endorsed project recommendations. And from there, at the end of that meeting, beginning of December,

[00:49:28] the project team then presented those same recommendations that the board endorsed, including the revisions we presented those to the regional project group on December 8th during that meeting the member jurisdictions of that regional project group they expressed no concerns they just had a couple of questions and then at the conclusion of that meeting in the week thereafter seven out of those

nine member jurisdictions provided a written Assigned affirmations saying that they did not object to Loudoun County's recommendations. So seven out of nine

[00:50:06] So following that that RPG group affirmation Our consultant then submitted the full report and the recommendations December 18th submitted those to the office of the Eastern Region Administrator of the FAA And then through February and March of this year There were a few email exchanges between Vionair and that Eastern Region Administrator.

[00:50:36] Those couple of emails, they culminated in a phone call, which occurred March 27th. And here are the real updates. So March 27th, the phone call with the Eastern Region Administrator resulted in a short to-do list.

[00:50:52] On the county side, we were sent off to gain the final two affirmations from those two member jurisdictions. which we have since the report went out, we did receive those too. So now we have nine out of nine RPG members have submitted written forms saying that they at least don't object to what the county's asking for.

[00:51:14] So that's on the county side. That was our only to-do list coming out of the call with the administrator. On the FAA staff side, their to-do list was to check in with airports authority staff and talk with them about potentially having a larger conversation that would include FAA staff, airports authority staff, and then county staff to then walk through those project recommendations.

[00:51:44] So that's where it sits. We haven't yet heard back about whether we'll have an audience with EMWA staff, but we remain hopeful. I would say the call that we had with the administrator at the end of March was challenging, and I would say certainly they are scrutinizing the request, but also very constructive.

[00:52:09] And I would say it was an overall tone of collaboration on the call. So a couple of the issues I just wanted to make sure I mentioned. First one was that we do have the affidavits, so that issue is resolved. The last one, the timeframe.

[00:52:27] We were cautioned that any implementation of these requests would likely be on the order of five years. If we are successful in having a productive conversation with airports authority staff, and then between airports authority staff, FAA staff, there's no fatal flaw identified with our recommendations.

[00:52:49] The recommendations would enter the queue for implementation, which is complicated. It involves some assignment of their resources to spend time on our project. And there's a whole priority listing, and we're told that we would be prioritized after any requests that are deemed to be more safety-focused.

[00:53:07] So she is hedging our expectations for both time and the priority list that we'll get, but that's where we are. So next step is we are waiting to hear back from FAA staff. They have been communicative, but we're waiting to hear back about conversation with Air Force Authority staff.

[00:53:24] So that's the update. Thank you. That was very, very impressive with how the single slide. Good job. Good. Mr. Croney. Thank you, Chair Randall, and thank you for that update. So did you get any indication from the FAA that, you know, the short-term recommendations? So we did split up our recommendations with short-term and long-term. You know, five years seems like a long time for short-

term recommendations to be implemented. Did you get any sense that maybe we could try and do the short-term sooner? There was some amount of debate,

[00:54:01] I would say, in real time about whether that could be implemented on the order of, I think, three to six months is what our consultant had asked for. They actually argued back and forth a little bit on the phone call about whether, like, logistically, could that happen? Who needs to be spoken with?

[00:54:18] Which decision points come under the jurisdiction of which office? So the message from the FAA, she didn't end up softening it, that it would be a faster timeframe, but I think it's, I think the matter is still open for debate right now. And when are you going to meet with EMWA? It sounded like the FAA was going to do that first. That's, that is, those are the steps. So FAA staff will speak with airports authority staff first, and, and then FAA staff would end up facilitating our, our communication with airports staff on this project.

[00:54:53] Okay. Because, because I would like, if it's possible to kind of bring up, maybe there could be a partnership to fly quiet through with the with emla to do those short-term recommendations that that nighttime noise track exactly understood so um so that is one of the one of the items as you pointed out that our consultant has argued could be a short-term implementation because it doesn't have to go as far up the um the chain of command to decide so we can i can carry that forward as a as a continued talking point when i'm in those meetings and of course if the board wants

[00:55:30] to place any additional priority list on the three recommendations that we have the board could do that but i i think i know i think i know the board's intention here okay thank you very much thank you mr turner thank you madam chair um so as i understand it uh m law which has been agnostic through this process and not stated anything has to positively affirm a course of action for the FAA to move forward is that correct that is my understanding that the airports Authority has has remained silent through

[00:56:05] the process and I think it's act I don't know that they need to give their my understanding is that if they were to oppose it actively oppose it there's no way the project that would kill it but they have taken a position of we're not to say anything and engage at all and the faa it sounds like in this most recent iteration has said that's not good enough we need positive affirmation from memoir we're not going to move forward is that the correct that has been stated yeah yeah that's what i thought um and when did i make the

[00:56:44] original motion for this project i want to say it was five years ago i'm losing track do we remember It was in 2023, no, 2020, yeah, January 2023. So if EMWA says, yeah, go ahead and do this, then the FAA is saying probably five years from the time EMWA says, yeah, this is a good plan, we'll go forward with it.

[00:57:11] Those are the expectations that we were given in the most recent call. But we could, if EMWA said, go ahead and do it, we could go back to the FAA and say, all right, prioritize your implementation, and let's prioritize the nighttime change first. So we could move that maybe to the front of the queue if EMWA said, sure, go ahead.

[00:57:30] Front of the queue out of the board's three recommendations, yes. Right. As I understand the iteration now, it goes, FAA is going to EMWA. But somewhere in there was an approach to the major airlines. Right. United obviously being at the front of the queue.

[00:57:46] Is there any way we can approach United Airlines as part of this process before EMWA weighs in? Because if we could get United to say, this is not a big deal, this is a minor departure procedure change, we might get some throw weight in there.

[00:58:02] But I'm just curious if we can dictate that sequence or is the FAA in the driver's seat right now? The FAA is in the driver's seat now because we submitted our project to them. What I can say on behalf of our consultants, Vine Air and the Aloft Group, they did approach the major airlines while the project was still active.

[00:58:20] Had a couple of just very early, high-level conversations and kind of at least primed those decision makers for the requests that would eventually come to them in a more formal way. I think the steps, as I understand them, now they need to go through Airports Authority and FAA to be first kind of deemed whether this is even a viable idea from a technical basis.

[00:58:46] They're going to go through their own, you know, all the separation rules that you've heard the consultants talk about. And then, I think, probably concurrently or after, then FAA staff and Airports Authority staff would be talking with major airlines, but I'm hopeful that we would have a seat at the table for some of those talks.

[00:59:05] - Okay, thank you. - Thank you, we appreciate it. And that was not an action item, so you're good. - All right, thank you. - Thanks so much. All right, we're going to do next the Environmental Excellence Awards. Let me say, the Loudoun County Environmental Commission is a body that was created by the Board of Supervisors to advise and make recommendations to the Board on policies and practices dealing with the environment, sustainability, and management of energy.

[00:59:35] The EC bylaws define one of the EC duties to be presenting the Loudoun County Environmental Excellence Awards annually to individuals, businesses, nonprofit organizations, and educators for their leadership on environmental issues.

[00:59:50] the board business meeting on July 27, 2022, the board endorsed an environmental excellence award plan that includes award categories and judging criteria along with the commitment to present awards every year in April. And this is one of the fun days that we have.

[01:00:08] I'm going to ask that Marilyn Brower, Kara Moore, and William Marsh, who's the chair of the Environmental Commission, come on down. If you have a presentation, we'll do that. And then when we're ready to administer the awards, Mr. Turner and I will join you down front.

[01:00:27] And the way we'll do it is the award recipient will receive the award. You'll get your name, call all the things that you've done, call. You'll come on up, take a picture, and then you step off to the side.

[01:00:44] And in the end, everyone will come back up and take a picture together. So, if that makes, if that sounds okay. So, what we will do first, though, is hear anything from staff that you'd like to give us any information first, unless you're just ready for us.

[01:01:02] Yeah. Okay.

[01:01:11] All right. Good evening, Chair Randall, members of the board. I am Marilyn Brower, Interim Director of the Department of General Services, and I am pleased to introduce the 2026th Environmental Excellence Awards.

[01:01:31] As you stated, this is the environmental commission's action to recognize the excellent environmental and energy work being accomplished in the Loudoun County community. And again, the environmental excellence awards are established by the environmental commission bylaws, which state that the commission will hold a yearly awards program to recognize individuals, businesses, nonprofit organizations, and educators for the leadership on environmental issues.

[01:02:00] we first held the recognition in 2023 this is our fourth year and recognizes work done in 2025 so at this time i will turn to william marsh chair of the environmental commission to announce the award winners for 2026 and mr la turner and i will join you down front turner and i will join

[01:02:24] know what you guys are doing absolutely thank you thank you madam chair and members of the board

[01:03:16] it's uh this is one of the things that's really fun to do on the commission uh i want to acknowledge also kara moore and maryland uh steve schwar and uh and um and i'm completely blanking mike i'm sorry and mike uh here from general services who've been such a great support for us for staff for the commission to uh to um mike sandler to uh to to help us out and and make these awards happen uh we spent time starting late winter uh advertising the awards for each year and then we uh we have a number of us who who evaluate them in the first part of the year so we have six awards that

[01:03:53] i want to i want to speak about uh values that i glean from these awards that i want to share at at the beginning include problem solving, a degree of grit to make these initiatives work and appeal to the public, inspiration that I know that those awardees have felt, as well as the many nominees who don't happen to get an award today, but also the blending of generations that I have experienced in my years of living in the county that we see in the inspiration from some of the student awardees spanning to the lifetime award winners that we'll talk about today but also I've

[01:04:32] experienced and gotten to know in the previous years. So without further ado, we'd like to introduce the business award winner, who is Mr. Peter Burnett, owner of the 338 Net Zero building. And I'll just read a little bit about Peter. Peter is owner and visionary behind the 338 Net Zero building in Leesburg on Market Street. It's one of the only commercial Net Zero buildings in the commonwealth of virginia yes sir yeah please go on please go on and join the chair and supervisor and rather than demolish a former tasty freeze that later housed a bank veterinary

[01:05:07] office in locksmith peter chose adaptive reuse or preserving the existing structure and avoiding the waste and impacts of new construction the result is a true net zero building that produces as much energy as it consumes through on-site solar geothermal heating and cooling and high efficiency systems. The building features electronic vehicle charging stations supporting cleaner transportation and helping reduce air pollution. Peter's work shows that existing downtown properties can become examples of sustainability without disturbing new land or sacrificing character. The long-term viability and cost savings of the 338 Net Zero building

[01:05:42] offer a salient model for other property owners, insulating tenants from rising energy costs and reducing long-term waste. Congratulations, Mr. Burnett.

[01:05:51] The next award is for the Educational Climate Solutions,

[01:06:34] which is a community group. And Ms. Diane Weber, so congratulations. If you'd like to go ahead and join the board members up front, I'll read a little bit. The commission recognizes Diana,

founder of the Educational Climate Solutions, whose work is transforming how Loudoun County's youngest students understand and care for the environment.

[01:06:50] A longtime educator, the nominator has seen firsthand how Diana turns climate anxiety into climate agency, empowering elementary students to see themselves as problem solvers. Since 2021, she has volunteered her time in our schools. She's not paid for this work, driven by a deep commitment to helping children realize that they are stewards of their environment.

[01:07:10] Through school-based composting and food donation, her programs divert about 2,800 pounds of food from the Loudoun County landfill annually, preventing roughly 9,000 pounds of carbon dioxide equivalent emissions annually. Truly, landfill diversion. Partnering with TREX, Diana has helped students collect and recycle up to 300 pounds of plastic each year, turning everyday waste into a hands-on lesson in conservation.

[01:07:35] Her innovative spiral learning curriculum revisits climate topics at each grade level with increasing depth, fully aligned with Virginia standards of learning, so climate education supports, not competes with, core instruction. And most of her lessons are taught outdoors in living lab classroom spaces, where students connect abstract STEM concepts to tangible actions like composting, sorting waste, and plastic recycling.

[01:07:57] Teachers report a powerful multiplier effect. Students take what they learn home, influencing family habits and reducing emissions at the household and community level. The ECS model is easily replicable and scalable across the county, built on behavior change in existing school structures rather than costly infrastructure, and aligned with the Loudoun County Energy Strategy.

[01:08:17] Congratulations, Diana. Our next award is for Educator. Is Laurie Stone here?

[01:08:56] For Educator, the commission recognizes Laurie Stone, AP environmental science teacher and green team slash green earth club leader at the Academies of Loudoun, whose work has made the entire campus a living lab for sustainability.

[01:09:18] Drawing on her earlier career as an environmental engineer, I love that, I'm a sibling myself, Laurie was inspired to bridge the gap between classroom theory and real-world decision-making so students see how engineering and science directly shape environmental outcomes. At the academy, she has built a cross-functional program that unites all the three academy branches, AET, AOS, and MADA.

[01:09:39] So environmental stewardship is shared by engineering, science, and technical programs alike. Under her leadership, Lori's students organize major events like Zero Waste Week, Water Quality Day, and Soil and Forestry Day, engaging hundreds of students in hands-on work that reduces waste, protects waterways, and builds long-term conservation habits.

[01:09:59] She launched the Academy's first food waste composting effort with a culinary arts program and is guiding it to become a self-sustaining loop, diverting organic waste from landfills, creating nutrient-rich compost on site, and using it in campus landscaping and plant sciences program. She coordinates three envirothon teams, promotes youth conservation leadership and camp opportunities, and collaborates with partners like Loudon Water, Goose Creek Association, Loudoun Wildlife Conservancy, the Soil and Water Conservation District, the Department of Forestry, Virginia Tech, and others, connecting students to professionals and real projects.

[01:10:35] Her teaching is internationally experience-based, nature journals, outdoor field days, integrated research projects tied to the UN Sustainable Development Goals, and projects on topics like PFAS, microplastics, environmental justice, biochar, and soil health, all designed to create knowledgeable, critical thinkers.

[01:10:52] Colleagues described Lori as working around the clock to give students the best training and real-world exposure. Former students credit her with inspiring their choice to major in environmental engineering and to pursue careers in conservation and sustainability. Congratulations,

[01:11:06] Ori. Next for government program, we have the Loudoun County Stormwater Team. I don't mean to

[01:12:10] take role here, but I would like to call everyone out individually. Michelle Seib and Chris Stone, Jamie Foltz, Jen Herr, John Youson, Carl Evans, Michael Donnelly, Kelly Grants, Kathleen Willis, Brent Payne.

[01:12:33] Brent, not here. Christopher Ellis. Thank you all for coming. And congratulations. The stormwater team is being honored for its strong commitment to environmental resilience, working every day to protect residents from flooding and to improve water quality across the county.

[01:12:50] This team oversees the design, development, maintenance, and regulation of stormwater systems, ensuring compliance with state and federal regulations while educating the public and advancing practices that protect streams and rivers. Through their compliance work, maintenance, and projects, team is responsible for approximately 35 stormwater related actions in the community every single day.

[01:13:09] Loudon has developed one of the strongest illicit discharge detection and elimination programs in Virginia using public reports and field screening to identify and stop pollution before it reaches local water rates. And one of the really cool projects they've done in the interest of total maximum daily load or pollution of Chesapeake Bay is the riverbend stream and rest stream and outfall restoration site in the algonkian district where they restored 3125 linear feet of eroded stream improved wildlife habitat and planted over 6 000 live stakes along the stream bank which i'm understanding some folks on the dais have also helped with

[01:13:44] as i recall among a part of that work was also outreach to homeowner associations which led to site tours for hundreds of visitors in a community tree planting day where over 200 citizens helped plant trees and a lot of that was funded by the department of environmental quality through their grant work. The single project removes an estimated 500 pounds of nitrogen, 200 pounds of phosphorus, and 130,000 pounds of suspended solids annually. The team uses data-driven innovation, employing advanced GIS tools such as heat maps, cluster analysis, and time series

[01:14:18] analysis to prioritize high-risk outfalls and target illicit discharge investigations where they are most needed. And beyond the high-profile projects, this team maintains existing infrastructure and often responds first when basements flood combining technical expertise with empathy and conflict resolution skills to support residents in some of their most stressful moments so these are some outstanding public servants and it's just really my pleasure to highlight their work and our commission's pleasure to really to really respect the work that they've done so congratulations

[01:14:50] coming for our award for students and i'd like to recognize arna kakarni commission honors arna

[01:15:48] Arna Katarki, creator of SustainAware, a reusable tableware library that allows community members to borrow plates, cups, and utensils for events instead of using disposable plastics.

[01:16:11] Arna was motivated after seeing trash bags full of plastic at community events and learning that 15 to 20 million pieces of plastic tableware were thrown away each year in Loudoun County. Much of it is not recyclable locally since its launch in January of last year, SustainAware has supported more than 20 events and prevented over 10,000 pieces of plastic tableware from entering landfills or breaking down into harmful microplastics. SustainAware is innovative because it turns reusable tableware into a shared community resource, a library model that makes sustainable choices easy, convenient, and affordable for families, schools, neighborhood gatherings, etc.

[01:16:49] already raised awareness among more than 1,500 people from HOA board members to classmates and online viewers through presentations, speeches, and educational YouTube videos explaining how SustainAware works. The project has grown beyond her middle school students across the county; they are now working with Arna to create tableware libraries of their own communities, extending the model across Loudoun and into Fairfax. Her leadership has already been recognized as a top 20 finalist in the Step Up Loudoun Youth Competition, and she's presented SustainAware at homeowners' associations meetings and at her school to inspire even broader adoption. That's great work, congratulations.

[01:17:26] On this side, the final award today is a lifetime achievement award, and this is the award for this year.

[01:19:01] That we are awarding posthumously to Mr. Daryl Schwalm, and to accept this award on today his

[01:19:08] wife Jane and son Christopher are here, so Daryl was employed with the Loudoun Wildlife Conservancy. He was one of the founding members of the then Loudoun Environmental Stewardship Alliance.

[01:19:46] In 2007, which is now the Loudoun Environmental Educational Alliance, or LEA. He was a founding steering committee member and was the key person who met with LCPS Science Supervisor Odette Scoville years ago at that time.

[01:20:03] They helped form LISA and instituted the first environmental educational activities for both the school systems, teachers, and the various LISA member organizations. Daryl's recent passing will be recognized by the Loudoun Wildlife Conservancy and with the inaugural Daryl Schwalm Visionary Award with Leah later this year.

[01:20:24] Daryl's vision became the foundation for environmental education in our county. Leah now stands 54 community partner organizations strong, along with five state organizations, companies, farms, educational outreach programs, and numerous individuals. I had a chance to have a phone call with Jane a few days ago who confirmed that among the other folks that Daryl was close to is Mr. Phil Daly, who's one of our current commissioners and was a lifetime award winner last year. And I will say personally that folks like Phil and Daryl meant so much to my children when they were growing up in the school system because they got exposed to our natural world and got inspired by their educational

[01:21:01] skills, and it is so meaningful to have this moment where we recognize the students today who are doing so much and how it's kind of a renewable resource in a way. The way that our environmental volunteers teach the kids who then inspire us. So Jane, on Darrell's behalf, we're so honored that Darrell could have this award and that

[01:21:22] your family could experience it so thank you. So we're all supposed to gather

[01:22:09] right and everyone so everyone all the award winners let's get together. We're

[01:24:37] actually doing a little better on time than I thought we would be doing right now and so it's a it's we're tiny bit early to go into um to go into presentations so give me a second because we might be able to bang out an action item real quick here maybe or maybe not about what okay yeah let's do yeah it's all right mr hims did you have people in the room

[01:25:14] that can do west park right now yes the staff is here however there are some speakers oh that's right that's why we took it off consent that's why i took it off consent you're correct thank you for that thank you mr turner which one is two-way it's not already on consent no well how about this how about i just ask the questions for the two resolutions we have if everyone's here because if they're here we can just go on and do them right now so we have a resolution for the end

[01:25:53] alexander disease day are you here you are here let's go on and do the resolution for the end Alexander Disease Day. Mr. Turner has left today as Ms. Brooksman, will you join me down

[01:26:03] front for this please? I was saying to him that I had not ever heard of Alexander

[01:27:16] Disease and so when you requested the resolution I looked it up and did some studying about it and I want you to talk about it after I read the proclamation if that's okay. The proclamation to end Alexander disease day whereas Alexander disease and is an ultra rare and devastating neurological disorder affecting the right matter of the brain which can cause seizures intellectual disabilities developmental delays as well as issues with coordination movement and speech difficulties and whereas the disease primarily affects children and has

[01:27:56] has roughly 100 confirmed diagnoses worldwide to date, only 100. And whereas due to its rarity, Alexander's disease often goes underdiagnosed and its research is underfunded. Families face immense challenges, not only medically, but also in funding support, resources, and hope.

[01:28:17] And whereas raising awareness is critical to driving research, improving care, finding treatment, and a cure for those affected by the disorder. And whereas April 7th is recognized as in Alexander Disease Day, honoring a significant breakthrough in research that showed progress towards a potential treatment for those affected by the disease.

[01:28:41] Now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby proclaim April 7th, 2026, as in Alexander Disease Day in Loudoun County, promotes fuller awareness to support families and individuals. So would you one introduce yourself and tell us how you became somebody who was involved in this? My name is Tom Canceleri and my son Levi is about to be five years old. He was diagnosed with Alexander disease after 32 days of birth and we were told

[01:29:19] he would not live to be two. After that you spend a lot of time researching, reading and finding out everything that you can. I started this journey with him and I've recently joined the board of NDAXD, which is the pretty much only advocacy and research group. And we are looking to raise that awareness and help these kids that have these problems and need to get these treatments. Research is at a critical point where we're running out of funding from the NIH and raising that awareness is what's going to help us drive a cure and a treatment for these kids.

[01:29:58] Thank you for being here. Thank you for letting us know about this. Thank you for allowing us to let other people know, put it on all of our Facebook pages and things like that so other people can know as well. We appreciate you. We appreciate you being here very much.

[01:30:14] How about you take this resolution? We're going to get in the middle, and we're going to take a picture. Okay.

[01:31:12] Yes, thank you. Sure. No, I don't care. Now, you can stay down here, that's fine. We have a proclamation for Arab American Heritage Month.

[01:31:28] We are three minutes early, but we're hoping everyone is here. So if you are here for Arab American Heritage Month, would you please come down? I thought I saw Delegate Ramadan to, I don't know.

[01:31:53] Could somebody check the hallway for Delegate Ramadan? He's here. He's in the lobby? I don't have my glasses on.

[01:32:03] Let me just say, I have been practicing you all's names all day long.

[01:32:43] If I get them wrong, I apologize right now. You can correct me in the end, but we have been all day, okay? Because people's names are important. If I give you a name, I have to have. And are all of you teachers? All of you are teachers?

[01:32:59] That's phenomenal. Thank you so much. um huda you should come stand huda come stand next to me please just step in there yeah there we go thank you for all of your help all right we were you were very very appreciated all right we're gonna hello mr ramadan how are you delegate dr ramban it's all all it's all the titles delegate dr ramadan hello okay uh here we go proclamation for arab american heritage month

[01:33:33] Whereas Arab Americans have made valuable contributions to virtually every aspect of American society in medicine, law, business, education, technology, government, military service, and culture. And whereas Huda Alsalus has provided a space for student teachers and the Loudoun County Public Schools Arab American community to celebrate their heritage and culture by organizing Ramadan, Eid, Iftars, and Arab culture events.

[01:34:05] Okay, here we go.

[01:34:38] Doa, Haj, Yaya, is that right? No, that wasn't right. Okay, I'm sorry. And Christy, okay, okay, okay. Christy, for him, teachers, all teachers with Loudoun County Public Schools have a positive impact on everyday education and future generations of Loudoun County.

[01:35:02] And whereas Arab American Heritage Month recognizes and celebrates the rich history, culture, heritage, and significant achievements of the Arab American community in Loudoun County. Now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby proclaim April 2026 as Arab American Heritage Month in Loudoun County and celebrates the vibrant culture and history of our Arab American community and recognizes countless contributions they have made to our county.

[01:35:34] So I've told this story a lot. I'm going to tell it one more time. In 2008, I came to the board and I said to the board, to then the chair, Scott York, I said, why don't we have a Black History Month in Loudoun County?

[01:35:57] And Scott York looked at me and said, why don't you do a Black History Month in Loudoun County? And I thought, he is absolutely correct. And after that, I went out and I try every year to be very aware, be very conscious of the African-American community and what they're doing and have written every African-American resolution in Loudoun County.

[01:36:19] I also made the decision at that moment that for any cultures or groups who wanted a history month, that they had to contact me themselves and do it themselves because I don't know enough. And I, and sometimes people think that you know everything about, you know, every other, I don't.

[01:36:38] So I thought, if this is going to happen, I want the community itself to lead this effort. You have stepped up to lead this effort, and I appreciate you very, very much. Dr. Delegate Ramadan was our first recipient, actually, of Arab American Month resolution.

[01:36:58] When we were thinking about, we were talking about who, who, who, and we were like, well, we know who. And this year, you have brought us all these amazing, amazing teachers, which I think is so, so powerful. So thank you for spearheading this.

[01:37:15] Thank you for helping. Thank you for everything. And I'm going to give you the microphone now to speak. Thank you for your honor. I look forward always to continuing works together.

[01:37:31] Thank you. Talk more. Thank you for this opportunity.

[01:37:52] I want to thank David, my brother-in-law, for contacting me and telling me about this opportunity and bringing all the teachers and the great job they're doing in Loudoun County. Thank you so much. Do you have anything you'd like to add?

[01:38:09] Yes. My name is Rab Alatiri. I was the first person to reach out to Loudoun County, and I want to thank you on behalf of the Arab America Foundation for your leadership, for your time, and to make this event happen.

[01:38:30] Thank you so much. God bless you. Anybody else? Thank you, everyone, and thank you, Loudoun County, for accepting us as teachers and educators. We really appreciate all the support that you gave us, and we really appreciate us being here today.

[01:38:51] Thank you so much. Listen, you guys are teachers. Thank you. Great shows. Anybody else? We good? All right. Well, we're going to get everyone open them and turn them forward. I'm going to put, you should come in the middle. Yes, you should. No, yes, yes, yes, you. Yes.

[01:39:07] And I'm going to move to, well, not the microphone.

[01:43:30] Item 12.

[01:47:52] I can't find item 12. Madam Chair. Well, let's do item 12. back. Let's do item 12. Excuse me, Madam Chair. Is the staff here? Oh, it is me. Oh, for God. Okay, that would be me. No, it isn't. That would be me. We have staff. We have staff. It's kind of a little bit of a combination of two things. Excuse me, Madam Chair. I did get a text from a person who said he was going to come here to speak on item 12. Oh, never mind. We can't. Oh, shucks, Mr. Sainz just said. And we can't do it. How about we read into closed session

[01:48:27] and we do the do i think but we have a speaker i don't think it's you we have a speaker for item 12 so it's a speaker for item 12 here hello sir and is that only one speaker for item 12 okay hold on let me

get my sheet so i can find out i just want to make sure i know who you are sir it's not brian is that right is is that brian i really gotta put my

[01:49:03] glasses on. It is Brian Turner. I hope I didn't throw off your agenda. You did. No, you did. You did. I apologize. I just have a quick few remarks. That is okay, Mr. Turner. Because you are willing to speak a little early, we can get the time then before we go do other comments, and we appreciate that. Thank you, and I'll go home and grab some dinner, so I appreciate you accommodating this.

[01:49:26] Good evening, Chair Randall and members of the board. I'm Brian Turner, and I believe, as you all know I serve as general counsel for the Landstown Conservancy and Landstown Village Greens HOA. The Conservancy and LVG appreciate the board including action item 12 regarding cannabis zoning ordinance amendments on today's agenda.

[01:49:44] I'm here today because the Landstown community is home to a vape shop and that business has been the subject of multiple attempted break-ins. These incidents have understandably raised serious concerns among residents. Both Conservancy and LVG have asked my firm to help identify solutions to the public safety and quality of life challenges that accompany these types of commercial uses. We've begun conducting our own research into best practices from other jurisdictions and we look forward to sharing our findings with the county staff as this process moves forward. The Conservancy is committed to being a constructive

[01:50:22] partner and we're hopeful that together we can reach an outcome that works for all stakeholders, residents businesses in the county like thank you thank you mr turner appreciate that now will staff come to the table come back to the table so supervisors um i i uh sat down with mr sains first and then with staff and and also with mr rogers my chief of staff when the state passed legalized marijuana. So I'm not going to discuss whether or not I agree or disagree with the

[01:51:00] state's decision. My concern was and remains how close a sale of legalized marijuana shop can be to a school or a daycare. And when I say daycare, I mean even because sometimes we say daycare, we forget that daycares can go up right through middle school.

[01:51:21] And when Mr. Sains and I started talking about this, it was before Governor Spanberger had made her amendments to the bill. She has now made the amendments to the bill, and if you can talk through some of those, that would be great.

[01:51:37] And so as of Thursday, her amendments go back to the General Assembly, and we will see what happens with the bill as it stands now via her amendments. Having said all that, it is my goal to make sure that any shops that are selling recreational marijuana are a certain distance from a school that I have not determined.

[01:52:04] I have said 1,000 feet, but I think that also in the legislation it actually has a certain distance already, and that's at the very, very, very minimum. I have also talked to the mayor of Leesburg, where we have quite a few vape shops, and she gave her, it was just an opinion, there was no facts to it, she believed that, and I think she's right, that many vape shops set up shop in the hopes that legalized marijuana retail sales would be legalized, and so they would just roll into having legalized marijuana where we have vape shops.

[01:52:42] And I know right now we have vape shops that are well within 500 feet of, we have two, in fact, but within 500 feet of a certain school. So I wanted to have this discussion, and I wanted to initiate Aurora

right now, even before we get any further, because I want us to have something in place.

[01:53:04] So we're not chasing the bill. We have already done something in advance. So having said that, do you all mind giving us the updates on, well, anything you want to give us, but also especially the updates on Governor Van Berger's amendments to the original bill and where all those things stand right now?

[01:53:24] Madam Chair, there are two main updates regarding the governor's amendments to the bill that I'd like to point out. They're both favorable. The first is pushing the initial date of the retail market out to July 1st, 27. That's an extra six months that we get to plan for this. And the other is establishing that no more than 200 licenses will be issued before January 1st, 2029.

[01:53:59] So these are both favorable. Regardless of what the General Assembly decides, if they accept the governor's proposals or if they send it back as they initially drafted the bill, staff would be interested in looking into how we can amend our codified and sending ordinances to respond to the new bill.

[01:54:22] Was there any already established guidelines about how far something can or cannot be from an educational facility? We have 1,000 feet in the bill, Madam Chair, and it prescribes that localities can decrease that distance, which I don't believe we'd be interested in, but we cannot increase that distance.

[01:54:46] But 1,000 is the figure that stands in the bill as it's currently drafted. And does that include parochial schools and private schools as well? What was the first? Religious schools and private schools as well. I know it includes public schools.

[01:55:03] I do not believe it includes private schools. Okay. Supervisors, do you have questions before I make the motion on Arroyo? Mr. Sainz? Thank you, Madam Chair. Thank you, staff. So in the language, my understanding that say if somebody was applied for the license, then the candidates board will bless you.

[01:55:29] and we'll, well, yeah, they'll bless you if you get the license, but will they review and determine yes or no? So say, for example, you know, as Chair Randall used, there's two tobacco shops that are literally right down the street, and they're not even the stones throw away from each other. They're a piece of chewing gum throw away from each other.

[01:55:53] That's how close they are. So say if both of those properties were to apply, would the cannabis board review that and make the determination and not grant both of them with them being so close together together? Well, supervisor, that would be to the discretion of the cannabis control authority and the Virginia licensure process would not include the locality's input. That being said, these 200 initial licenses before 2029, they're spread across the Commonwealth. So it'd be unlikely that the authority would grant two licenses in such close

[01:56:28] proximity. Okay and then clarify so you're saying if this bill is enacted and you said in January 1 of 2027 so from January 1 2027 to December 31st 2029 only 200 will be issued. Well those are discrete issues supervisor the retail market can't go live until July 1st 27 which means no sales can occur but licenses can begin to be issued upon the passage of this bill. Okay for retail sales

[01:56:58] So July 1st of 2027, okay, and then from July 1, 2027 to, say, December 31st, 2029, only 200 will be issued in that time frame. January 1st, 29. January 1st, 29, okay, only 200 issued in that time frame. That's the maximum.

[01:57:14] In those two years, okay, and then, so you're saying right now we have 1,000 free, if I heard you correctly, from public schools, does that cover daycare? I want to say yes, I'll have to double check.

[01:57:34] check right does that cover also religious uh buildings like churches mosques synagogues etc as far as i'm aware it does not does not okay all right okay thank you second round of questions then oh we can talk about that mr brixman thank you madam chair i've been getting a couple questions about this um and perhaps without objection from my colleagues would staff be able to provide us like a summary or at least a link where we have our regulations on vape shops

[01:58:10] i've been getting a lot of questions about regulations on vape shops so if you guys can maybe just send an email to the board showing us where we could find those regulations sure supervisor are you interested in how our zoning ordinance regulates vape shop yes please all right yes thank you thank you um and then it says 200 licenses but it also says that the bill allows growing so are they are those mutually exclusive um and so for example if you wanted to grow would you need a retail license no they are mutually exclusive okay and the bill doesn't

[01:58:50] set a limit on two growing licenses only retail licenses at this time i'm sorry there's no growing license there are that would be a different licensure process also through the state it would be discrete how many how many growing licenses are allowed the number isn't defined by the bill it's not that's okay the number of growing licenses is not defined by the bill okay that's interesting and i assume our zoning ordinance would also uh as we move forward um consider how we might want to regulate the growing of marijuana or cannabis in our county because we have so much ag.

[01:59:29] I would think that we would want to consider that. That's absolutely correct. That's staff's intent? We want to establish, yeah, that is the intent. Okay, all right, great. And then it's good that we have an extra six months so that we can consider this for a while without being rushed because I know we're talking about the DPZ work plan coming up today.

[01:59:52] And then I guess my question as well, along with what my colleagues were asking, the 1,000-foot rule, I think maybe Supervisor Sains was concerned about preschools or aftercare that happens at religious institutions.

[02:00:08] That is something that's common in the county. But also, we have aftercare that is provided at Taekwondo studios and places like that. So my question would be, as we move forward, obviously I'm going to support this, but my question would be, as we move forward, are we allowed to consider those types of aftercare facilities when we're talking about the 1,000-foot rule?

[02:00:36] Supervisor, first of all, I'd like to point out that that extra six months is contingent on the General Assembly accepting the governor's... the governor's language. We'll see that in due time. We hope so. I suppose more time, the better. In terms of those questions about proximity, on one hand, there's what the bill has decided for Virginia, the licensing process. And then there's the local authority. The bill does include a section about the local authority not being restricted by the bill in terms of how

[02:01:12] can draft our ordinances around this so this is something that we'll look into when we're looking into what to amend in our our codified ordinance and zoning ordinance we have a committee of local government attorneys all looking into this so we're coming through the 130 page bill to figure out high risk solutions and low risk solutions which different localities can approach this with. All right. Thank you very much. Point of clarification to Ms. Bricksman, though, the local authority discussion,

wasn't that also part of Governor Spanberger's amendments? Was that in the original bill? That was in the original bill. That was in

[02:01:52] the original bill. Okay. All right. That's good then, I guess. Ms. Umstead. Thank you, Madam Chair. Are we mandated to allow these establishments in the county? Yes, we cannot outright prohibit them that's correct how do we then comply with federal law which outlaws marijuana possession sale while state law is on the verge of

[02:02:28] allowing it well that's really a question for Virginia you know through the separations of powers this has been a problem for a while as I understand it. In terms of the county's involvement in this, when Virginia grants a license, we will still look into our ordinance provisions to determine whether the placement of one of these retail buildings is, you know, correct. And so I'd say in some way those processes are discreet from one

[02:03:06] another. And I'd say in the same way, the federal question is somewhat discreet from the state question, which is somewhat discreet from the local question. Of course, we'll have to follow our state's laws in terms of how it's spelled out in this bill. I hope I answered your question. Thank you. Mr. Sainz has a, it wouldn't be a point of clarification, but he has an answer that he thinks he can help you with. Supervisor Armstead, if you recall a few years ago the General Assembly did approve personal possession of marijuana up to an

[02:03:45] ounce and up to three to four plants you can grow in your house. So technically we've been able to have personalization of marijuana in the Commonwealth for a few years now and approved medical sale. So we actually, there are a few medical facilities that sell within Virginia. We actually have one or two actually in Loudoun County that have been up and running for a few So I think to answer your question, it's more or less states can give authority, but then if you travel, say, via airlines and TSA, those are all federal, Amtrak and, you know, things like that, of those natures, that's definitely a no-no.

[02:04:20] But if you're traveling within the state, you're good to go. Mr. Thank you, by Chair Turner. Thank you, Madam Chair. So is the federal government silent on possession of marijuana and use of marijuana because there are a number of states where it's legal, or I'm really confused here on the jurisdictional overlap?

[02:04:46] I think I'm understanding Supervisor Umstadt's question a little bit better after thinking about it. I think what we're talking about really is a question of jurisdiction. Virginia would have the jurisdiction to penalize possession of marijuana, and if Virginia has decriminalized it, The federal government will not go over Virginia citizens for possession of marijuana, and that's sort of a tacit agreement that complicates the federalistic structure.

[02:05:12] But the long story short of it is the possession up to a certain amount has been decriminalized in Virginia for some time, as Supervisor Sainz pointed out. What latitude does a local government have to very tightly circumscribe the individual establishments?

[02:05:36] And I can take it to pretty extreme examples of things that we could do to pretty drastically restrict the sales and marketing of cannabis within our current zoning ordinance. But I'm wondering how far latitude we have before we get askew from what the state just passed.

[02:05:56] The latitude supervisor would depend on our risk aversion. The group that we've coalesced of local governments, which are creating some drafts for these ordinances, we're considering different

language based on the risk profile of the locality.

[02:06:15] So that would depend entirely on that. So let me give you an extreme example. What if we pass an ordinance that said you can only operate a cannabis store in Loudoun County from 2 a.m. to 2.05 a.m. every night?

[02:06:32] Well, the bill says we can dictate the hours of operation, and it doesn't say anything more than that. So we could try to do that, and I think it'd be, you know, I think that could arise in a controversy that is unreasonable.

[02:06:49] But that could, you know, if we're very risk-tolerant, we could try it. Okay, thank you. Um, does it, is the bill silent on all types and all different potencies of THC? So if it's crumble, if it's bubble hash, if it's scatter, if it's kush, if it's loud, is it all the same thing as your grandfather's Woodstock marijuana?

[02:07:11] Okay, this is all in the purview of the Cannabis Control Authority, the state authority, which is going to be controlling these potencies and such. That wouldn't be something that the locality could control. Would have any control over? liken it to alcohol. Well, that's my next question. What does the ABC board, what types of controls does the ABC board or regulations have about how close a place that's selling alcohol can be near a school or an education? And when I say school, I do mean private schools

[02:07:49] religious schools? They will have their standards in terms of that sort of placement. The one difference I'd point out here is with the ABC, these are state-run facilities, and with this cannabis retail market, these are going to be private stores. If you'd like, I don't know off the top of my head exactly how the state situates their ABC stores, but I could get back to you on that if it would be helpful. The logistics of this, and this may be a question for Chris, if you might have to help me with this one. If Governor Spanberger sends

[02:08:26] this back down to the General Assembly and the patrons of the bill in the General Assembly, I think that was Senator Arad in this House and Senator Kresick, or I think Delegate Kresick, it might have been in the House, Senator Arad in the Senate, if they do not accept her amendments, what happens next?

[02:08:47] Can she assign what she has amended and then they'd have to override? Or does it just kind of all fail and fall until the next General Assembly session? What happens if the patrons of the bill and the General Assembly does not accept the amendments of the governor?

[02:09:06] So I believe of two-thirds. So it's with the General Assembly right now. So you mean... So the General Assembly goes back in session on Thursday. Yeah. What if they say we don't accept these amendments? If two-thirds of both the House and the Senate want the initial language without the governor's...

[02:09:24] So they have to, so then... It goes into law without the governor's amendments. So then the governor has to, so then two-thirds have to basically override her amendments. That's correct. What happens if that does not happen? Then it goes back to the governor, and the governor can either sign it into law, not sign it, in which case it goes into law, or veto it, at which point it goes back to the General Assembly and they will pass it.

[02:09:48] I watched Schoolhouse Rock. It wasn't about this subject, as I remember. Okay, I'm going to make the motion, and then we will talk inside the motion. I move the Board of Supervisors approve the resolution of intent to amend the Loudoun County Zoning Ordinance and Loudoun County Codifier

Ordinance to address state legislation regarding cannabis as provided in attachment 1 to the April 21st, 2026 Board Supervisors Business Meeting Action Item.

[02:10:18] Thank you, Mr. Sainz. First of all, you've done some work on this already as soon as I brought it up, so I do appreciate you and Mr. Rogers. I appreciate you doing some work on this early as well. Mr. Quintine, just to stay right there. I am concerned.

[02:10:35] Before I became chair of the county, I am a substance abuse therapist by profession, And I have all kinds of concerns in all kinds of ways, but that's not what we're talking about here today because what was passed and what might be signed and what might not be signed, nothing that I can have control over.

[02:10:51] I'll deal with those, with my concerns in other ways. However, comma, I am concerned that these will be this close to schools and any other facilities, as Ms. Bricksman said, religious organizations that might have many of our religious organizations, whether it's whatever type it might be, may have a school embedded in, I mean, the community church on Route 7, huge school within the community church.

[02:11:24] So I want to know if that would apply as well. I want to just go back and say again what Mr. Sainz said to you, because I'm not quite sure I got it, and I want to make sure I did get this. This goes into effect January 1st, 2027.

[02:11:40] Is that correct? What do you mean the retail market of sales? That would, if we accept the governor's amendments, it goes into place July 1st. July 1st, 2027. But between July 1st, 2027 and January 1st, 2029, only 200 licensures will be administered.

[02:12:01] That's correct. Okay. All over the Commonwealth of Virginia. And then after that, more, but by that time, most localities would have been able to put in place what we think might be good for our locality.

[02:12:18] Is that correct? Yes, after that, they're going to allow more after 2029. Okay. And as we put this ordinance together, we can right now say more than 1,000 feet, but not less? The opposite, and we'd be silent on that point.

[02:12:37] If we can't say less than 1,000 feet, we could only, excuse me, if we can't say that more than 1,000 feet, we can only say yes. I'd imagine we'd go with what the state prescribed, which is 1,000 feet. I think we're saying the same thing.

[02:12:53] Did we say the same thing? I think we said the same thing. You all said the opposite. We said the opposite thing. Then I don't know what we just said. 1,000 feet is the maximum distance. So, yeah, so we can say less. We can't say more than 1,000 feet. That's right. And can we, as we are doing this, Mr. Quintine, can we try to get some of these questions answered, like is it a religious organization, is it child care centers, is it a place?

[02:13:17] I mean, what happens to the school or the church that has vacation Bible school but only in the summer? Can we try to get some of those questions answered, and can we get the question answered about the ABC stores? Yes, ma'am. Okay. Mr. Sains. Thank you, Madam Chair. Yeah, we're going to support the motion.

[02:13:35] I'd definitely like to tighten up and see about the the feet away from schools. I think that's very important. And then also the clarity, 100% clarity if the cannabis board will be reviewing locations on as they issue them because I think that's again very important as well because we don't want to see them on every single block right next to each other because again as Chair Randall mentioned a few years ago when all these tobacco shops and tobacco huts were started popping up they're doing it for obviously to sell their the products that they can now but also thinking down the road for if cannabis and uh what became legal uh for sale in in the commonwealth so thank you

[02:14:13] miss umstep uh thank you madam chair i i tend to agree with the chair i i'm not a fan of of uh retail marijuana. That said, the ABC stores, there are about 400 in the state. They have no restrictions as to how far they have to be from schools, but there are restrictions on whether they can put up billboards within 500 feet of schools. I believe they are not allowed to.

[02:14:47] So they're not allowed to have advertisements within 500 feet of schools. I would be in favor of the maximum distance from schools. But I want to ask, out of fairness, if we were to allow a cannabis dispensary 1,000 feet from a school and then a school opened up in the shopping center where it existed, Do we say to the cannabis dispensary, I'm sorry, you're going to move, or is it grandfathered?

[02:15:23] Do you have any thoughts on that? If we required them to move, that would be infringement of their land use rights with their vested rights.

[02:15:41] But in this circumstance, depending on how we draft our ordinance, it's a possibility. It's certainly something we'll look into. And do you believe that we can mandate that 1,000 feet to be from any private school or parochial school in addition to public school, or do you think we are prohibited under the proposed law?

[02:16:11] Depending on our risk profile, I would say that that is an option for us. It's not explicitly prohibited under the law. Okay, thank you. Can't people grow up to four plants right now for personal use already in Virginia?

[02:16:30] Three or four. I don't know the exact number, but yeah. But some number. And then my last question is, who would be the regulatory body, well, not the regulatory body, the enforcement body?

[02:16:48] And would this be, the discussion we've been having, would this be proactive enforcement? Or would this be complaint-based enforcement? So we say it's going to be 1,000 feet from a school, and that passes, and it's 2029, and these are now here.

[02:17:05] And how is this enforced? Do we just not know that yet until we get further down the road of how this gets enforced? So if you're speaking to the enforcement from a zoning perspective, if we regulate it as its own use and set use specific standards for it, The regulation of that would, absent further board direction, would be complaint-based based on those standards and whether someone has gone awry of them or not.

[02:17:33] That said, those standards would also be used and put in place for when someone comes in to receive their zoning permit when they're first trying to establish that business. They would not be able to establish a business selling cannabis if it did not comply with the use standards within the ordinance. Okay, I understand that.

[02:17:51] All right. And I've got to go back to this one more time. And I'm only going back to this one more time because I follow very closely the reaction of the patrons of the bill when the governor sent down her amendments, and they were not happy. I do not think they're going to accept those amendments.

[02:18:10] So if two-thirds don't accept it or don't override her, it just goes back to Governor Spanberger. That's correct. As I understand it, if two-thirds of both the House and the Senate reject the governor's substitute in its entirety, it becomes law.

[02:18:26] If they have specific rejections to some of the government's amendments, it goes back to the governor, and the governor can veto it, sign it, or not sign it. Okay. And then my last question is, clearly I, and I think I speak for the board, do want to have some—we want to be kept abreast of this.

[02:18:49] And since this won't even start until the 27th, can you guys come—can somebody come back and make sure that we are kept abreast of what's going on with this? yes we absolutely will and i really do appreciate that okay thank you for all those answers i know that was this is all new so i know it's i know some of these things might change will change as we go forward and we'll all be trying to watch to see what's what's happening all right i made the motion um mr sane second the motion all people say aye aye any opposed that motion will pass 702 i'm sure mr kirschner is going to be really upset that he missed this motion

[02:19:29] That motion over at 702 with Mr. Kirshner and Ms. Glass being off the dais. Thank you very much. All right, supervisors, we're going to go into public comments. A couple of things about public comments. Let's talk about public comments.

[02:19:48] I'd like to take a moment to say that how we conduct public comments at a board business meeting. And I'm going to ask, respectfully ask, and I know you all will, everyone to adhere to the public comment discussion that we have right now.

[02:20:06] Public comments will go for 90 minutes, so I will time from the time we start. You are going to sign up to speak on issues tonight. If you sign up to speak on an issue that's not on the agenda, I usually try to find the people first who are speaking to issues, thank you, on the agenda and call on them first, and then I will go in order for people who are not on the agenda.

[02:20:26] If I miss someone and you were on the agenda and I didn't call on you first, I apologize because I'm doing this kind of on the fly because I'm getting handed stuff as I sit here. I will call a few names in advance so that you know you're next up so you can get ready to come up.

[02:20:43] When your name is called, you will have two minutes. You can come to any podium that's closest to you and speak. When your two minutes is up, I'm going to ask that you release the podium to the next speaker. on the podium will tell you how much remainder time that you have. If you are calling in and speaking via telephone, I'm going to ask that you time yourself because if you can't see the timer in our room, I don't want to stop you when you get to a minute and a half because it breaks up your flow, but I will stop you when you get to two minutes, and so make sure you time yourself during that time.

[02:21:15] When you were speaking to us, the rules of order of the Board of Supervisors is that you address your comments to the board because that's what you came here to do and so we're going to ask that you turn toward the board while you're speaking and address your comments to the board at all times.

We'd appreciate that. If you do not do that, I will give you one warning and I'm quite sure that after that warning, everyone will follow that request, which is again the rules of the board.

[02:21:48] Please note that there's a slight delay between the broadcast and the online stream in the meeting room. And our moderator for this evening for people who might be on the phone is Emma Hopping-Gartner. Emma, can you hear me?

[02:22:03] Yes, Madam Chair. Wonderful, wonderful, wonderful, okay. We will start with the speakers who did sign up for things in the room, Paul Serino, followed by Trinity Mills you would be our first two speakers if you were in the room Paul it might be Paul Serrano s-e-r-r-a-n-o are you in the room sir is he online I'm I'm Paul I'm online you are online we can hear you just fine sir everybody when you are thank you miss chairman I'm a resident

[02:22:43] of Ashburn district I've been here for almost 15 years I rise in support of the zoning map amendment with respect to Belmont West. I travel Belmont Ridge Road frequently and Portsmouth Boulevard occasionally, and I can observe that the subject property is in clear need of revitalization.

[02:23:06] I support the concept of a mixed-use community to better use the space available. The revised application conforms with the requirements of current policy for suburban compact neighborhoods, including housing density. It also provides for best practices for low-impact development.

[02:23:29] I believe it is time to move forward and realize the potential of Belmont West. For these reasons, I urge the board to approve the zoning amendment as currently proposed. Thank you for your time. Thank you. Trinity Mills, if you are in the room or on the phone, you will be next. You'll be followed by Chris Phillips.

[02:23:52] Good evening, board. I'm Trinity Mills, speaking on behalf of Latin Wildlife Conservancy. I'd like to first acknowledge the efforts of the county in thoughtfully designing the new Passive Park at the West Park Conservation Easement. No project is perfect, but achieving a goal of combining ecological rehabilitation with creation of a functional green space is absolutely commendable.

[02:24:12] The stream restoration and wetland mitigation project incorporated into the West Park design is vital to restore and protect water quality and critical amphibian habitat. LWC has multiple stream monitoring sites along Tuscaloosa Creek and Dry Mill Branch that have long since indicated increased pollution and unacceptable ecological conditions.

[02:24:31] Some of these environmental degradations can be traced back to the old golf course and its abandonment, but much of it can also be linked to an active zoning violation immediately upstream. Just as the effects of the intensity of the active recreation uses from the old golf courts and its subsequent abandonment are pointed to as a reason for the need to restore the stream, No two can exist long-standing zoning violations, be pointed to as a reason for the continuing and worsening environmental deterioration, especially when considering sensitive environmental features such as the steep floats of the Mountain Overlay District.

[02:25:03] Ecosystem restoration efforts must consider the context in which they operate in order for them to be truly successful. The situation at Tuscarora Creek is an unfortunately explicit example of the extent of issues presented by failing to enforce zoning ordinance, wherein the advocacy of the county initiative is being threatened by the inaction on a non-compliant property that is actively polluting the stream this project poses to restore.

[02:25:25] As you have heard throughout the ZOR and more recently in discussions of infractions as related to the Western Loudoun Rural Uses and Standard CPM and ZOAM, codifications of protections for the MOD is critical alongside actually enforcing the policies and guidelines of the ZL. I'm here tonight to remind the board that efforts to restore and preserve our environment in Loudoun must come alongside mindful enactment and enforcement of the policy that is created to protect it. Thank you very much. Thank you. I mean, speakers, I'm kind of a stickler about our speaking rules. And so if you signed up to speak on West Park, I need you to keep your

[02:26:03] comments to West Park or I will stop you. Sorry. Chris Phillips, you're going to be followed by Jessica Farb. Good evening, I'm Chris Phillips. Algonkin District, Potomac Falls is where I live. I'm speaking in favor of the West Belmont redevelopment project. The development as it currently stands is underutilized. It has the redevelopment project as proposed also has

[02:26:41] additional housing which our county really, really needs. It additionally has the low or the affordable care, not affordable care, affordable housing aspect to it. And this is also an important thing. We all know that this county is expensive to live in. At the last meeting, I was able to listen to some of the concerns expressed by the board. And a lot of those, at least from my perspective, seemed like

[02:27:18] looking for the perfect, for perfection. We would like this, we would like that, we would like all kinds of other things. And in a perfect world, that would be great. But in reality, we're limited and, you know, economics being what it is, you can't have 100% affordable housing.

[02:27:41] I think we're letting, or the concerns are letting the perfect be the enemy of the public good, and I think the public good is served by having this dual use of housing as well as commercial and upgrading it.

[02:27:58] One of the other concerns was the HOA, and I think that was addressed where the HOA and the developer are going to come to an agreement, or the developer will make their own roads and pay for it.

[02:28:15] Thank you very much. I'm sorry about that. Thank you, sir. Richard Jackson, you will be followed by Karen Pantas. Good evening. Judge, are you Ms.?

[02:28:31] I'm Ms. Farb. You're Miss Farb. Yes, ma'am. And I'm going to, so I've made, it took me that long to make a mistake. I should be saying West Park, people for West Park go first, not West Belmont, because West Belmont is not on our agenda, but I have messed that up, so I apologize.

[02:28:48] Then I, then I've been correct. Yes, ma'am. I'm going to go. Okay, thank you very much, Madam Chair. Madam Chair, Supervisor Turner, members of the board, my name is Jess Farb, and I'm privileged to be the president of the Belmont Green Homeowners Association, representing 792 households, and tonight I wanted to address agenda item number 10, the West Belmont application.

[02:29:10] I don't rise here to oppose the application, but I just want to remind the board of something that's very concerning to the community that will continue with this new development. Specifically, I had reiterated at the public hearing back in January that we always understood, you know, as a community that there was a likelihood that this site was going to be redeveloped.

[02:29:30] And really what we want is what's best for everybody in terms of the plan, as much as that's possible. But we continue to be very concerned about traffic safety issues in Ashburn and in particular

around Belmont Green, especially with the recent tragedy that happened in January of a pedestrian fatality along Cleburne Parkway and Portsmouth Boulevard.

[02:29:50] And then in January, in a recent accident we had at Middlebury and Portsmouth within the neighborhood where an elementary age Belmont green resident was actually hit by a vehicle while in the crosswalk on their bike. So we're just really concerned about protecting our youth.

[02:30:07] Thankfully, he has his helmet on and he's going to be okay. But these incidents are reflective of the current traffic that we experience. And so there's no telling what's going to be happening once we have more traffic coming in from sheets that's being going to open soon and the new development. Our concerns are heightened, of course, because the proximity of this parcel to the Belmont Station Elementary School and the Montessori School.

[02:30:31] But these traffic and safety concerns are really why the HOA still continues to be concerned and opposed to the use of our private roads for accessing the new development. We feel a strong responsibility as we all do to protect our young residents, which we all have that goal and want this to align with that. And we support the alternatives that the developer has put out for accessing the property through other streets and not our private roads.

[02:30:53] Thank you for your time tonight. I really appreciate it. Thank you. Thank you very much. Richard Jackson, you will be followed by Karen Pontus. Good evening, sir. Good evening. Thank you, board, for allowing me to speak.

[02:31:09] Richard Jackson, I'm a almost 40-year resident of the Country Club subdivision, and I'm here to express our continued strong opposition to the proposed installation of a disc golf course and parking lots in West Park. The proposed location, which is located in the middle of an established residential neighborhood, raises significant concerns about safety, noise, traffic, and long-term disruption to the character of the area.

[02:31:39] Residents of the surrounding neighborhoods have expressed substantial and well-documented opposition to the proposed installation of the disc golf course and the parking lots. Public feedback submitted through community meetings and written comments reflects a consistent pattern of concern regarding those issues, safety, noise, environmental impacts, late evening activity, and the incompatibility of an active use recreation facility within the established residential neighborhood.

[02:32:09] In addition, the recent increase from the budget of \$13 million all the way up to \$29 million really raises a lot of concerns. This is a time when essential services are already stretched thin, and allocating additional taxpayer funds is a travesty, I believe.

[02:32:31] There are numerous other disc golf courses, Hall & Bernie, Franklin Park, and soon Balls Bluff will be online. We don't need one in the middle of the residential neighborhood. In conclusion, the community has consistently supported the development of the Passive Park that preserves open space, protects natural resources, and provides low-impact recreational opportunities. This current proposal deviates sharply from that vision. I thank you for your time tonight and I appreciate it. Thank you very much. Thank you, sir. Karen Pontus, followed by

[02:33:06] Emily Johnson. Karen Pantas, West Park. My name is Karen Pantas and I'm going to be speaking quickly because I thought I had two and a half minutes. My home abuts a parcel where seven disc golf holes are being planned. I've been deeply opposed to the disc golf portion of this project since

plans came out. To his credit, Mr. Torpy has been very kind to neighbors regarding encroachment issues. He is a real asset to the county. After discussions with him I considered relenting my objection. I wondered if it would really be that bad to have this so close to me and my neighbors. So I bought a chain

[02:33:44] basket to see if my worries about noise were overblown. This is worse than I imagined. This noise is extremely disturbing and I'm not happy. There is one small group of people who are pushing very hard for this million dollar project. They already have three disc golf courses in Loudoun with a forthcoming at Balls Bluff. Now they want to put another one to put this into our neighborhood because it's different. It's pretty. But what makes West Park so different is that it is in a neighborhood. It is surrounded by people's homes, their lives, their peace. I don't want to have to

[02:34:24] live with this. I find this noise to be nerve jangling and highly disruptive. You would not want this near your home. I don't want it near mine. This is an activity that is inherently noisy, shatters the quiet, that wakes children from their naps, that frightens anxious dogs. It will be the ghost of Scrooge on every windy day. One small group of people shouldn't be given a special right to disrupt a neighborhood no matter how hard they campaign for it. And if you find this noise annoying or frustrating or disruptive to hear, then I think you have your answer as to whether

[02:35:02] you should be sentencing a neighborhood to this fate morven park hosts one disc golf event every year and i guess you can move these around and set them up anywhere i would agree to be disrupted once a year but i do not want this cacophony installed permanently thank you thank you thank you ma'am okay so in the board room we do not do neither clapping nor jeering by the board's rules of order and this is why because if we are if we allow clapping we have to allow jeering and then then I can get out of control pretty fast, and so we try to not have the boardroom get out of control.

[02:35:40] If you want to do jazz hands, jazz hands away, but don't clap, but clap. Thank you. I had a feeling that it was coming, but no clapping or cheering. So thank you very much for that. I appreciate it. Our next speaker is Emily Johnson. Miss Johnson, you will be followed by Tia Ehrman.

[02:35:56] Good evening. Good evening, supervisors. My name is Emily Johnson. On behalf of the Piedmont Environmental Council, speaking on two items before you tonight. On Cochrane Tech, I reiterate our concern about this pattern of development near the quarries and point out that this site is just about a quarter mile from the edge of the TPA, where the board considers data center expansion inappropriate.

[02:36:16] At present, these are vegetated areas that buffer the quarry and protect steep slopes. Long term, we need a decommissioning strategy for this quarry area, which is bordered to the east by residences and to the west by parks and civic uses. Additionally, situated along the W&OD and Goose Creek, Its location is ideal for community uses.

[02:36:34] Any data center encroachment would limit options for what could be a high-quality gateway into Leesburg that could include parks, hotels, or restaurants appropriately sited around new reservoirs, such as the one already planned, and serving the nearby professional stadium, airport, and sports complex.

[02:36:51] As your findings for denial note, this data center would impact the scenic and sensitive nature of this site in a way that cannot be reasonably mitigated. It is also not strategic in the policy vision for this

area. Further, unfortunately, the applicant has all but nullified the best part of this application, their battery storage proposal, now offering just 5% of its initial size.

[02:37:10] On Concord Industrial Park, touch-ups to a data center redevelopment are still a demolition and redevelopment. Please very carefully consider staff's words from public hearing that there is a shortage of industrial space available. Flex industrial space will be lost if this is approved, displacing members of our community.

[02:37:27] Staff also showed a map at public hearing, which means we're all aware that at least seven other properties will be watching tonight's decision for the president to turn over their own flex industrial stock for data centers further eroding our supply the existing zoning on this property permits economically viable by right uses that are currently operating that's right out of your findings for denial and i encourage you to use them opposing the redevelopment of a myriad of contributing businesses for an oversaturated industry should hopefully be an easy line for us to hold. Thank you. Thank you. Ms. Johnson, you weren't here at the beginning of the meeting, so I apologize. I should have said this. The Concord application was pulled today already.

[02:38:05] Thank you very much. Tia Ehrman, you're going to be followed by Noelle Green. Good evening. Good evening. My allergies are going crazy. I will do my best not to cough. Good evening, everyone. My name is Tia Ehrman speaking on behalf of the PEC, and looking at the major design endorsement for the passive park space at the former West Park golf course we see a lot of positive steps being taken have a few questions and thoughts and i will just say loudon we share loud wildlife's concerns about a connected issue that seems to have failed to garner appropriate attention thus far first we are very appreciative of the passive park spaces

[02:38:41] the county is creating with this project public engagement consistently indicates a desire for open usable spaces like these we applaud loudon parks and rec for making strides to meet the needs of an ever-growing dynamic community. The West Park design showcases uses that will engage multiple age ranges, levels of athletic ability, and demographics to ensure this park enjoys regular usage and we support this with enthusiasm. We question the number of parking spaces to remain as impervious surface as the traffic study anticipates limited access of the site via car.

[02:39:12] However, we feel the two separate lots are appropriate given the size of the property and diversity of usage. In looking at possible motions listed in your packet, I urge you to retain the covered spaces and bathrooms as all of the groups coming to this park benefit from shade and restroom facilities. These are necessities to maximize our parks usage. We are encouraged that the county is embracing the best management practices for waterway restoration and preservation.

[02:39:37] These are key scientific concepts we must implement if we are to be conscientious stewards of our shared natural resources we do not want to see the county invest in a wetland and nutrient bank only to have that project negatively impacted from long-standing unaddressed upstream damage overall we are very glad to see this creative use for a valuable property at the heart of our leesburg community thank you thank you miss ermine noel green followed by jessica green good evening sir good evening i'm speaking to express my strong opposition to the proposed

[02:40:15] improvement plan for the former west park golf course along country club drive residents of the country club community are deeply concerned that these plans will significantly disrupt the character safety and quality of life in our neighborhood in particular the proposed pavilion raises serious concerns

we already experience issues with problematic late night activity in the area and adding the pavilion will only create another gathering place that may worsen those existing problems additionally loudon counties indicated that this will be an unstaffed park that raises clear concerns about maintenance supervision and accountability without oversight trash and litter

[02:40:52] will inevitably accumulate much of it will be carried onto neighboring private properties by wind and wildlife creating an ongoing burden for nearby residents the inclusion of the parking lot is also also troubling increased parking invites larger crowds longer stays more opportunities for unwanted behavior during both daytime and evening hours.

[02:41:15] In a particularly thoughtful design choice, the proposed parking lot is planned directly behind my home, which would replace the existing open space with a constant view of parked cars. I'm also concerned about the reported \$30 million cost to this project. At a time when there are real community needs, it is difficult to justify this level of spending on a plan that creates new issues for existing residents.

[02:41:37] Those funds would be better directed toward a teen center that provides a safe and constructive space for local youth or toward playgrounds and family amenities that directly serve current residents instead of adding more traffic congestion and flow of unknown visitors to the neighborhood while country club residents value access to green space we do not support traveling transforming the quiet neighborhood into a destination for large outside crowds including disc golf tournaments and other events that bring traffic noise and disruption while visitors enjoy it for the day residents are left to contend with the long long-term negativity thank you thank you sir thank you jessica green you'll be followed by madeline skinner

[02:42:17] good evening good evening good evening and thank you for the opportunity to speak my name is jessica green and i live on country club drive i appreciate the goal of creating a passive park that preserves open space and provides a peaceful place for the community that's something many of us strongly support however aspects of the current west park design move away from that intent and will significantly impact nearby residents the proposed parking lot next to my house which is labeled incorrectly on the current posted map replaces natural space that is currently used by the

[02:42:52] community for simple meaningful activities children playing neighbors gathering and even bird feedings at the same time the addition of the large pavilion introduces noise and activity that further takes away from the calm natural environment many of us enjoy together these these elements shift the space away from a peaceful passive park and towards something much more disruptive additionally the layout itself is not practical bathrooms are placed far away from where people would gather which reduces usability and could lead to some

[02:43:26] unintended issues across the park i'd like to offer a few constructive alternatives use existing street parking along country club drive which can accommodate a similar number of vehicles complete the sidewalk along country club drive to improve safe access move the pavilion closer to the bathrooms or consider replacing it with something smaller like a low-impact feature like bird watching deck this is a chance to create a truly peaceful nature focused space with a few thoughtful adjustments we can better align the design with the vision while respecting the surrounding neighborhood thank you for your time thank you thank you ma'am now and skinner you'll be followed

[02:44:05] by nathan rosa good evening good evening good evening chair randall and supervisors my name is madeline skinner and tonight i'm speaking on behalf of our rural historic villages we continue to

wait for the small area plans to kick off in lueketts paonian springs and willisville we ask that you provide the necessary support for the dpc resources including the external consultants to get this moving forward phil daly peter weeks and i met with randall Farron and Ali Althon mid-March to discuss approach and upcoming outreach activities.

[02:44:40] We hope to have a meeting with many of the Rural Historic Village reps to get them an update and give them the kind of information that shows confidence in the process. LHVA should continue to be involved. On another note, since I will not be here at the May 5th meeting, I strongly hope that you will all listen to your staff on their original motions for the Western Lown Rural Uses.

[02:45:01] keep the inventory of venues that have been shared with most of you in mind safety over dollars lastly keep not only loud and wine growers in mind but across the state of virginia after the devastating freeze that we experienced this morning it's pretty catastrophic really really yep i didn't know that okay we got down to 26 last night so we won't know total damage until about another week or so but wow thank you for letting me know that thank you thank you so much um nathan rosa followed by steve gants good evening sir good evening board members and

[02:45:41] members of the public i'm here to speak on the west park redevelopment proposal and for the most part i think it's actually a pretty good plan i don't have any particularly strong opinions about the disc golf though it is a improvement over the previous usage as a high intensity golf course i want to speak i'm a resident of clubhouse drive to the north of the creek and north of country club drive um i want to speak though about the stream restoration and some of the more passive park aspects where i do like the plan of keeping a large chunk of the

[02:46:15] park as natural space but there's still some space that is still going to be maintained regularly as lawns or mowed or something and i would just say that in this area there is a general shortage of natural green spaces as well as places for people to congregate outside so with the west park property i think the more space that can be just genuinely rewilded allowed for nature to take over the better with some trails through it maintained for people to enjoy that nature space as well as minimizing the amount of asphalt used for parking spaces while also still having the pavilions so

[02:46:53] people can gather outside because there is again a shortage in this area of places for people to just exist in public without spending money so overall i think the west park plan is a pretty good plan but it should include more nature and less asphalt and less mode areas thank you thank you thank you sir steve gants you'll be followed by alex friend good evening hello again steve gants i live in leesburg and i'm representing the loco disc golf club um i i really just wanted to

[02:47:28] be here to you know thank you uh for the opportunity to engage on this and to participate in a meaningful way. We disc golfers feel hurt and I just would like to address a few of the things that have been said this evening. Number one, Howland-Burney is the busiest disc golf course in Loudoun County thanks to the county but that amounts to an average of about 18 rounds of disc

[02:48:04] golf per day or seven players a day playing multiple rounds because disc golf does not take very long. It's not a four hour round like ball golf. It's typically about a 90 minute round if you're playing solo, which happens quite a bit. And I think on an average day, that's what you'll see and the neighbors will see. So that means those chains will be, you know, heard at a distance because disc golf is played outside, not in a boardroom. It's also played during the day. So

[02:48:36] there's no congregation at night and so it's it's not going to you know be a constant barrage of noise. Traffic will be minimal. Disc golfers arrive in small groups throughout the day. I also just would like to say that as far as the budget goes the disc golf course is is a fraction of the cost of the 30 million dollars. I think most of that is going to the restoration of the of the streams which is a great thing and disc golfers will be there to pick up that trash to prevent it from

[02:49:12] going in the backyards of these neighbors and we because we want to be good neighbors and thanks again thank you sir alex friend you'll be followed by gary um coister followed by meg burke good evening sir good evening uh chair randall and the board i appreciate the opportunity to address you on the West Park matter and speak up in favor of disc golf.

[02:49:41] It's striking to me the community benefits of this sport. Unlike conventional golf where you have lots of bare sort of grass, disc golf course is like walking in the woods.

[02:49:57] And I hope over time these trees will grow up. I'm a proponent of growing tree canopy in Leesburg and elsewhere. I am a Leesburg resident. The other thing that disc golf courses do for the community is by having an organized activity, it tends to make just irregular congregations of people, that tends to go away because you have structured activity on the land.

[02:50:29] I mean so this is a known feature of disc golf courses and you know just contrasting it with other kinds of development it's it's very favorable the second point I want to speak to is for children because disc golf is unique in its multi-generational potential you often see like if you go to Hal and Bernie people with husbands and wives and baby joggers and all ages and heights and it is something that is a great opportunity for families to participate in

[02:51:04] and in this era of screen time it's a wonderful opportunity for kids to get outside spontaneously doing something by contrast the soccer league and all this is very structured you know a couple of kids can just come out and do this on a whim so with that i just want to thank you for your consideration and know that as a leesburg resident i support this thank you thank you sir um gary coister followed by meg burke good evening ma'am good evening my name is casey kester i think my handwriting was not great i'm sorry for that that's okay but i am a resident of the leesburg

[02:51:44] country club neighborhood and i am here to express my opposition to the disc golf the parking lots next to our residents homes and the pavilions inside the west park project i do understand that the county has followed whatever usual protocol they have for community engagement but this project is incredibly unique because it is inside the backyards of several different neighborhoods the perspective from our community is that we were not engaged properly in the design of this park and the disc golf community was invited in for meetings and allowed to select the designer for the course that is now in the plans the natural and passive aspects of this park were what mattered

[02:52:23] most to all of us and disc golf does not go along with that. Neither does parking lots next to homes and pavilions that will attract large parties. We don't want any of this. I share the concerns of our local environmental groups about the large area that will be asphalted to create parking lots and trails within what is supposed to be a natural park and I would like to respectfully request that Supervisor Briskman recuse herself from the votes about this park as she received a campaign donation from an employee of the Professional Disc Golf Association in the amount \$400 in 2023. And I also very much appreciate the efforts of Supervisor Umstad for listening

[02:52:59] to our community's concerns and working to advocate for us. Thank you. Thank you. Nope, nope, nope, nope, nope, nope. Um, no, no, you, no, not nope to you. Nope, nope, nope. I'm sorry. Nope to, uh, I can't even clap for me. So, so, um, I also have a voice issue. So excuse me ahead of time. You sound great. So you and Ms. Burke, and you're going to be followed by Taylor Chess. I'm with what? No, no, no, no. You'll be followed by Taylor Chess. Okay. Good evening, Loudon Supervisors. Thank you for this opportunity to speak. I know there are much bigger issues in

[02:53:37] the world right now, but this is an important issue, West Park, to those of us who are local residents. It is worth remembering that the 134 acres of West Park was in conservation easement before the county purchased the land so everyone was very aware that this could not be developed so we were all under the impression that this was going to be a nature park which evidently is different from a passive park I think that in the attempts to include more people maybe or whatever that's where disc golf came in and maybe they knew people at the county I don't know

[02:54:14] it's not that I have anything against disc golf it's that I don't think that you can do disc golf well and a nature park in the same space. For example, where the disc golf goes, it pushes all the walking trails to the edge of the property, much, much closer to people's backyards. It sort of takes away the idea of a stroll through a nature park. Do you see what I mean? Anyway, it hasn't been a golf course for five years. It has been enjoyed every single day by multiple residents as a nature park.

[02:54:51] People are riding their bikes on the old trails, the old cart paths. I've literally seen kids going down in the summer with fishing rods. Where do we have a place for the kids to go fishing anymore? Down to the park. Why can't this just be a nature park? Why is it trying to be anything else?

[02:55:08] In order to accommodate the disc golf, I mentioned that all the trails get pushed to the edge. It costs more money, it demands more parking, it demands more facilities. There are one, two, two public disc golf courses in the county, a third one that is private, a fourth one that is being built at Balls Bluff.

[02:55:29] I don't understand where the need is for a fifth. Like I said, I'm sure it's a fun sport. It just doesn't fit the spot. Ma'am, your time is up. Oh, no. It is. I didn't get the finish. It is. I'm sorry. All right, thank you. Supervisors, we're going to go on, and we're going to do the rest of all the public.

[02:55:46] Hi, Taylor. Come on up. what we're going to do because I do think most of the people in the room many of the people in the room right now are people who who do want to hear this item so after the public comments before we go to our break we will take the west park item up as an action item and then take our break so that we can some people are not sitting here um while we're while we're doing our break so hello taylor it's good to see you you're going to be followed by beth erickson followed by britain Rogan. Thank you very much chair and thank you supervisors. I'm here tonight just to

[02:56:21] ask you know tell you how much Peterson companies enjoys being a good developer and working with the board of supervisors throughout many developments in in Loudoun County and I think that one thing that we pride ourselves on is our reputation and our willingness to listen work with with each of you over the years we've listened and changed a lot of

[02:56:52] projects right yeah and even though we have the the positive the the approval from the Planning Commission and we came to the board we heard we heard some concerns and we're constantly trying to modify and work on those concerns a lot of the comments that that were made were as it related

to the to the view and the look of the buildings so I just wanted to let you know that we we did change our tenant so that we changed our architecture and we were able to

[02:57:31] modify our entrances which provides for greater tree-save area and more specimen treaties. Supervisor Turner had been a proponent of battery storage and we do have battery storage as the good battery storage facility as well. What I ask for tonight is just that you approve a deferral or remand to the Board of Supervisors so that the county staff has an opportunity to review the newer plans that have been submitted with these changes that have been done at the

[02:58:09] requests of some of the supervisors and comments that we've heard the staff today told us that they weren't prepared to present the door that I'm done you're done okay thank you so much thank you thank you so much Beth Erickson and I'll be followed by Britton and Rogan.

[02:58:33] - Good evening. - Good evening, with great thanks to many of you who participated. It is my pleasure to provide an update on Loudon's Scrape for the Grape campaign, protecting Loudon's wine industry from the invasive spotted lanternfly. Developed in cooperation with LIRA, the Loudon Wineries and Wine Growers Association, and Virginia Cooperative Extension in 2024, we welcomed Loudon Wildlife as a partner this year as we hit many key milestones.

[02:58:59] We had a record 1,114 residents volunteer from 91 HOAs representing each of your districts. There were nine HOAs from the Algonquian District, 18 from the Ashburn District, 10 from the Broad Run District, 17 from the Catoctin District, three from the Dulles District, 17 from the Leesburg District, seven from Little River, and 10 from Sterling.

[02:59:23] What we know is that Loudon's wine industry is important to our neighbors. After all, more than 50% of all wine club members are Loudoun residents. What we didn't know was how much they cared about the survival of this industry. Over the past three years, 2,306 Loudoun residents have taken action to remove a combined 20 million spotted lanternfly eggs to protect an important part of Loudoun's economy, our more than 50 wineries and vineyards that comprise D.C.'s wine country.

[02:59:54] As we enter into the next phase of the Rural Zoam, please remember that over the past three years, 2,306 residents left their homes to do the hard and often disgusting task of removing 20 million spotted lanternflies. They care about our wineries, they acted, and they made a difference.

[03:00:12] On behalf of a grateful industry, I cannot think of any better example than demonstrated support for our wineries than those who came out to do the hard work. thank you all very very much thank you thank you miss Jackson just give me a second if anyone else is still here from either PEC or the Environmental Commission pretty soon we're you know for all the incredible work of scraping spotted lanternflies which thank you Mr. Turner for going out and scraping thank you Miss Bricksman thank you my chief of staff thank you Mr. Crony for going out

[03:00:44] and scraping but thank you for everyone who did go out and do that but even with that amazing effort We're still going to start pretty soon seeing the spotted lanternfly nymphs. If anyone later on who's from the Environmental Commission or PEC could maybe talk to us a little bit via email or in the boardroom, however, about the most effective way to kill the nymphs.

[03:01:14] I know that a lot of people don't want to use pesticides that are poisonous pesticides. And if not those, what should we use and how do we kill the nymphs? Because, you know, you want to kill the grape, I mean, you want to kill the egg sac, and then you want to kill them in their infancy if you can.

[03:01:32] So if we can have anyone who has that knowledge to come talk to us about that, so we can put that out, that would also be really helpful. And Madam Chair, if I can suggest, most certainly Virginia Cooperative Extension has tremendous information, as does Lyra, as does Loudon Wildlife.

[03:01:49] Okay, thank you. So thank you very much. Thank you very much. Britton Rogan, followed by all the Zershmeets have come this evening. Haley Zershmeet after Britton Rogan. Good evening. Good evening, members of the board. I'm here tonight to raise serious concerns about my neighboring property and the ongoing harm it has caused both to my business and to my family's quality of life.

[03:02:13] I'm in the Little River District south on Route 15 near Gilbert's Corner. I run a horse boarding business, and in recent months, I've had potential clients tell me directly to my face that while they respect my work, they will not board with me because of my neighbor's operation and its reputation.

[03:02:30] I've lost multiple opportunities for the same reason. The measurable financial harm is tied directly to the neighbor's activities. Beyond the business, the situation's affecting my children. My neighbor has entered my property without permission and destroyed my children's garden. We've also had repeated incidents of intoxicated guests trespassing deep onto our property, approaching our home, where my children play in the backyard.

[03:02:55] The daily noise is relentless. It begins at 4 or 5 a.m. with dumpster activity. It shakes everyone in the house awake. The baby cries. Then come two hours every day of gas-powered equipment from 8 to 10 a.m., even in the rain. It is followed by amplified announcements and events loud enough to hear clearly inside of our home with the doors and windows shut.

[03:03:16] Traffic tied to this property brings constant honking, illegal turns, frequent accidents. Ambulances can't get down Route 15 because of the overcrowding. In the evenings, live music continues through the children's bedtime. Late night noise then picks up revving engines, racing motorcycles, often lasting until 10 or 11 a.m.

[03:03:33] I'm sorry, p.m., 11 o'clock at night, only to start again a few hours later at 4 a.m. That's five hours of quiet. there's concerns about sanitation persistent waste owners potential safety and child labor violations at this property I've made over 120 calls to the sheriff's office in less than a year and I have that documented the current reporting system the Lex system I've tried using it it's not working residents need a more effective way to be heard about their neighbors I urge the board to take action these conditions should not be allowed in our community thank you thank you very much thank you very much Haley will you give

[03:04:08] me just give me one second okay Haley Schmid followed by Ella Schmid good evening all right good evening madam chair and members of the board my name is Haley Schmid and I'm speaking on behalf

[03:04:44] of the Schmid family brands Great Country Farms Blumont Vineyard Dirt Farm Brewing and Henway Hard Cider located in Blumont our family has been blessed to welcome thousands of Loudoun residents and visitors over the last 33 years Loudoun County has long been recognized for balancing economic growth with the preservation of the western rural landscape. The rural policy area covers approximately two-thirds of the county, and its success depends on one simple truth. There must be a viable rural economy to preserve rural landscape. When we were children, our Pawpaw often spoke of Loudoun's dairy farm heritage. Today, only one dairy farm remains. Farmers are

[03:05:23] entrepreneurs, and Loudoun's farmers have shown incredible grit and creativity by reimagining how farmland can remain productive. Today's rural economy is broader than the traditional farm. It includes value-add agriculture, pick-your-own-farms, and agritourism experiences, like vineyards, breweries, and events. These activities generate hundreds of jobs and keep farmland in active use. They bring visitors who support the entire loud economy and don't require additional services, such as schools. These businesses are filled with their own farming challenges. Just today, we walked the fields following last night's hard freeze and found

[03:06:00] sections of the orchard to have an estimate at 90% loss. None of the first strawberry blooms made it last night. The vineyards across the county are reporting similar numbers. We are fortunate to have many vines on higher elevations in the mountainside overlay that showed little damage, so they made it. We're grateful that after more than 70 hours of public discussion with residents, conservation groups, and businesses, roughly 80% of the TLAC motions are supported by the rural community. The progress reflects a collaborative spirit that makes Loudon special. However we respectfully ask that the Board of Supervisors reconsider several motions that could unintentionally

[03:06:36] limit our agritourism and rural events. Thank you. Thank you. Ella Zershmead followed by Aisha Zershmead. Alicia Zershmead. Good evening. Good evening Chair Randall and members of the Board of Supervisors. My name is Ella Zershmead and I'm speaking on behalf of Bluemont Vineyard with a focus on weddings and special events. We've been hosting weddings since 2003 and are honored that hundreds of couples have chosen Bluemont Vineyard to celebrate one of the most important days of their lives. When couples choose to get married at a vineyard, they are not only purchasing our wines to celebrate with, they are building a lifelong connection with our farm and vineyard.

[03:07:13] Weddings and special events generate more than 10% of our wine sales and are one of the most powerful ways people are introduced to Virginia wine. Many of our wedding guests travel from across the country and even internationally and their first experience learning about Virginia wine happens right here at a Loudoun wedding. These celebrations expand Loudoun's reach and reputation far beyond our county lines. I'm here tonight to urge you to support the TLUC recommendation regarding hours of operations to include Fridays, Saturdays, and Sundays until 11 p.m. for ABC businesses. The potential to further reduce hours of operation on Sundays from 11 p.m. to 9 p.m. would be severely detrimental to the weddings and special events ecosystem.

[03:07:47] Sundays are critical for the wedding industry. Reducing Sunday hours makes this day significantly less attractive for guests and would remove roughly one-third of the available weekend inventory. This would affect not only vineyards but the caterers, florists, photographers, transportation companies, hotels, and restaurants across the county that are part of the wedding experience.

[03:08:05] We respectfully ask you support the TLOC motion regarding hours of operation as proposed to allow us to remain competitive, support tourism, and continue welcoming families who form lifelong connections with Loudoun. Thank you. Thank you. Alicia Zershmeet followed by Kate Zershmeet.

[03:08:22] good evening good evening my name is alicia and i'm speaking on behalf of great country farms and henway hard cider i'm here tonight to express concern about the public assembly motion of greater than 200 guests being forwarded to the full board without tuck recommendation this proposed motion leaves us as an industry with questions does this assembly apply to individual groups or daily visitorship is it crafted for indoor gatherings or total guest count on property are we counting cars at the

entrance will the option to use our hay fields for parking be eliminated. This proposal is overly broad. The list of questions is long and there's much yet to be considered to avoid unintended consequences. At Great Country Farms events are not just

[03:09:00] entertainment. They are education and community based. I lead the education arm of our farm introducing the next generation to agriculture and how their food is grown. You'd be amazed at the excitement and surprise when children learn that potatoes grow in the ground or that strawberries have mother plants. Our school programs regularly bring more than 200 guests to the farm including several Ashburn preschools with over 300 participants.

[03:09:21] Additionally, each summer we donate thousands of complimentary admissions to the Loudoun Public Libraries to encourage kids to read and also get outside. I would hate to see limits on public assembly eliminate these opportunities for Loudoun's children to experience farming right in their own county. We respectfully ask you to ensure that any motion regarding public assembly clearly allows farms and rural businesses to continue hosting events, to sell our agricultural products, and provide educational experiences to Loudoun's children.

[03:09:46] I thank you for your consideration. Thank you. And then Kate Churchmead. It's good to see you. Good to see you. How about those ladies, huh? It's not just me tonight. How about them? Good evening, Chair Randall and members of the board.

[03:10:03] It has been an honor to be part of the TLUC stakeholder process for Western Loudoun Zoning Rewrite. I would like to thank and commend Supervisors Turner and to Crony for establishing and stewarding the process, respectively, and staff for teeing up the issues and questions to guide the conversation.

[03:10:23] The nights were often long and the discussion always passionate. For two years, the members of the TELA committee have listened, debated, and challenged each other to develop the 58 motions that will come before the board on May 5th. One motion that may come forward requests special exception review be put in place for business uses in the mountainside overlay.

[03:10:47] Much of our farm and vineyard sits in the Mountainside Overlay District, as these locations are ideal for grape and orchard growing, as well as pasturing our livestock as part of our regenerative farming practices, and they missed the freeze last night. If these restrictions are allowed to impact the building of fences for livestock, trellising for grapes, or planting of Christmas trees, this could put our farm operation at risk or out of business.

[03:11:15] These and all agricultural activities in the mountainside overlay districts should remain by right and exempt from special exception. The TELUC stakeholder process has been thoughtful and thorough and provides solid direction for staff to draft language.

[03:11:34] Our request is simple. please hold firm on the 44 motions supported by rural businesses and thoughtfully consider the few that raise concern or are being introduced without a TLUC recommendation. Doing so will deliver on the promise the rural policy area, supporting farms, preserving open space, and attracting visitors.

[03:11:56] Thank you for your support of those amazing women and for all farms in Loudoun. Thank you. I'm Kate, well, Kate and all the amazing church women and everybody. We actually, I was talking to the

TILU chair and to staff and we realized that this is going to be a really heavy item to put into a board meeting.

[03:12:19] It's almost impossible to do all those motions in a board meeting, even if I make a consent agenda for the motions that were unanimous. And so we're looking at either May 4th or May 6th to do a meeting of the full board for the Walrus items.

[03:12:35] And so it probably won't be in the May 5th meeting. It will probably be May 4th or May 6th and just this item alone. Okay? All right. Thanks, everyone. Peter Weeks, you will be followed by Todd Nietzsche.

[03:12:53] Good evening, sir. Good evening to all of you. Thank you very much. Peter Weeks, president and friends of the Blue Ridge Mountains, and I'm here tonight to talk about the Mountain Overlay District that Kate was referring to. And one thing about the mountains is that they don't, neither do the creatures who live on the mountain, creatures great and small.

[03:13:24] In fact, unlike maybe the neighborhoods you live in, my newest neighbor is a mother black bear, and her three cubs in my neighborhood. And they're not a threat to the neighborhood, but we human beings are a bit of a threat to them.

[03:13:46] And that's because they need to roam. They need their territory. And for that, they need a tree canopy. They need everything that a mountain provides. And I feel we would all feel a loss if that was taken away, if there was not a possibility for these creatures, great and small, the small ones being as little as salamanders that also need that habitat.

[03:14:16] So gosh, time goes by when you're having fun. So I have to get to the issues. The main issues are residents and stakeholder groups have asked for an end to future non-residential development on the mountainside.

[03:14:34] We're going to continue to press for this. The TLAC also voted to reduce ridgeline features and spring protective setbacks from 300 to only 100 feet, with little input from the environmental community. TLAC also voted to lessen protections for building on the mountain, allowing a 600-square-foot structure to be built without permits.

[03:14:55] That's the equivalent of a 20-by-30 garage. And then also, impervious surfaces are best. Mr. Wicks, you can feel free to email us any comments that you weren't able to make tonight. Right. Okay. You're very kind. Thank you. Thank you, sir. We appreciate it. Todd Nietzsche, you will be followed by, and if I say your name wrong, I apologize in advance, Pranav Seth,

[03:15:25] oh gosh it's s-a-t-h-y-u-h-n-u-h-r-y-e-u-n-n-u-h-n and i am sorry that i will mispronounce that name but you but you'll be right after todd niche if he is here or online good evening madam chair and board members good evening hi good evening i'm speaking on comprehensive plan amendment 2024 0-0-2 and Zoning Ordinance Amendment 20-24-0-0-2. I am a Loudoun County resident,

[03:16:01] a voter, and a parent of children in our local schools. I have served as a firefighter for 21 years. I am here today because I'm concerned about proposed changes that would make it harder for small farm wineries to operate. For years, one of our local wineries has donated their space, staff and time so that my colleagues and i who often work long difficult hours could have a comfortable place for our kids to meet

santa i personally saw the owner of that winery cleaning up at the end of the night doing labor himself so he could provide the space to us free of charge

[03:16:40] without overextending his staff i truly appreciate the work this board does you are the reason we have one of the best school systems in this country, great parks, and well-supported first responders. These are the things that make Loudoun a great place to live. However, small businesses are also a vital part of that fabric. They add the richness and vibrancy that define our community.

[03:17:05] They support other local farms, and as I've seen firsthand, they show up for the people in the community. I'm surprised and concerned that we would consider making things more difficult for the very businesses that give so much back. I urge you to support our farm wineries and the community spirit they represent. Thank you. Thank you, sir. And Pranav, if you are here, you can pronounce your name for me when you come up. Come on up, young man. I'm sorry. I don't want to mispronounce your name. You will be followed by Sarah Strauss. Would you please pronounce your

[03:17:41] name for me, sir? My name is Pranav Satyanarianan. Thank you. And good evening, members of the board. My name and my name is pronounced at the RNN and I am a student at Broward High School in the Ashburn District Loudon is one of the fastest growing and most diverse counties in Virginia Our student population now exceeds 85,000 every day This board makes decisions on transit housing affordability and community safety that will shape our lives for decades Yet unlike our neighbors in Fairfax or Montgomery County in Maryland Loudon County currently lacks a formal mechanism for the youth to Participate in policy. I am here to propose the establishment of the Loudon Youth Advisory Board or the LEAB

[03:18:18] this board would consist of 11 to 15 students representing every magisterial district in our county under the oversight of the county administrator these students would provide formal written recommendations to you all on issues that affect us the most the eliyab is a low-cost high-impact way to build civic capital isn't just about giving students a seat at the table it's about ensuring that the next generation of loudon residents is invested in the success and the governance of our community my goal is to have an inaugural class of members appointed by this fall I provide the full proposal modeled after successful programs in neighboring jurisdictions.

[03:18:49] I ask for your support in authorizing this board and helping us bridge the gap between our county government and its youngest constituents. Thank you for your time and dedication to all the residents of this county. Young man, don't walk away. First of all, thank you and great job. Jason, are you still here? Is Jason still here?

[03:19:06] Has he left the room? All right. Will you do me a favor? Chris, do you mind helping me out here? We actually have that in our county. We have a Youth Advisory Board, and I'd love for you to be on it. And so that gentleman in the back is going to, or Steve, actually, the gentleman in the back is going to get your phone number, and I'm going to give you a call.

[03:19:25] Thank you. Okay? Sure, sure. I'm going to give you a call because we have that, and I'd love that you came up here and asked about it. We're going to get your phone number back there. Inspect the phone call for me before the end of the week. Thank you so much. All right. You're welcome. Good job. Sarah Strauss, followed by Jim Bingle.

[03:19:43] Good evening. Hello, I wore my, I don't know if you remember me, but I wore my lucky shoes. Those are beautiful. Hi, everyone. I'm Sarah Strauss-Entart. My husband and I are the proud owners of Entart Vineyards in Percival. We've been in Nova for almost 15 years and fell in love with Western Loudoun and wanted to create something in this region.

[03:20:03] We purchased a 46-acre piece of land in 2018 with the dream of building a boutique winery that produced exceptional wine true to the region of Loudoun County. we started from scratch shaping the land putting the majority of our 11 acres of vines in in 2019 and we continue to grow since then we're an incredibly small operation it's just my husband and i we have one full-time employee and then we have our vineyard manager and a few hourly associates we also both work full-time the winery business is not particularly lucrative it seems glamorous but when you're crawling in the tank or doing other things it is not it's not an easy way

[03:20:41] to make a buck if you think you put a vine in the ground takes three years to get a grape then if you're making reds two more years in the barrel one more year in the bottle and seven years later voila so and then you have the fun things like we talked about earlier today lantern flies and a devastating frost that just took out probably 70 to 80 of our vineyard i know there's been much debate lately around wineries related to events and compliance so i just wanted to share our perspective we're a really small winery we don't do big weddings but we do really love to host events we have birthday parties retirement parties we do a lot of community events in lincoln we love to do wine tastings for our customers and these events really help keep us afloat it brings

[03:21:19] people into the winery it gets them excited about wine brings them to places they haven't been before and also enables us to continue to sell our product and grow this is a tough business and without events it would be very hard to stay up and running and very hard to do what we did taking a piece of wild land and turning it into a dream on the compliance front we are heavily regulated by the abc the ttb we just had a visit from the odw the other day and we welcome that regulation and we love to work with the county but feel like some of the accusations and things around the wineries have just been unfair so we really appreciate the support of the group and thank

[03:21:52] you so much thank you so much jim bingo you will be followed by bill hatch good evening good evening chair randall and board members i'm jem bingle speaking for pec and with a nod to earth day tomorrow we strongly support staff's recommendation of option one to resolve the inconsistency between the comp plan and zoning ordinance on active recreation in the major flood plain as a member of zoc also please know the zoc vote for something for something else was not unanimous i was not alone in opposing it for the last 24 years the county comprehensive plan has

[03:22:29] envisioned Loudoun's streams to be protected by stream buffers, allowing only passive recreation in the major floodplain to maximize stream and environmental resource protections. The 2002 and 2019 comp plans maintained a consistent overall policy and intent to protect the entire stream buffer area, the associated resources, and most importantly, the area closest to the stream, which is the floodplain.

[03:22:55] Unfortunately, the zoning ordinance only briefly implemented this policy before it was overturned in court in 2004 along with the rural zoning and was never reinstated until now. To avoid delay during the Zora process, the floodplain ordinance was intentionally omitted so that it could be addressed separately and holistically, incorporating updates required by FEMA.

[03:23:19] Staff have worked with FEMA and are now addressing this longstanding discrepancy. Adhering to comp plan policies, our existing and planned parks are mostly unaffected and other concerns haven't been shown to demonstrably hurt residents.

[03:23:34] Protecting our stream and river corridors is essential in policy and in regulation to protect against flooding, avoiding damage to private property and preserving the health and wellbeing of our critical natural resources.

[03:23:49] Thanks for your consideration. - Thank you, Ms. Mingle. Bill Hatch, you will be followed by Robert Griffin. Good evening. - Good evening, board. It's good to see you. Glad that you're here and I'm here. I'm Bill Hatch, we've farmed for seven and a half decades now, farming dairy, beef, and wines for quite a long time.

[03:24:13] We love this farm, and our third generation, who's just now in their 40s, chosen to stay here farming if possible. The desired economy in rural Loudoun is farming. Farming is on a rapid decline. Residential development is much more lucrative. The rapid influx of residents has brought some friction by some of the residents who choose to live in a farming community. Please be aware that farming, that all farming is marginal. We're

[03:24:48] dealing with multiple pressures right now an extreme drought fourth year a frost last night that killed up to half the wine grapes in Loudoun County which has built the wine grapes have built a worldwide reputation infestation of invasive species you know about that and the worst wine economy in decades please be cautious on the legislative side of fixing perceived issues and problems Loudoun unique we have a stellar economy led by huge investment in eastern Loudoun the

[03:25:23] primary investment in rural Loudoun is residential investment in rural businesses needs to be strong or residential will replace the rural economy next another topic the mod needs to be revised in my opinion for administrative review the prohibitive cost of a special exception means farmers with limited resources will sell to developers who have resources. We certainly want to stay farming in Loudoun County. Thank you. Thank you Mr. Hatch.

[03:25:58] Robert Griffin you will be followed by our last speaker which is Victor Block and after that we will take up the West Park item and after that we will go we will take our break and we will take a break and read in the closed session. Good evening Mr. Griffin. Yes good evening. I'm here to make an apology to you, Madam, and to all of the people that have heard me try to speak previously. But my apology is best told by a fictitious story, if I may. There was a family who lived in a rural area

[03:26:30] a few miles from town, and he worked as a union person for a delivery company out of a warehouse, And he made deliveries throughout the county. And then they had a baby, a son, and so he was wondering, trying to figure out what he was going to do to help him.

[03:26:50] Well, he was very gifted mechanically, so he thought, well, particularly in body work. And so he thought to make a side living by doing that work. Well, he's driving through the county one time, and he sees this old 32 Ford, rusty Ford, in the farm.

[03:27:14] So the idea clicked in his head to restore that 32 Ford pickup. He was a good body man, but long story short, he and the son restored the car, and a really great job.

[03:27:31] And when the son went off to school or started, the father was reluctant to let him go, but he did. And so the son is parked at a stoplight, and he's lit up from behind. And the police officer comes up and says, well, I know you weren't speeding or anything like that, but your car certainly looks like it could break the law.

[03:27:54] In fact, it could go 100 miles an hour. But it's a privilege to drive through our town, but it still could go 100 miles an hour. And he stopped at the stoplight. So when he comes back home from school, he's lit up again.

[03:28:12] And he says, well, I know you're not breaking the law, but your car surely can go 100 miles an hour. And so the police officer. Mr. Griffin, I hate to stop you. I'm so sorry. I appreciate that, ma'am. Your time is up. Yeah, I appreciate that. Your time is up, sir.

[03:28:28] I appreciate that, ma'am. Mr. Griffin, I need to stop you. time is up thank you very much that's the problem here and i'm here to apologize and i appreciate that i really do but your time okay cut his mic please mr griff if your time is oh my god here we go mr griffith mr griffith mr griff thank you thank you thank you so much thank you so much thank you so much we thank you thank you so much sir thank you okay mr block you will be our next

[03:29:03] and last speaker good evening good evening uh good evening chair randall supervisors a lot of you know i'm victor block president of latin valley of states hoa we thought we'd let some others speak this time um the sec issued its final ruling or it's actually not final rule it's ruling current ruling on golden mars but this issue is far from settled route four requires school board consent and the school board has said it will not give it route 3a the fallback the commission's own words clearly inferior nearly four times as many homes within 250 feet it is

[03:29:40] just as bad for the schools as route 4 hb 1487 and sba 27 are now law the underground pilot program exists the will of this community is clear and richmond has provided their support 3a does not need to be on the table there are things you can do real concrete steps accept the remaining easements. Support the pilot program and do not signal to the SCC or Dominion that running this infrastructure through our communities or the way it has been orchestrated by Dominion is acceptable

[03:30:18] to this county. And there are alternatives. Alternatives I guarantee will be built just as fast or even faster than 3A. They are not just on the table because Dominion didn't want them. They were never offered up for consideration. Sure, Dominion could spend 90 million or 6 million an acre to buy the land for our substation. But why spend that kind of money to actually run the lines when you could just take land from us? That is the calculation Dominion made. The question is whether this board will accept it. Now you have to be an active participant. You cannot be passive

[03:30:54] on this. Not now. And I need to say this directly. Publicly picking Route 4 when you haven't done everything you can do is wrong. There's still time and it might be time to lay down in front of that bulldozer. Thank you. Thank you, sir. Thank you very much. Thank you very much. Okay, we're going to go on and do the item. So would the staff please come to the table for the disc, well not the disc off item, the West Park Improvement Design Endorsement Item. Would staff please come

[03:31:29] to the table for that item. And then after that, Mr. Turner, you'll be ready to read some closed session? Okay. Good evening, everyone. Okay. Ms. Amstatt, this item does have a presentation. It is 12 slides. Would you like to see the presentation? I know this topic pretty thoroughly, but do any of

[03:32:03] my colleagues? I'll be happy to ask that question. Would anyone else like to see this presentation? Actually, Supervisors, I know you're tired, and I know you want to go on break. We've been on the day since 4 o'clock, but I actually, I know the item pretty well, too.

[03:32:21] I don't know if everyone who's in the room or the many hundreds of people who are watching us right now have seen this presentation, and I think that when we have something that's kind of this important, it's okay to do the presentation again. So let's go on and have the presentation.

[03:32:36] It's 12 slides. I'll make this as quick as possible. Sure, thank you. Chair Randall. So tonight with me I have Michelle Seid from Department of General Services, Mr. Steve Torpy from PRCS, Scott Wurst, Deputy Director for DTCL, and my name is Don Breedice, Assistant Director for Facilities for DTCL.

[03:33:01] slide two. So the West Park Improvement Project was initially adopted in FY23, the Capital Improvement Plan, with funding allocated for planning to begin in FY23 and design allocation to begin in FY24. In April of 2023, the contract was awarded for schematic design services. Design has since steadily progressed, completing schematic and 50% design phases and is currently advancing towards 95 percent design phase completion. In June of 23, schematic design was presented to the

[03:33:37] public at an in-person presentation. In May of 2025, 50 percent design phase exhibits were posted to the project page and a blog post was sent to notify the public of the documents. Following each of these events, a public comment period was held to solicit feedback from the public on the project design between both feedback periods approximately 170 comments or received following these these periods a frequently asked question was posted to the project page to provide feedback to common

[03:34:12] questions the project design was revised to increase the distance between the 21 space parking lot and adjacent properties and revised the disc golf basket locations to increase distance to adjacent properties um at the board's direction on march on the finance committee's direction march 24th dtci parks recreation community services loudon county public affairs and communications and local disc golf club hosted a public disc golf demonstration as directed

[03:34:48] demonstration was held near 500 country club drive between the future locations of disc golf holes one in 18. The participating public was reminded of the Finance Committee's direction to host the disc golf demonstration and inform participants of the upcoming public input sessions on April 7th and April 21st of 2026 where the public could provide input on the design. The LG, the Loudon Golf Disc Association provided information about disc golf, conducted

[03:35:24] demonstrations at holes 1 in 18 and answered questions related to disc golf play and etiquette. The public was also provided the opportunity to participate in disc golf putting and throwing. Next slide. The West Park Improvement Project is located on the site of the former West Golf Course property in Leesburg, Virginia. The project will utilize 134 acre property to provide various Passive Park amenities and water quality improvements. Passive Park of elements include accessible asphalt trails, nature surface trails, natural surface trails,

[03:36:03] and boardwalks in an 18-hole disc golf course. The water quality improvements include restoration of approximately one mile of the dry mill branch stream corridor, creation of approximately 12 acres of wetlands. Next slide. The environmental improvements proposed with the project will be focused on the northern end of the property between clump house drive and country club drive the overall asphalt trail network will connect the entire property and the disc golf amenities will

[03:36:35] be installed along the existing golf course south of country club drive next slide the proposed passive park elements consist of various trails and disc golf will be supported by the standard side improvements for county park facilities of this nature. These improvements include a 57 space

[03:37:07] parking area access from clubhouse drive with an adjacent restroom and pavilion, a 21 space parking area access from country club drive with an adjacent pavilion, renovation of an existing restroom facility with two single seat unisex restrooms, gate access controls at the parking area entrances, wayfinding, and informational signage throughout the park. Next slide. The trail improvements throughout the property consist of three different types of trails, six foot wide

[03:37:43] asphalt trails, six foot wide wooden boardwalk, and six foot wide natural surface trails. Three miles of asphalt trails are proposed throughout the 135 acre property. These access points includes connections to existing sidewalks at the intersections of Clubhouse Drive and King Street, connections to the proposed parking areas and the existing access points at Country Club Drive, Clegett Street, and Bradfield Drive. These access points are illustrated by the blue dots on

[03:38:18] the provided image. A thousand feet of wooden boardwalks are proposed within the site across the constructed wetland areas. The boardwalks will provide the public with a unique view into these environmentally sensitive areas while minimizing the impact to the vegetation and wildlife. One mile and natural surface trails are proposed adjacent to wetlands and stream restoration areas. The natural surface trails will branch off the asphalt trails to provide natural pathways around the stream and wetlands. Next slide. Environmental improvements proposed with

[03:38:56] the project consists of restoration of dry mill branch stream channel across the property and creation of on-site wetlands. The stream restoration will consist of one mile of reshaping and establishing the stream channel, stabilizing the stream banks, and planting within the stream banks.

[03:39:15] This restoration effort will prevent future erosion within the stream, improve the water quality and provide enhanced habitat for native wildlife. Stream restoration activities will generate nutrient credits which will be utilized by the Department of General Services for compliance with the requirements of Loudoun County's MS4 permit. The stream restoration work proposed in this project is anticipated to generate 640 pounds of nutrient credits. As to the project blog on

[03:39:51] November 18th, the stream restoration was expanded to include the removal of the on-site pond. The removed pond will be renaturalized to extend the stream channel through the pond footprint and connect to the stream at the outfall. This effort is required to address the signs of failure identified on the outlet structure and emergency spillway of the existing pond. Slide. This disc golf amenity proposed with the project consists of an 18 hole course which follows the path of the

[03:40:31] previous golf course through the western through the southern reaches of the property. This course includes three accessible holes to accommodate disc golf play for all levels of users. The disc golf course is accessed by the six foot wide asphalt trail to maximize accessibility to the disc golf users while also supporting the same trail uses as the remainder of the site.

[03:40:58] Next slide. The adopted budget for FY26 CIP project budget is \$18.94 million. In winter of 2025, the project was awarded a \$4.1 million stormwater local access fund grant by the Virginia Department of Environmental Quality. This grant provides reimbursement for the stream restoration scope of the

project. To maintain the grant's funding, the project will submit final stamp approved documents to DEQ no later than September 30th, 2026. Next slide. Based on the 50%

[03:41:38] project construction cost estimate, total cost of the project is \$29.14 million. The increase in the project cost above the baseline quantities budgeted in the CIP are associated with the expanded site-wide demolition, erosion control, landscaping, mass earthwork within the environmental improvement areas, fine grading for the trail network, and utility infrastructure costs.

[03:42:08] An additional \$10.2 million is needed in FY27 to be able to award the construction contract at the completion of the design and bid phase. A funding strategy will be coordinated with the Office of Management and Budget prior to the award of the construction contract.

[03:42:27] Thank you for your time this evening. If you have any questions, we are available. Well, thank you very much. We appreciate it. Supervisors, before we go to motions, a motion, and I'll go to Ms. Umstead for the motion, and that is her district.

[03:42:43] Let's go to questions first. Ms. Umstead. Thank you, Madam Chair. I want Don and Steve and Scott, and I want to thank all of you for working so hard on coming up with proposed additions to try to screen some of these facilities from the neighbors.

[03:43:06] The motion that I will make tonight was based on your hard work, and I appreciate your cooperation and your understanding of the community's concerns. So thank you.

[03:43:23] Mr. Crony. Thank you, Chair Randall, and thank you for the presentation. So you mentioned that you increased the disc golf distance between the residential homes. How close is it to the residence right now? What are you proposing? So the minimum distance would be 100 feet from the residential property line. That's what we were able to ensure that each basket would be a hundred feet. A hundred feet. And why the three miles of asphalt trails if this is supposed to be a nature

[03:43:59] park? I would think we'd want to be doing more impervious, more than the natural trails versus the asphalt trails. Why the three miles? So the asphalt trails are existing right now. I've come left over from the golf course.

[03:44:16] So we would be resurfacing those as a way of ensuring accessibility for everyone to come and enjoy West Park. And just to add on to what Mr. Breedice said earlier, with where we're at right now, the 100 feet is a minimum access where we were able to get further distance away, which was in a lot of those areas, we were able to get further away from residential lines.

[03:44:43] okay so you tried you it sounds like you moved it we tried to maximize the distance away and we're able to achieve a hundred feet minimum but where we could go beyond that we did okay and then you have 57 parking spaces is that what i heard total uh 57 parking spaces on the northern lot okay 21 parking spaces on the uh park the parking lot for the disc golf for the disc golf Okay. All right. Thank you very much.

[03:45:16] Mr. Sains. Thank you, Madam Chair. Okay. So clarify again for me. So the asphalt that's already there laid, the three miles, that's from the golf course, correct? That's correct. Correct. And we're only planning to resurface it, if I heard you right.

[03:45:35] There'll be resurfacing. I mean, some of it is in pretty poor shape, so there'll be more than resurfacing. But essentially the layout of where the existing cart paths are is where the paved surfaces will

be. And that was used for golf.

[03:45:50] That's correct. And so no other new trail for disc golf. We're using the course that was for golf. And there will be additional natural surface trails throughout the park, but yes. Right, but I'm speaking more to the disc golf. Okay, so using the existing trail or pathway that was already in existence that was used for the golf course when it was in existence, correct?

[03:46:14] That will serve as that, correct. Now, we had the demonstration earlier from the resident with the chains in the basket. Is there a way to, when you think of basketball, some courts have a chain net, some have a yarn net or whatever you want to call it.

[03:46:36] Is there a way to possibly put a coating on the chains to reduce the sound or look at an alternative besides the metal chains? Yeah, actually after the demonstration, we did do some quick research on there, and there is some other materials that are out there.

[03:46:53] I would need to have a little bit more time to research that, but there are some baskets that are, I believe they're called silent or quiet baskets, and we could certainly research that to do something different from the chains if that is a viable option.

[03:47:11] Okay. And then in regards to some of the complaints or stating that folks will be possibly walking close to their yards, wouldn't that have been the case when the golf course was in existence if people were hitting and teeing off?

[03:47:30] Sometimes the ball obviously goes, Vera's right, Vera's left, and they have to go retrieve their ball. Wouldn't they have to be going possibly into folks' yards or close to? With us not managing that at the time, I mean, we have heard that from the residents, yes.

[03:47:47] Okay. So let me ask it this way. Are the feet away from property lines, is it closer or about the same or further than what it was for golf? The 18 holes of disc golf are isolated to the back nine of the former golf course.

[03:48:12] So, yes, I mean, close proximity to what was previously there as part of the golf course, yeah, I would say yes to that. Okay, thank you. And if I may, Madam Chair, just to add to that, when we went back to look at the relocation of boxes and, or tee boxes and baskets, we did try to move that more in line with where the fairways were of the original golf course.

[03:48:41] Okay, okay. Centered more. yeah okay miss brixman uh thank you madam chair sorry for the late light um i uh appreciate all your work on this um so it's a passive park and i just wanted you to address one of the comments tonight about um it's not going to be like manned 24 hours like there aren't going to be people how do I want to put this? There won't be parks and rec people managing the park on a daily basis,

[03:49:16] but that doesn't mean there won't be maintenance, right? I mean, you're going to be maintaining the park as you would any other park. That's correct. And there are certain requirements that we have to follow inside of the conservation easement on how we maintain. But as we do with any of our other staff parks particularly the ones that have daily use we do have folks that are going by

[03:49:46] every day to check on okay the facility okay and then um i was wondering about the restrooms and we had this conversation at finance but just for clarification um i mean i have hankin park near my

house as far as i know there's never been any activity in the bathrooms at odd hours have you experienced that around the county at all so the as i mentioned at finance

[03:50:19] we have gone to a type of automatic electronic door that when the park is closed those bathrooms will lock you can get out but you can't get in after lock and it's it's a way of ensuring that there is an after hours activity in the bathrooms okay and as far as you know we don't have folks playing disc golf at night after dark no none of our disc golf courses are lit yeah and this one

[03:50:53] would not be. Okay. Okay. Thank you. Mr. Turner. Thank you, Madam Chair. Are the parking areas impervious? Yes, sir. Is there any way we can make them pervious with crushed gravel instead of paving them? And I mean, why pave them if you can have a gravel parking lot and make them pervious? I mean, it generally is a maintenance issue. And Parks prefers that roadways or

[03:51:28] asphalted parking areas are asphalt okay I was not at the demonstration is the object to get the disc inside the basket or is it do you get points or some score if you hit the chains I was trying to imagine why because if it's it get it in the basket you you can get silent yeah it's a silent basket easily the disc is caught in the basket of chains okay so because I'm thinking okay you get points, and if you're 40 yards away, you can hear the disc hit the chains, and that's why you want the noise. But if the object's to get it in the basket, then we can come up with a silent basket, I think, pretty easy. I think that's what we were anticipating, looking, and investigating.

[03:52:08] Okay, thank you. How much of the project cost is dedicated to the fact that there will be a disc golf course built? So removal of the disc golf course would be about \$45,000.

[03:52:29] Oh, okay. So it's a very small percentage of them. Very minimal, very minimal. Does it need to be 18 holes? In talking with the folks that play disc golf, they will come out and play 18. So if it is a nine-hole course, they would likely still be there playing.

[03:52:51] But typically our courses are 18. And again, the 18-hole disc golf course is on the footprint that was about half of the 18-hole regular golf course. So I neither play disc golf nor golf, so let me try to understand the difference between these two games.

[03:53:11] Because I keep hearing people say, well, golf is a more intense sport. And I think that might be because the golf ball goes further, faster, and it's harder, right? I'm assuming that's why people say it's a more intense sport. A golf ball will break your window.

[03:53:28] Frisbee will not. I'm assuming that is why they say that. However, for golf, if you're hitting a golf ball far and fast, aren't you kind of like on a middle fairway so you may not be as near homes versus if you're putting in a golf, if it's a putting, you're not as – Oh, God, I'm not saying this right.

[03:53:54] If you're playing golf and you're trying to hit that ball down the fairway, that fairway is probably not near Holmes because it's down the fairway. If you're doing a putting when you get close to the hole, then you might be closer to Holmes.

[03:54:10] In disc golf, is it the same thing? So are you throwing a really long distance away from Holmes and then when you get closer, how is it different or not the same. And why do you believe, I'm not saying why do you believe, I'm saying do you believe golf is a more intense sport? So I think in general the disc golf and golf itself has the same general concept of trying to go from a tee box to a hole. And essentially in disc golf your

[03:54:46] basket is your hole. Traditionally disc golf is a much shorter distance because as you mentioned hitting a golf ball unless you're me you can hit far and it is more of a it's more challenging I believe hitting the golf ball hundreds and hundreds of yards and maintaining it in that fairway whereas a disc golf course is a little bit shorter you see on some of the holes that we have laid out

[03:55:19] that there are things to make it challenging for the disc golf like there may be a basket on the other side of a tree or there may be a dog leg in the actual hole itself intensity I would tend to agree with you that regular golf is a more intense sport, which is why I believe you've heard some of the public comments about disc golf that everybody can play because it is more of a, I mean, it is

[03:55:58] competitive. There's no doubt that it's competitive, but it is also a very social outing for a lot of people who play i understand miss umset this is your district i will go to you for a motion uh thank you madam chair i move the recommendation of the finance government operations and economic development committee that the board of supervisors endorse the proposed major design elements of the west park improvements project and direct staff to revise the disc golf design to ensure disc golf baskets are located no closer than 100 feet from any residential

[03:56:37] property, to add additional native planting where disc golf baskets are located within 125 feet of any residential property line, and to increase the residential property line landscape buffer at both parking lots from a screen 2 density type A to a screen 3 density type C buffer pursuant to the town of Leesburg zoning ordinance prior to proceeding with the completion of the final design documents. Second. I

[03:57:12] would second that. I would second that. Would you like to have an opening and I might have a friendly to your to your motion but would you like to have an opening I guess I thank you I'd love an open okay okay thank you to the community to those of you who are concerned we we have folks who've come in on both sides of the issue and and their Leesburg residents we have worked hard with staff and staff has done the heavy lifting to try to address the

[03:57:48] concerns that some of the neighbors had about these stations being too close to their homes. So with the 100 foot separation and if it's within 125 feet of a residential property line, the additional plantings to help screen it, we're hoping to address some of the concerns of those folks on the parking lots we are going with the highest level of

[03:58:21] screening that the town ordinance accommodates so rather than having a few trees or shrubs we're going with a maximum odd number to screen parking areas from the homes you heard tonight I thank my colleagues for bringing up the issue of trying to find a quieter basket and I'm confident staff will be able to certainly look into that and if that is available they will be able to accommodate that so I really appreciated the speaker who had the basket and who

[03:59:00] who banged it with the the disc and she is absolutely right if that is what you were hearing, it would be pretty horrific, but with the separation and the additional plantings, I don't think anybody's going to experience that level of noise.

[03:59:23] But that was one of the best illustrations that I've ever seen in the boardroom, so I appreciate that. I know a lot of you who don't want it at all will be disappointed. But I think it was always going to pass the board.

[03:59:40] And I think this is going to help protect those residents who live along the course. So thank you very much. - So my friendly amendment before I call on Ms. Brixman is that it would be a, I further move that the staff research the possibility of having quieter nets or cages or whatever they're called, that that's actually baskets, a friendly amendment that I would add.

[04:00:15] And by the way, I was actually gonna follow the district supervisor's vote on this, so I'm not sure if it would've followed or not, to be honest, passed or not, but I would add that as a friendly amendment. - I would accept it as a friendly amendment. - Thank you. Ms. Bricksman.

[04:00:30] - Thank you, Madam Chair. I'm definitely going to be supporting the motion. And I know that Supervisor Umstad has struggled with this over the past week since the Finance Committee meeting. And I think this is a nice compromise that she has managed to come to.

[04:00:48] I just, you know, the reason our county staff would be looking for another place to put disc golf is because we have a demand. And I know that the staff at Parks and Recs doesn't just ask for stuff for fun.

[04:01:08] You ask for stuff because you've done surveys or you've studied the issue and you know that it's a popular sport. And so you know that there's a demand and that it will get used. I think that it needs to be clarified that this is a passive use in a passive park.

[04:01:28] not you're not asking for a special exception to allow an active use in a passive park this is a passive use um actually regular golf would not be a passive use regular golf would would require you know fertilizer and consistently mowing and probably some grading and making sure you've got water elements and all those things so that is not a passive use um and so i appreciate the the forward thinking in that hey we can actually provide an activity even though

[04:02:01] this is a passive park in combination with some of our efforts to restore the stream and get nutrient credits and those sorts of things and then I did want to point out that this this comes with a lot of support from different areas of the community I mean we've received letters from you know not only the disc golf folks of course are supportive but loud and hunger relief is supportive because they know the community has brought in hundreds of thousands of dollars because they want to give back to the community as well so they've they've done events to raise money for loud and hunger

[04:02:36] relief nova parks wrote a letter of support basically because they operate disc golf and they know that that community is a respectful community and they clean up after themselves and they're not a disruption we had morven park write a letter of support because morven park hosts disc golf and you know how protective morven park is of their property and so i can't imagine that morven park would let disc golfers come if they thought that they were going to be disruptive and disrespectful um in for on the property um and so and of course i really appreciate piedmont environmental council coming in and supporting as well and i i do commit to um trying to learn

[04:03:15] about the upstream issues that they talked about. So really happy to support and appreciate the compromise. Thank you. Thank you. You know, these decisions are hard, and I'm sad people left. These decisions are hard because a lot of times when I'm going back and forth and back and forth, and I hear all the really good points Ms. Bricksman just made, and then I hear people who don't want it. Honestly, when I'm in either a 50-50 or 49-51 place, sometimes my final decision is, would I want this at my house?

[04:03:49] And the answer is no. I really wouldn't want this near my house. And I also think that when people move into a house, they know what was there when they moved in. So if I know golf is there when I

moved in, then I have no right to complain about golf. That's why people surprise me when they complain about airport noise.

[04:04:07] There's an airport there that you might hear airport noise. But when something completely new comes in, even if it's a lesser use or a different use, I bought my house first. And this wasn't what I bargained for when I bought my house.

[04:04:24] And so I think it's different, you know, with all the, I believe, I know Parks and Rec, because I'm my favorite department. I know Parks and Rec, I know all the work they do, but that can't always outweigh the residents who actually live there already.

[04:04:41] And so I will follow the district supervisor's motion, and I know that there's a lot done on this, and I do realize that all the things that Ms. Bricksman said, they all did say yes, but they don't live there.

[04:04:59] They don't live there. The people who lived there were the ones, I don't think we had one person living there that said yes. So yay, Marvin Park, and yay, everybody else. they don't live there. And I don't think we can just, I don't think it can just be like, let's listen to everybody else and not listen to the residents who did not sign up for this when they bought their house. And I know we need more activities for kids. We have, you know, we have too much screen time. We have obese children. We have childhood diabetes. We have obese adults. I get it. I get it. I get it. People need to move more. But I also know that if I buy

[04:05:37] my house and if I got a chipmunk near my house, then I'm going to live with that chipmunk. Okay. I may not want to live with a family of mice just because there's a chipmunk there. You want to have what you knew was there.

[04:05:55] I never want to live with a family of mice, by the way, not ever. But I was going to follow the district supervisor on this, and I still will, but I will say that it says something to me when everybody else says yes but the residents are like no maybe not so but I will follow the district supervisor on this I think she's worked hard on it and I do think that her conclusions make sense especially if we can get quieter baskets would you like a closing Ms. Umstad?

[04:06:31] no thank you Madam Chair motion was made by supervisor Umstad and I second the motion all in favor who say aye Opposed? Mr. Kirsten, are you voting? You're voting. You're voting. Hello, Mr. Kirsten. How are you?

[04:06:47] Okay. That motion will pass 8-0-1 with Ms. Glass being off the dais. Supervisors, we're going to – thank you very much, everybody. We're going to move to closed session, but we haven't had a break. Does anyone need a break before you go to closed session besides Mr. Kirsten?

[04:07:04] Yeah, let's do that because I think we should do that. Let's take five minutes and then go to closed session.

[04:07:10] We are back, and Mr. Turner is going to read us in the closed session.

[04:18:21] I move the Board of Supervisors to recess this public meeting and enter into closed session pursuant to section 2.2-3711A3 of the Code of Virginia to consider the acquisition of a parcel of property for public use in Ashburn, Broad Run, Leesburg, and Sterling Election Districts.

[04:18:39] did i read the wrong one sorry it should be yes thank you disregard i move that the board of supervisors recess this public meeting and so yeah we didn't vote on that so it doesn't apply i move that the

board of supervisors recess this public meeting and enter into closed session pursuant to section 2.2 3711 of the code of virginia to discuss contract negotiations where financial interests of the county are involved pertaining to a memorandum of agreement second discussion on the motion all in favor say aye aye opposed that moment that the moment won't pass

[04:19:16] the motion though will pass 801 we are in closed session okay supervisors we are back and um mr

[04:51:49] turner is going to read us out of closed session i move the closed session be adjourned that the board of supervisors reconvene its public meeting with the minutes of the public meeting should reflect that no formal action was taken in the closed session and further move that the resolution certifying the closed session be adopted and reflected in the minutes of this public meeting second okay i get the second mr sainz discussion on the motion seeing them i'm able to say aye any opposed everyone please affirm miss brixman affirm affirm affirm affirm affirm affirm and i

[04:52:24] affirm as well um that motion passes 801. um we have a motion out of closed session 801 yeah all right we have a motion i move the board of supervisors award a four million dollar grant to the laws domestic violence and sexual assault services to be used for the construction of a new 50-bed domestic violence shelter which will provide emergency shelter

[04:53:01] services interim housing and key community resources for adults and children facing danger and life disruption due to domestic violence and authorized the county administrator or his designee to execute the grant agreement setting forth the terms of the grant and approved as to form by the county attorney i further move the board supervisors appropriate four million dollars of fy 2020 2026 general fund balance for this purpose and carry over funds to future fiscal years for this purpose motion made and thank my supervisor to crony thank you um it would be

[04:53:40] a wonderful day if the the moment we stop needing to have a shelter our funds our capital projects or anything for uh victims of domestic violence i can't wait till that day happens and we can make this shelter something else but that's not the the day we're having today laws has been doing this work for years and they have professionals who do it well. They first contacted me about

[04:54:11] this shelter and walked me through the designs, I don't know, it's been well over a year now. And they have had and have started a capital campaign. So I will say that I appreciate all the work that laws does and is doing I appreciate all the work that all of our domestic violence programs and partners do whether it be a silence no more we've been given back whoever it may be I I'm also very pleased that we no longer decide that if a person

[04:54:48] is a victim of abuse they are the ones that have to leave the community and have a shelter space or a place where they can get help back in some corner of a forest, but they stay in the community because before we would often remove them from the community when they were the victims, which actually made them more isolated and felt more victimized, and we don't do that anymore, nor should we.

[04:55:19] And this shelter will also have case management, sometimes called wraparound services. And so all the things that are needed to help get somebody back on their feet, whether it's financial help or help with getting certifications or that type of thing, will be available as well.

[04:55:39] We, this board, and this county are committed to taking care of people who are just maybe in some of the worst spots of their lives and what we know for sure is that we don't take care of people during

those times it just gets worse and so I won't say I'm happy to make this motion because I wish I didn't have to but I will say it's an important motion to make and I want to thank everyone who does this work and I want to thank staff who's worked so hard on this item as well.

[04:56:11] Anybody else? Okay. Thank you. All in favor, please say aye. Aye. Any opposed? That motion will pass 8-0-1. Supervisors, we will do our last, our second closed session at the end of the meeting. We do have one more to go.

[04:56:29] But right now, we're going to continue on with our action items. And I think we could probably get Cochrane Tech kind of bounced out faster. So if everyone is here for Cochrane Tech, would you please come down?

[04:56:52] Good evening, good evening, good evening. Oh, gosh, I'm not sure. Mr. Rogers. Well, Mr. Rogers, I'm not sure how to do this because I know that there are updates, But I also know that there may be some voting on what's already been existing.

[04:57:15] So are staff giving us updates or are we just going to a motion? Because if they gave us updates, are we voting on updates or are we voting on what already exists? I'm not quite sure. Okay, so this case is coming back before you after the public hearing.

[04:57:34] You should hear from the staff on what changes have been made. And then at that point, I would go to motions. Okay, I'll do that. then I'll well and then if anyone wants to ask questions they're not gorgeous all right hey how's it going um we are ready for any updates when you are okay uh thank you good evening my name is allison britain with the department of planning and zoning i'm here for cochran tech uh just as a quick reminder uh this application is uh to uh rezone the property from the joint land management

[04:58:10] Area 3 zoning district to the IP zoning district to permit certain IP uses. It is also a special exception to permit the data center use. Just going to jump ahead real quick to updates. There are several. There were revised materials to this application submitted on April 16th, which staff have not fully had the opportunity to evaluate. Some of the changes I can highlight were changes in the elevation graphics, the location of the building footprint, the size of the development area, the location and size of the proposed battery storage facility,

[04:58:50] changes to the roadway transportation, the site access. There are proposed inter-parcel connections, internal circulation sidewalk, social gathering areas, bicycle parking, tree conservation, stormwater, pollinator meadows, reforestation areas, and buffering.

[04:59:07] And for that reason, staff are recommending that the board forward this to a future business meeting so that there's opportunity to consider all of these changes and bring forward an analysis to you. Thank you very much. Can we do it all in a motion, guys, or do we have questions outside that you need to ask before a motion? I'm fine either way, but can we do it in a motion?

[04:59:31] Okay, Ms. Umstead, would you like to make a motion? Yes, ma'am. I move that the Board of Supervisors Forward-Legy 2024-0037, Cochran Tech, ZMAP 2024-0012, Specs 2025-0025, Specs 2025-0029,

[05:00:00] specs 2025-0034, specs 2025-0054, and specs 2025-0111 to the June 16, 2026 Board of Supervisors business meeting for action.

[05:00:19] Motion is made. Second, Ms. Basil Letourneau. Discussion on the motion. Ms. Umstead. I think staff did a very good job outlining the changes that the applicant has made and staff's need for more time to evaluate those changes.

[05:00:39] I know the applicant has been talking to other members of the board trying to accommodate concerns that have been raised by members of the board. And I think the fairest thing in this situation is to allow these changes, which appear to be attempts to meet any concerns of the board.

[05:01:07] I think the fairest thing is to give the applicant and staff more time to analyze this. Thank you. Thank you. Ms. Letourneau. Thank you, Madam Chair. I have not been supportive of this application because of the location and the visibility. I don't know whether it's possible that the application can be modified to the point where I might support it, but we just heard a laundry list of changes that have been made to the application because of a change in the tenant for the, essentially the developers found a tenant who is now apparently willing to come in and make considerable changes to the application.

[05:01:46] It may very well be that I'm still not going to support it, but I think the board needs to be careful about about rejecting um or not allowing for changes that are moving in the direction that the board wants um now i'm frustrated because applicants need to bring the best version of their applications to the board and not require this sort of back and forth that happens and so that message should be sent to the development community that you know you should listen to the comments at the public hearing and realize you know or even earlier and realize that okay if there's more we can do we should do it soon and so I can get the frustration that that

[05:02:25] didn't happen in this case and the feeling that well we've already had this application around but there's nothing in the rules of order about this there's precedent in both directions that the board has done this I don't think we should go out of our way to help a particular applicant but I also think that if the application completely changes then we should at least hear what those changes are and allow them or allow staff to analyze it and then present to us what we're actually dealing with. And then if we choose to deny it at that point, then I think our bases are covered and on more firm ground. And I think I would feel better about process doing that. So

[05:03:01] that's why I will, I seconded Supervisor Rumsah's motion and we'll vote in favor of the deferral. Thank you. Mr. Kirshner. Yes, thank you, Madam Chair. I'll associate most of my comments with Supervisor Letourneau. I did receive a call from the applicant today, left a message for me while I want my travels. I think they were under the impression that they could get it deferred. Maybe that is or is not the case. It sounds like we're making this motion and may not have the support.

[05:03:28] Again, like Supervisor Letourneau, don't necessarily, not necessarily a fan of the application as originally presented per se, but I do think that they have, if they have tried to our way as staff suggests on some of these matters and more time would be helpful to improve the application and meet some of the things that the public and this board has suggested then we give them that time i think that's an appropriate level of respect and mutual mutually working together

[05:03:58] and if at that time we don't like it then we can vote no thank you well you're good okay um i spoke briefly with the applicant walking in and um there are aspects of this application and i i completely respect supervisor turno's comment about really basically due process and and rules of order um there's aspects of this application that just i'm not going to ever get my arms around i have enormous respect for

the applicant but i just am not going to get my arms around some aspects of this most notably location and the steep slopes right on the banks of the goose

[05:04:38] It just really doesn't sit well with me, so I won't be supporting it. I am almost persuaded by the due process and the rules of order. I don't, can staff let me, how many times have we deferred this application, do you know?

[05:04:58] Twice, yeah, and that kind of speaks to Supervisor Letourneau's point, you know, give us your best game at the outset. But I understand the situation has changed.

[05:05:15] At this point, I just can't support the deferral. Thank you. Thank you. It is only because of my respect for this particular applicant, my respect for the Peterson Group, that I would even have considered given this application a deferral.

[05:05:34] And it's because they have done and have always been very, very helpful and very honest and very upfront. And I have been as well with them as I try to be. I have a couple of frustrations, and I do hear what Mr. Kirshner and Mr. Letourneau are saying, and I do remember what Umstead is saying.

[05:05:53] I do think that if an application can be changed, even with a new tenant, this much, this quick, this probably could have happened earlier. And this was because I believe the applicant thought this might go down, and we're trying to do some things differently, which I understand that.

[05:06:13] But one of the things that we hear all the time on this board is we take too long with applications. We hear that all the time. And I want to remind people that the same staff who work on these applications work on the same applications that people come to us and say developers, residential and business developers, come to us and say these things are taking too long.

[05:06:38] You can't be deferred two, three times and ask to be deferred one more time on one application and then later on complain that we take too long on another application. It's the same staff trying to work these applications through. And so as we have taken up the responsibility of figuring out how to get things done quicker and get things through, the development community at large were part of those discussions of what needed to happen and didn't need to happen.

[05:07:16] I cannot see continuing to push an application off, especially when the land use itself won't change. The land is the land. I can't see continuing to push that off when I don't believe that in the end I'm probably going to support it anyway, thus making other applications that we might have sit for a longer period of time.

[05:07:43] That just doesn't make any sense to me. I have massive respect for this applicant. I have massive respect for the Peterson Group and everyone who's worked with them. But we have deferred this application for one reason or another more than once.

[05:08:00] and i understand the the request but i do think we've done our due diligence and i am not willing to defer it again nor have our staff keep working on this again and making other things set and wait with respect i'm going to be a no on this item would you like to have a closing no ma'am all right mister i mean uh miss umstead made the motion mr letourneau seconded the motion

[05:08:29] All in favor say aye. Opposed. So that motion will fail. 1, 2, 3, 4, 5, 3, 1 with you voted yes. You voted yes. Okay. 5, 4, 1 with Ms. Glass off the dais.

[05:08:49] And so let me just say Ms. Bricksman voted yes. Ms. Umstead voted yes. Mr. Kirchner voted yes. A 4-4. That's right. So it still fails. It still fails a motion. Having said that, we soon need to dispose of the motion. Yes. Okay. Well, Mr. Rogers, we could dispose of this motion right now, or we can wait until Ms. Glasgow's back.

[05:09:19] If the board's going to wait, then you should send it somewhere. A 4-4 motion. Fails that motion. Fails. However, it's not a final action if the board decides to push it to a future agenda.

[05:09:36] Well, the thing is, though, I can make the other motion. And even when Ms. Glass comes back, if she wants to bring it back because she wasn't here, she can still do that. Under the rules, she would have to do a motion to reconsider at the next business meeting. but she but she can she can okay at the next business meeting she can do that right so i'm going to make another motion i'm with the board supervisor supervisors denied legy 2024-0037

[05:10:11] cochran tech zmap 2024-0012 special exception 2025-0025 special exception 2025-0029 Special exception 2025-0034, special exception 2025-0054, and special exception 2025-0111 based on findings for denial provided as attachment 5 to the April 21st, 2026 board supervisor's business meeting action item.

[05:10:43] Motion made and seconded. Motion for denial. I don't think I need to make the same arguments again because the arguments don't change. Yes, sir. May I add another ground for denial, since we don't have approvable proffers, is that the applicant has not properly mitigated the impacts of this development through proffers that can be accepted by the county.

[05:11:08] That would be in addition to the ground. We have, yeah, that's another finding point. Yes, I just don't know how to do that because you can't make a friendly amendment. I'm asking you if that's. I would accept that language, and that would be my further move for me.

[05:11:28] Thank you. Thank you. I don't have any other comments to make. Does anyone else have any other comments to make? Just a question from Mr. Rogers. Mr. Rogers, so we've now got a motion to deny. If it passes, the motion's denied.

[05:11:46] Supervisor Glass can ask for a reconsideration at the next business meeting if the applicant successfully gets the proffers to legal form between now and then then your added reason for denial evaporates but the two standing reasons for now would still stand on the reconsideration correct yes sir that's correct okay thank you madam chair yes sir i'm sorry yes ma'am thank you um i'm going to support the motion to deny um i can't support the application as it stands right now, I was willing to let it be deferred one more time, but as it stands right

[05:12:25] now, I would not be supporting it based on the findings for denial presented by Mr. Rogers. Thank you. Thank you. I'm a little confused, Mr. Rogers, with what Mr. Turner just asked. So So, whenever Ms. Glass gets back, if she wants to look at this again, wouldn't she have to at that point look at it through the—so I guess you all won't do anything else with this now if this motion passes.

[05:12:58] You would be done with this if this motion passed. And so you wouldn't then try to put—you wouldn't put the profits in place or anything anyway? We would be done. We would have proffers or that the applicant may go back to another proposal they had before with approvable proffers or come back in and we can say that the proffers they have now are approved as to legal form. I just want to be really, really fair to Ms. Glass and not have her come in and be kind of in the middle of confusion. So if she wanted to reconsider, we would be reconsidering

[05:13:29] what's on the table tonight, not what we are denying right now, not the new information. The motion to reconsider puts the matter back on the board's agenda. If something has changed between now and then, then the matter, the case would be as of the date it's being reconsidered.

[05:13:52] Okay. Okay. All right, then. That's okay. Well, I guess that's, we'll look at that when we get there then. All right. I made the motion. Supervisor saying second the motion. All in favor, please say aye.

[05:14:07] Aye. Opposed. Nay. Okay, so that motion will pass With just supervisor um step voting against the motion and supervisor glass not being on the data switch to 7-1-1 motion Anybody else anything else? All right, let's go to Thank you item number Do we do to it? We haven't done anything Let's go to 2a Rivers and stream quarter resources associated with major floodplain

[05:14:45] well we've done some things hello how are you good i just told my husband we went from almost first to almost last i'm sorry i'm sorry it's all good it's all good chair randall the ruiner of marriages i am sorry oh it's fine it's fine you have a lot to juggle so i really appreciate um

[05:15:22] the time this evening so i'm really just the introduction we do have a powerpoint this evening Many of you were briefed on this topic, so in the interest of time, I'll defer to the board whether they would like to see that PowerPoint this evening, or just go on and have us do a quick presentation for your consideration of a topic that's been before the board and TLAC and back to the board and ZOC.

[05:15:53] You're like, and hint, hint. PRC, talking about the issues of active recreation in the major floodplain and its relationship to risk or in some of the conflicts between the comp plan and the zoning ordinance.

[05:16:11] Yes. So I will turn it over to staff and let you all decide. Just give me one second. Supervisors, do you need, would you like this? Did you like, no? Okay, then, okay, I believe you've already had it. I believe you've already had it.

[05:16:34] Mr. Crony, are you ready to make a packet motion? Okay. I move the recommendation of the Transportation and Land Use Committee that the Board of Supervisors direct staff to proceed with option one as presented in the April 21st, 2026 Board of Supervisors business meeting action item.

[05:16:55] Motion's made and seconded by Vice Chair Turner, who's also, are you also Vice Chair Deluk? Also Vice Chair Deluk. Discussion on the motion. So I support staff's recommendation to prohibit active recreation as permitted or a special exception use in the major floodplain.

[05:17:14] Active recreation would continue to be allowed in minor floodplain. Passive recreation would continue to be allowed in both major and minor floodplains subject to existing standards. Option one would have a limited impact on current county parks.

[05:17:32] PRCS operates 56 parks with only seven of those that have floodplain within the limits of the park. Protecting our stream and river corridors is essential to protect against flooding and to preserve the health and well-being of our natural resources.

[05:17:47] Flooded areas within the floodplain are a refuge for plants and wildlife, and many of Loudoun's streams and waterways are already regarded as impaired and stressed. I will say that all legally established and proposed active recreation will not be considered nonconforming.

[05:18:07] I heard that from a presentation that staff gave, so thank you for that. Existing structures within the risk or buffer area are not considered nonconforming. However, additions must not increase

the total footprint of the structure by more than 25%.

[05:18:23] So I thank you for making that clear because that helped put into perspective about the non-conforming uses that already exist there. So I'm happy to support this. I think staff made some excellent points and really brought it to my attention that the county comprehensive plan has envisioned protecting loan streams and buffers.

[05:18:48] And this is just putting the regulation into consistency with the comprehensive plan. Thank you, Mr. Letourneau. Yeah, I just want to, I know the language here. I'm just going to ask for the record that I do have in my district a county facility, the BMX track at Conklin Park, which is in the active floodplain.

[05:19:11] that did get approved via special exception. I just want to make sure that that can continue to operate without any any issues going forward and then if we did have to make modifications for whatever reason in the future is there a process to do that if we pass this? So yes our intention is that an existing use would still continue to be allowed. We are working on the language for what would be required for those existing uses. Most likely for Conklin Park it would still have to abide by what's currently in the zoning ordinance if it made any changes but we are working with county attorney to develop that language which will come back to the board for a vote

[05:19:51] i just want to make sure like i i can't even anticipate what it would be but if there ever there ever was a reason we need to make some change to what was approved in the special exception i don't want to have a future board come back and say no we don't allow these type of uses in the in the floodplain and then so i hope that language is clear and and sufficient to to make it it clear that the intent of the board is not to eliminate those uses that was a very thoughtfully designed project working collaboration with the hoa there we knew it was in the floodplain so we were very thoughtful and prcs did a great job so um just making that point and hopefully should it

[05:20:26] ever be an issue this this videotape will exist thank you mr kirchner thank you madam chair just a real quick question staff um do we know how many acres we currently have under active rec in the county in the floodplain acres no i don't know that information or space we don't know that do we no i don't have that number so this is this is exactly why i'm staying from this photo i think i i'm with supervisor tricrony when it comes to protecting our waterways our floodplain i mean obviously they're very sensitive area but i but i also think that by

[05:21:02] just taking and i know we're trying to clean up kind of a a opposing um opposing different viewpoints in different parts of our legal language, so to speak. But I think the proper way, and I probably would be more in favor of one of the other amendments maybe making this a special exception or minor specs or probably a special exception because obviously we want to take any change serious.

[05:21:28] This is just basically eliminating it altogether. And, you know, we do have, as Supervisor Letourneau mentioned, we've got some of our golf courses there, and maybe we obviously would be very restrictive of those going forward in the future, but by just saying, no, we're not going to do this, it's going to end. You don't even get a special exception. I think we could potentially be really eliminating a project that comes that may need a small corner of something, and they could come in for a special exception. So I just think when we do this, we eliminate ourselves entirely without really knowing the total consequences. And I appreciate what we're trying to do, but we don't know the consequences. I met with Steph. They don't know the potential

[05:22:07] consequences of this and so when we do that and we don't allow any path whatsoever even through a special exception for some sort of active rec that may come such as the project that Supervisor Laterno mentioned or the corner of something that maybe even the county wants to do or something we really like that's on a piece of property we don't know what that will be in the future we limit ourselves and we can always say no to a special exception but when we change this it would require whole zoning ordinance change and so I think it's a mistake just to say carte blanche nothing ever going forward it sounds good it makes us feel good maybe with certain constituents like it

[05:22:44] but I think when we are doing land planning and we may be limiting ourselves or a very good project where a special exception could improve it I think as a general whole this is a really good idea but I'm going to abstain just because I don't I don't think we have enough information as a board

[05:23:02] Thank you. Okay. Mr. Quinn, would you like to make a closing? Thank you, Chair Randall. I would just say to my Catocin friend that relaxing requirements for active recreation in major floodplain and risker conflicts with the strategies of the comp plan, and it really would provide runoff that would have a significant impact on our waterways.

[05:23:31] so i i i do feel that this is important to protect our waterways and our natural resources and that's it thank you chair randall thank you all right um mr uh to crony uh made the motion um who seconded the motion i second the motion mr turner seconded the motion all in favor say aye aye opposed abstain okay that motion um will pass 7-1-1 with mr kirschner abstaining and miss glass being um not um she's off the days are you all all here for

[05:24:10] belmont yes yes this is all yes so let's do belmont next let's do belmont next i apologize mr turner this is your district would you like the presentation i would tell you the presentation is 14 slides does anyone else need the presentation didn't make any changes well i'll get there a sec Were there any major changes made?

[05:24:50] There was several changes made, but if I was going to highlight just one, it would be that the applicant increased the amount of ADUs they're proffering to. So it is now consistent with the 2019 general plan, including the amendments the board adopted in January.

[05:25:07] Thank you. Mr. Turner, you're good? Does anyone have any questions for staff before Mr. Turner goes to a motion? You can't ask your question in a motion? Yes. You can ask your question.

[05:25:22] wonderful thank you mr crony we really appreciate that all right mr turner would you like to make a motion i move the board of supervisors approve legy 2024-0-0-1-8 west belmont cmap 2024-0-0-0-3 subject to the proper statement dated april 16th 2026 and based on the findings for approval provided as attachments one and two to the april 21st 2026 board of supervisors business meeting action item second discussion the motion mr turner thank you madam chair this piece of land

[05:25:56] has been bouncing around an application in one frame or another for what probably five years this is the old belmont green shopping mall or mixed-use mall that has been largely dormant it's not the right word christmas i'm active in business there this application has gone a long way from its original inception to where it is right now. And it's not perfect. I would like to see some more quality open space. But the applicant has removed the LIHTC building

[05:26:32] at the request of the local community. It's reduced density. It's added the installation of two crosswalks along Portsmouth and one at Portsmouth and Belmont. And it's asked for a signal warrant at

Portsmouth and Nightwatch, which is substantial safety improvements along Portsmouth. The one thing I will mention is that I believe the community would really like private ownership of Charter Oak Drive. My discussion with the applicant indicates that the applicant's pretty flexible to move in any direction they want to, and the community decides on Charter Oak.

[05:27:05] I got an email today from the HOA. They're very concerned about through traffic between the new development and the old development. My personal feeling is that's up to the existing HOA. If they want to close those streets off, they can do that. That's their prerogative. I don't think anything in the application removes that right for them to do that. And as I said, I think the applicants proffered some real nice improvements to safety improvements to Portsmouth. So all in all, I consider this a good application and very viable for the location it's at. And I recommend

[05:27:39] approval. Thank you. Miss Bricksman. Thank you, Madam Chair. Yes, and I agree, it's a good application. I'm slightly disappointed the LIHTC building got taken out, but again, you know, you don't want the perfect to be the enemy of the good, as Mr. Turner would say, given the application and how long this property has really needed some form of renovation or change. I know the feeling.

[05:28:08] i had a dying shopping center in my district as well so uh it's you're going to be so happy when you're driving by there and you're going to start seeing all the changes like i i just drive through cascades marketplace all the time and just like giggle um so so also i just want to appreciate the applicant um for listening and moving the pickleball courts up over closer to the pending gas station because pickleball can be very noisy as much fun as it is it can be very noisy so I think that the residents who are going to have the sport court next to them instead are going to be

[05:28:44] much happier so thank you so much for for doing that and really happy to support thank you Ms. Umstead. Thank you, Madam Chair. I am not able to support this. It is going to add annual school operational costs of about \$5 million a year. So I imagine this will pass.

[05:29:14] So we are going to vote for, as a board, something that consumes more tax dollars while we just voted down a data center that could have provided more than enough in tax dollars to cover the costs of this development. But for those reasons, I cannot support it.

[05:29:38] I will absolutely support. Oh, I didn't see. Did you just turn that on? No. Mr. Crony. - Thank you, Chair Randall. So my question is about the private road.

[05:29:55] I saw in your staff report that the fire marshal's office requested at least one access to a private road for optimal safety, is that true? So I am concerned about that just 'cause I know the community said no access to our private roads.

[05:30:15] - That is true. The fire marshal also said though that as designed it would meet regulatory requirements. And that's with the Charter Oak Drive being the main access point. So there are two development proposals in this application.

[05:30:33] The first one assumes full connectivity with the existing community. The second one assumes some variation of limited connectivity. There are four private, well, one is Charter Oak, so four streets that may in the future potentially in some capacity not be able to be accessed by the community.

[05:30:54] They designed the site in that alternative to demonstrate how the site would function internally, how the traffic would function, how fire safety would function, and it is determined to be safe.

But it is, like I said, some version of that.

[05:31:11] So whether that is one of the streets being closed or all four of the streets being closed or two of them, it's variable in a future state. Okay. The open space. So they didn't add any more open space. because that was still an outstanding issue from staff.

[05:31:28] - Correct. - Okay, so yeah, that's one of my concerns is that there really isn't meaningful open space for the community. I know that the Belmont Green community said that they oppose the application because it doesn't meet the open space and the applicant's asking for a decrease in the minimum rear yard requirement and a decrease in both rear yard requirements.

[05:31:59] So that is a concern of mine. But I think as Vice Chair Turner said, I think a lot of this is good, but I am disappointed with the open space. So I have to say since that's still outstanding and I am concerned that residents will use the Belmont Green open space areas because there's not much there for them, especially with smaller yards.

[05:32:27] Thank you. - Thank you. All right, I am going to vote for this. I am disappointed about the LIHTC. We say that we want houses for our teachers, our firefighters, our sheriff's deputies, our waitstaff.

[05:32:44] And then when we have a LIHTC building, people don't want that LIHTC building. And the assumptions about who lives in a LIHTC building has always been something that's just not really correct. And so I also have said this many times, if the General Assembly could make it easier for LIHTC type buildings to be spread around the development, so they're not all in one building, I think it would also be more positive even for the people who live in the LIHTC building.

[05:33:15] And so I think it's a lot of things working together in that moment, and I wish that weren't so because we need attainable housing at all levels we need it at all levels that's the first thing second thing is we have over 200 data centers in our county we we don't we do we are doing fine on data centers and if we are listening to the voices of our constituents they are not telling us don't build homes they're not they're saying stop building data centers and so for

[05:33:51] someone who not very long ago want to put into a motion listen to the constituents to then circle back around and say we should be building more data centers means somebody's going to listen to somebody's constituents somewhere. We people yes homes might bring children but the truth is you know what children exist and we have schools right now in Loudoun County that are sitting under capacity. I don't know why. I mean, it didn't used to be so, but we have schools that are sitting under capacity right now. And there is nothing, I don't believe, and if I'm wrong, Mr. Turner,

[05:34:30] tell me, in the CIP in this area to build another school, because we don't need another school in this area to be built. We're fine. Our schools are fine. The roads are fine. The schools are fine in this area. And so I don't know the last time we've actually approved a large housing development, and we need homes more than anything else. Loudoun needs them, the Commonwealth needs them, the country needs them. We need homes. So with the exception, I would say I'm really, really happy to say yes to this, but I'll take the really, really away and just say I'm happy

[05:35:08] because I do wish we had deeper affordability, which often comes with the LIHTC buildings. And I don't want this to be the norm, that the first thing that comes out is the LIHTC buildings. If that starts happening, we will have conversations.

[05:35:28] But overall, I am supporting this application. And thank you for all your work. And thank you, Mr. Turner, for all your work. Would you like a closing? Thank you, Madam Chair. I had forgotten that Pickleball was involved in this application. So let me just make a friendly suggestion here.

[05:35:46] We take the pickleball courts and we put them across the street at the bottom of Luckstone Quarry and provide a free shuttle back and forth to the pickleball courts. My chief of staff is going to smack me when she sees me next time. I have nothing further. Thank you, Madam Chair.

[05:36:02] Wonderful. Okay. All in favor of this motion made by Mr. Turner, please say aye. Aye. Opposed? Nay. That motion will pass 711 with Ms. Umstead voting against the motion and Ms. Glass being off the dais.

[05:36:21] Thank you very much. Thank you. Is that clear everybody out? Everybody can go home now? All right. Let's see. After they leave, let's see who's left. No, item 8, the Novak substation, which is item number 8, which is taken off the consent agenda by Mr. Crony.

[05:36:45] Because this did not need to go through a public hearing and it was on consent, the applicant has not answered any of our questions or spoke. So I'm going to let them come to the table. They're not going to do a presentation, but if anyone does have questions of the applicant, you can go in and ask the applicant directly.

[05:37:10] Thank you for hanging out with us this long. We really do appreciate it. This is in the Little River District. Mr. Crony did ask for this to come off of the consent agenda. Mr. Crony, did you want to see a presentation on this we have a presentation on this, right? Okay No, I know unless others want to see it I mean I've read the item, but maybe supervisor said you want to see the presentation

[05:37:44] I don't need a presentation, but I would do have questions for the applicant. Okay. Okay. Okay. Can you ask you? Is there anything you want to tell us about this application that's different or new or something we should know? I just thought this is a standalone commission permit so it did come to you from the planning commission to your business meetings we did not have a public hearing for it the commission permit plat the commission did the planning commission did work with the applicant to increase screening graphically so this is unlike a special exception where you have conditions and other substantial

[05:38:18] conformance requirements they showed how they propose their screening on their plat so it's static. So if the board is so inclined to suggest amendments or changes, we would have to review those should this go to another business meeting to be able to see whether or not they could be accommodated without having to go back to the Planning Commission.

[05:38:39] Point of clarification. Can this be changed since it's a CPMT, CMPT, or does it have to be approved or denied as it is? So it would be limits on how much could be changed, if at all. I would need to know the board's request before I had a chance to make a determination. I thought they couldn't at all. I think just to be even clearer, you're correct. So right now, action up or down. If there was a discussion and a discussion about changes, that's what Marshawn was saying. We need to go back to the commission for them to reconsider it if it was significantly changed.

[05:39:11] Okay. Okay. Okay. Gotcha. There was, Madam Chair, if I have any response to it. Mr. Crony did ask about GIS, gas insulated substations. I saw the zoning administrator tonight, so I would have to, if that

was an option they wish to explore, I would need to check with the zoning administrator to see if they could substitute the equipment for a GIS.

[05:39:37] I won't know that till I have a chance to talk with her in more depth. - Mr. Crony, is that a question you'd like to ask to the applicant? - Yes. - Okay, let's do that then. - Yeah, so the planning commission discussed the feasibility of a gas-insulated GIS substation.

[05:39:54] I would like to ask for that as well because it is close to a daycare, it's close to residential. I mean, this is not really an industrial area. You know, parts of it are, but not all of it. And that would at least provide the majority of the infrastructure to be enclosed in a building and it would also make the footprint smaller.

[05:40:16] So I'm asking you, would you be willing to look at a GIS substation versus a normal substation? Ms. Tacronio, I'm Gifford, Hampshire, with Blank Chip Keith. I represent NOVAC. And with me is Jay Combs from NOVAC and Matt McElhaney from Urban.

[05:40:34] You're correct. We did discuss this at length in the Planning Commission. If you looked at the video, we had an exchange about that. And the answer tonight is the same answer we gave the Planning Commission. It's just not something in the pallet, if you will, that NOVAC does. NOVAC does not have a single GIS station.

[05:40:50] We discussed that. We had two work sessions, a public hearing and two work sessions. And in lieu of the GIS station, the Planning Commission was satisfied as an alternative with raising the wall height from 12 feet to 16 feet. And also at the second work session of extending that wall all the way around the perimeter of the substation.

[05:41:10] And also putting the wall on a berm on the Arcola Mills drive side, which raised the effective height of that wall to 19 feet, which shields everything from the Arcola Mills side where the daycare is and where the residential homes are, except for the H structures.

[05:41:27] And that in conjunction with a type 2 road corridor buffer, which is supplemented by Evergreens. We showed the Planning Commission, the Planning Commission was satisfied with the way that this was screened from the residential area, both on the Arcola Mill side and also the Belmont Ridge side.

[05:41:46] We didn't have a single speaker who was concerned by the second work session. We did have one at the first public hearing. We accommodated that concern, and by the end of the second work session, the Planning Commission was very much satisfied with that. But we just cannot, we just don't have that arsenal, we don't have that quiver in our bow, if you will, the GIS station.

[05:42:07] It's not something that management has authorized at this point in time. So you don't, so NOVAC has never done a GIS, because I know Dominion has. That's right, but NOVAC has not. Interesting. And we just don't have clearance to do that. Okay, because I do want to make it clear, I think it's 220 feet from the daycare, correct?

[05:42:28] Yes, ma'am. From the southern boundary of the compound to the daycare is 200. And then from a single-family home, it's about 260 feet, 1,000 feet from Brambleton, I think, right, from the other end?

[05:42:43] Evermont Trace, about 1,000 feet from Evermont Trace, between 260 and 1,000 feet from the residences to the south. Okay. So I did make a motion during the phase two that substations will be 500 feet from residential. And so this is not in keeping with my vision. I know the board, we're going to look at new standards for substations that require the 500 feet similar to what we have with data centers.

[05:43:11] So data centers, as you probably are aware, we made a motion in March of 2025 where data centers will be 500 feet from residential. So this is less than 500 feet from residential. If I could just make a point about that, we were kind of between the devil and the deep blue sea because we were trying to stay out of, and we did stay out of, the RISCAR on the back side.

[05:43:35] So it's not as though we could push the substation back. So we stayed out of the RISC-R on the back side and compensated for the shorter distance by raising the height of the wall and putting it on top of a berm and also increasing the screening on the other side of the wall.

[05:43:52] So we did the best we possibly could with the site that we have. Okay, I'm sorry, Ms. Umstead. Thank you, Madam Chair. This is for the applicant. Would this substation facilitate your ability to provide power on a reliable basis to residential properties as well as business properties?

[05:44:27] In theory, but to be straightforward about it, as we have been with the Planning Commission, the purpose of this substation is to serve an approved data center development that was approved back in the 90s called Shreveport. And so that's up like a little bit south of Evergreen Mills Road where it curves.

[05:44:44] And so it's a dedicated power source for that already approved data center. Okay, thank you. You're welcome. Thank you. Does anyone else have any questions for you? Yes, Ms. Bricksman. Thank you. I think this is a question for staff.

[05:45:03] Is this an application that falls under grandfathering? Yes, ma'am. so the underlying property was rezoned in 2020 which allowed substations by right because this was not a feature shown on their concept plan when they submitted their site plan which was also grandfathered they it was determined that he still needed to come in for the the commission permit because that specific facility wasn't shown but not a specs correct okay all right thank you mr um oops mr le turno um marshall what's the timeline on this how long does the

[05:45:41] board have before this is automatically approved uh we have until may 23rd um which will be the 60-day we have two meetings between two meetings okay yes sir and my understanding i ask the county attorney this there are currently not findings for denial that have been created yet right there is no findings for denial in the package so if the board were to move to deny we would need to move it to a future meeting. That's correct. Thank you. Mr. Sainz. Thank you, Madam Chair.

[05:46:14] Okay, make sure I heard you right. You're saying this substation is for one use only for one data center or is it for that data center and hooking up to the grid to power others? As set forth in the staff report and in our narrative, it's to serve a specific data center site to call the Shreveport site.

[05:46:36] It may be used for other uses in the future, but as of now, it's for the purpose of serving that already approved data center. And where is that data center in construction? It has not been constructed yet, correct? That's right. It's not been constructed yet.

[05:46:51] So no dirt has been moved on that data center? That's right. Okay. And then earlier, if I heard you correctly, you said NOVAC has not to date done any GIS. Do you have any in the pipeline, or have you

guys discussed the new technology to do so? I'm not privy to that.

[05:47:08] I know there have been discussions, but management at Novak has not yet made the decision to allow that as something that we offer as a product. Okay. I think there might be a motion, but I think it would make sense to possibly look at doing GIS.

[05:47:25] That is the new technology we have. As I mentioned, I know your competitor, your big brother, your little brother, whatever, cousin, entity in the Commonwealth, they do, and other folks have been doing as well, so I don't see why your entity could not do with GIS.

[05:47:46] My understanding is there are discussions ongoing, but a decision has not yet been made. All right, well, sometimes we need to get things going, get the horse out the barn. Thank you. It's your big brother, little brother, and cousin, evidently. Mr. Turner.

[05:48:03] Thank you, Madam Chair. I'm sorry, but the comment just got me thinking now. Staff, can you tell me when we say the Shreveport Data Center has been approved, what does that mean? Is it by right and it's received administrative approval? The site plan has been approved or just accepted?

[05:48:20] Where are we? Is it actually an approved data center? Yes, sir. The Shreveport data center campus, which is outlined in green on this slide, has been conditionally approved, the area in the green outline, for two data center campuses. They're not, I do not have a timeline on when they're being built or the timeline on when they might come out of the ground.

[05:48:41] Were they approved by Wright or by Ledge? They were approved by Wright. By Wright. Yeah. The Brambleton, years ago, when Brambleton was rezoned, that land bay was, I think, an IP or allowed the data center to be developed by Wright on that property.

[05:49:02] I'm sorry about this, but if we deny this condition permit, is it a condition permit? I'm sorry. If we deny this application for this substation, if it's an already by Wright approved data center, was it approved?

[05:49:21] does the site plan include the substation as part of the site plan no sir not in the green area in the area in purple there was a substation approved for that campus where my where my mouse is right now so that's the west side so the site is over here on the left the left side of belmont ridge road the other data center campus is on the right that was for four data centers and it showed a substation on its original concept plan so that's moved forward that's under construction that's substation is being constructed this would be to serve the area in the green box of above and if

[05:50:00] the data center that was approved by right deviates substantially from what was approved it kicks it into a legy yes sir so if we approve this substation the by right data center for whatever reason kicks into a legy then even if we denied that data center legy at that point we would now still have a substation sitting on this site correct or vice versa if the substation was not approved then that other campus would have to seek another alternative for power all right thank you

[05:50:36] all right i think mr coney you do have a motion i do is it it's uh is it on purple it's purple i don't think i that's purple or pink or whatever but that's okay i know what it is she called me earlier i know what it is go to make the motion mr crone yeah i do i move that the board of supervisors forward legy 2024-0059 novac demo substation cmpt 2024-0010 to the may 19 2026

[05:51:08] board of supervisors business meeting for action second opening on the motion i just want to say that it is not 500 feet from residential it's too close to a daycare and um it it also is you know, it just does not meet the standards that I would like to see in this type of location.

[05:51:36] I would like to talk more about a GIS substation as a potential that is fully enclosed and that is on a smaller footprint to reduce the impacts. I've seen some of those berms and some of the walls and you can still see the H frames.

[05:51:55] There's still an impact on the community. So, I think we should be looking at innovations if you're close to residential and close to a daycare. Thank you. Okay, I'll ask you in my time.

[05:52:13] Mr. Letourneau. Thank you. Yeah, so look, NOVAC needs to get with the program or lose industrial customers. Just stick with residential customers and let Dominion take commercial customers if you can't get with the 21st century and start building the type of products that the board's been asking for repeatedly.

[05:52:29] So here we are now. We will force the legislative action to try to get somebody to do what they're supposed to be doing and should be doing in the first place. And here we are. And if you've been paying any attention to the discussion that the board's been having about substation, we've been asking for GIS substations repeatedly.

[05:52:45] I understand the Planning Commission didn't do that. The Planning Commission has also not approved a grand total of two applications in this entire term. That's not necessarily the best barometer. Listen to what the board's saying. I don't think we're that hard to telegraph, but lately applicants aren't hearing it. So I will say it very clearly, I won't even consider this unless it's a GIS substation.

[05:53:04] And even then, it's a bad location for a substation because it's too close to a residential. Evermont Trace, go back and look at the record. In 2013, I voted against Evermont Trace because I was concerned about how close it was to industrial and flight noise and all that stuff.

[05:53:19] But I was outvoted, and it passed. So you can see how close that substation site is to that townhouse community. We have a whole bunch of data centers through here, which was by right. The board did end up approving a data center application here, but that was really with a gun to our head because it was just moving buildings around.

[05:53:37] We didn't actually add data center capacity there, but it was the only way to try to get some improvements to this, what would have been a really crappy by right site. So that's where we are. This is not a good location. High traffic area, Belmont Ridge Road, daycare, yes, residential, yes.

[05:53:55] So, total non-starter, unless it's a GIS, and even then, that's tough. So, that's where I'm at. We've got a month to figure it out. Mr. Turner. Thank you, Madam Chair. I want to make sure I've got this straight in my head.

[05:54:14] So, if we go with Supervisor Crony's motion, we're moving the commission permit to a legy vote on May 19th? Yes, sir.

[05:54:31] You'd be forwarding this to that business meeting for action. So we haven't run out of the 60 days yet, so we're still inside the 60 days, so we're still considering the conditional permit? Yes, sir. The commission permit. The commission permit. And can I ask Mr. Rogers?

[05:54:48] Sure, yes. We're really, as a board, we're supposed to either ratify or not ratify the commission permit, correct? The board can ratify, not ratify it, turn it down, or take no action.

[05:55:07] if you take no action it's deemed approved yeah so that's actually ratifying basically okay um okay i i guess by moving until may 19th we give them the option to create the gis substation as part of the plan yeah yeah yeah i understand okay that's all i did thanks and so mr crony i i'm going to just in my time i i agree with with you and i and i certainly know what this is and you and i have had this discussion about this many times and we've we've we've sat in that bar looked

[05:55:44] out the window where we've done all that. And I completely agree with Mr. Terno. In fact, I remember when Evermont Trace, I wasn't on the board, but I remember watching, I guess I've been watching this for a long time, and I remember watching the Evermont Trace discussion. I had no idea who you were, but I was like, that guy is making some sense during the Evermont Trace discussion. I remember that really well. My question, Mr. Crony, is agreeing with all the things that have been said, what is the reason for moving this versus just denying it now?

[05:56:17] I'm only asking it because they're not going to be able to do what we think, what we wish they could do in two weeks. If they don't have the capacity, they're not going to have the capacity in two weeks either. So it just, I'm sorry, huh? No, two, no, well, a month, a month, May 19th.

[05:56:38] They're not, okay, they're not going to have, okay, so that's what we're doing. We're doing that. we're getting okay thank you because i'm i'm like what where we only because i just feels like we string things out longer than we need to sometimes and so that's why i was asking that question but okay then okay you go mr crony and um um that this motion was made by sir crony seconded by supervisor saying discussion i mean um would you like a closing all right all in favor please say aye aye any opposed that motion will pass 801. supervisors if you have nominations put your

[05:57:13] lights on please. Mr. Crony. All right, let me pull it up. I reappoint Lisa Savaglio to the Disability Services Board for an at-large position. Sounds good.

[05:57:36] Anybody else? Hey, Dan, if you want to just step away for just a second because you've been here sitting here. I'm going to let everybody do their board comments and then we'll come back and do the last thing which is the work plan so you've been sitting there for a long time. So let's go and do board comments and then we'll have one more thing to do, and then we will be done.

[05:57:57] What? So board comments, board comments. Mr. Kirshner, I feel like I start with Mr. Letourneau. In the interest of time, I don't have any board comments today, Madam Chair. I may have, I do have, the only mandatory disclosure I believe I have is I did have a brief conversation with J.K. on their valley.

[05:58:25] I don't remember the exact date, but on the project in Percival. I'm sorry I wouldn't listen to you at all I was making hand movements with the port largest people it's all right I'm used to that man I'm sorry about that though y'all y'all good though right okay cool all right Mr. Crony oh did I'm sorry did you did you do okay okay I'm sorry I should have been I apologize Mr. Crony. Okay, thank you, Chair Randall. On April 14th I met with Chuck

[05:59:02] Kuhn, Jamie Emery, Mike Romeo, Charles Yudd, and Clayton talk about the Valley Commerce Center application. I'm excited to share that Howardsville is finally receiving the recognition it deserves. Tomorrow at noon two new Howardsville signs will be installed, one at the intersection of Trap Road and

Green Garden and the other at 20929 Green Garden. I'd like to thank General Services for their support in making this happen and Chair Randall will be joining me tomorrow. So this will be very exciting.

[05:59:36] While a road sign may seem like a small detail for the rural communities, I'm proud to work alongside. It carries real meaning. It affirms identity, history, and a shared sense of place. This effort began with a request from Thomas Reed whose family has called Howardsville home since 1867. He once said he never expected to see this in his lifetime and tomorrow is also Mr. Reed's birthday so this will be exciting making this recognition all the more special this coming

[06:00:11] Friday there is a four p.m. to 4 p.m. there is a tree planting event at Banshee Reeks in the Little River District in celebration of Arbor Day, and I will be attending the Earth Day Festival on Saturday starting at 10, and that'll be at Franklin Park, so I hope others will attend as well. That's supposed to be a great family fun day. I will be holding open office hours at the Willisford Clubhouse on Tuesday, April 28th from 3 to 6 p.m. The clubhouse is located at 23506

[06:00:46] Founders Drive Ashburn and I hope to see residents who live in Willisford and also anybody in the Aldi area or the district to stop by share ideas seek assistance no appointment is necessary and all are welcome thank you thank you Ma'am Mr. Umstead thank you Madam Chair on disclosures I had a meeting on the Valley Commerce Center on Thursday April 9th with Mike Romeo Chakoon

[06:01:20] Charles Yud and Aaron Steel um both yesterday and today I had conversations with Molly Novotny on the Cochran Tech application and that's it let's see Ms. Bricksman.

[06:01:45] Thank you, Madam Chair. By way of disclosures, I had a call with Molly Novotny and Colleen Gillis from Curata Partners today in the Concord application. I'm really excited that House Bill 557 became law with the governor's signature.

[06:02:04] This allows localities to set a lower tax for landscaping businesses to incentivize transition to environmentally friendly equipment, such as battery and electric powered equipment. This bill was carried by Delegate Reed last year and passed the legislature and then was vetoed by Governor Youngkin. This year it was carried by Delegate Reaser and it was signed. I am hopeful that my colleagues will support lowering this tax rate or even setting it to zero to incentivize our landscaping businesses to be more environmentally friendly, and I am proud to have worked with

[06:02:40] Commissioner Wirtz, Delegate Reaser, and Delegate Reed on this bill. For context, operating a commercial lawnmower for just one hour produces as much smog-forming pollution as driving 300 miles in a car. Using a commercial leaf blower is even more polluting, emitting as much smog emitting as much smog-forming pollution as driving at 1100 miles in a car. In 2020 lawn and garden equipment in the US emitted more than 21,800 tons of fine particulates and equivalent

[06:03:13] amount of the pollution of 234 million typical cars. So it took two years but I'm really proud of this, and I hope that my colleagues will support when I bring the change to our tax structure and our tax classes. I don't know if you guys recall, but when we had our board retreat for the beginning of this term, I suggested that we ban gas-powered lawn equipment, and I got basically a hell to the no from the entire board. So I went back to the drawing board and came up with this idea of the tax incentive

[06:03:52] to hopefully get folks to do it on their own and then they can get a benefit with lower taxes. So I'm really excited about it. I will be hosting Biking with Briskman on May 3rd. We will be leaving out of Route 7 Brewing.

[06:04:11] We have some great partners this year, Rails to Trails, Bike Loudons, Maverick Bikes, and Route 7 Brewing, hopefully a couple others. It's a casual eight mile ride. hope folks can go i'm looking forward to being at bike to work day i'll be at the sterling stop around 7 30 to do the board proclamation would love it if some of my colleagues would join me and i will be biking to leesburg um from sterling um so yeah that's going to be really fun and um from the gun violence archive we have lost 3 802 lives to gun violence so far this year

[06:04:46] our nation has experienced 118 mass shootings 248 of the deaths were ages 12 to 17 and 66 were children under the age of 11. thank you madam chair thank you mr letourneau thank you madam chair a lot of disclosures on april 14th i met with mike romeo of walsh calucci grand brook of jlb and and more of icv to discuss foxgate residential um and then lots of stuff on the Concord Industrial and Cochrane Tech. My staff met with Molly Novotny of Carada on April 17th

[06:05:21] and April 21st and then I spoke this is actually probably not mandatory but I'm going to disclose it anyway I spoke with Ron Meyer of SDC which was going to be the tenant on Cochrane Tech on April 8 15 and 21. Sorry I'm a little grouchy tonight apparently but I really am just trying to to get applicants to hopefully be listening to where the board's going with some of these things, because I think it is a little predictable, and it's longer than that, Mike. Longer than 12.

[06:05:57] And I think, you know, at the end of the day, we're trying to be responsive to what citizens are asking us for, and you know, it's not always easy to have those conversations, including with residents to understand the whole picture but I think when something like a substation site we've been pretty clear that if you're going to be in a visible site you're going to be close to residential at a minimum you've got to try to enclose it and I've been frustrated with Novak for a long time for a lot of reasons I know our our dear colleague and friends our legislative liaison Jonathan is now going to be going there and I wish him all the best and I'm

[06:06:35] I'm glad he is, because I probably just made his life hard for tonight. But hopefully we can have more productive conversations there. I was thinking about him tonight, too, actually. I was thinking about him. He's a nice guy. Mr. Sains.

[06:06:55] Thank you, Madam Chair. Mandatory disclosures. On April 7th, I spoke with Mike Romeo of Waskuluchi and Charles Judd, Jamie Irmi, and Clayton Toc of J.K. Land Holdings Belt Valley Commerce Center. land use application. On April 7th my staff met with Brian Winterhalter and Howie Edo I guess of DLA Piper and Elizabeth Nicholson related to the Quantum Park land use application. On April 7th and 15th my staff attended a meeting with with representatives of Oppie Heine about the Sterling Park data

[06:07:31] center administrative application. On April 20th I spoke with Drew Johnson of Oppie Heine about the Let's see, Dulles Electric Administrative Application. And I spoke with Molly Novotny of Coretta about Concord Industrial Park on April 20th.

[06:07:50] And quick notes, Loudoun County is doing an engagement workshop. If you own property homes in Loudoun County and you're looking to possibly rent, there's two work sessions, Tuesday, May 12th, which will be virtual, And in person Thursday, May 14th at the Ashburn Rec Center to hear more about how you could possibly, again, if you own a property, you want to rent it out, what the programs are that are open to you.

[06:08:17] I think that's a good program for folks to look at because we always need more housing, as was discussed earlier. International Food Festival will take place this Saturday, April 25th from 1 o'clock a.m. to 2 o'clock p.m. at Christ the Redeemer Catholic Church in Sterling, Virginia. and then we have a golf tournament on may 4th at 1757 golf club where a lot of commander legends will be in attendance signing autographs and and sharing stories with uh with residents those sign up for the the golf tournament which will benefit a non-profit called the bridge of love foundation

[06:08:55] And Cinco de Mayo, the annual Cinco de Mayo Festival will be at Women's Giving Back on May 7th from 4 to 7 o'clock p.m. And I'd just like to say yesterday was a pretty good day in the Sterling District.

[06:09:10] We did two groundbreaking ceremonies, one for the Sterling Boulevard and WND Trail overpass or crossing. We've been working on for quite some time now, so I'm glad we were able to do that yesterday. And then we did the groundbreaking ceremony for the Ravana development at Innovation Center, which, again, is going to be a game-changer, diversifier economy here in Loudoun County, something that we've been asking for, looking for for quite some time.

[06:09:37] So I'm glad we're going to get that project off the ground and do these big celebrations and monumental steps in their development. And in general, I'd like to say thank you to all the residents who came out and spoke today, share your information with us. You could have been anywhere and you chose to be with us, so we really do appreciate that.

[06:09:54] - Thank you. - Thank you, sir. And Mr. Vice Chair, Turner. - Thank you, Madam Chair. On April 10th, my staff spoke with Emmanuel Williams from Digital Realty about the application for Digital Dulles Western Lands Campus. On April 10th and April 13th, my staff and I spoke with Mike Romeo from Wash Kalushi and Charles Yead and Chuck Kuhn from JK Land Holdings about the application for Valley Commerce.

[06:10:18] On April 13th, my staff and I spoke with Colleen Gillis from Curata about the application for West Belmont. On April 17th, my staff and I spoke with Kathleen Nenner from Dominion about the application for the Aspen substation. That's all I have. Thank you. So over the past two weeks, I have talked to Chuck Kuhn and Charles Yudd about the Valley Commerce.

[06:10:41] And I have talked to Molly Novotny about both Cochrane Tech and Concord, as has my staff as well. Over the past, gosh, two weeks, I have gone to at least five or six different events with our first responders, Fire and Rescue, our Sheriff's Department, including today's Valor Awards.

[06:11:05] And first of all, when you hear the things that our first responders do, it is really amazing the amounts of times that they put both their lives and their mental health on the line for other people.

[06:11:22] There was a, one of the stories today was a person who was showing suicidal ideation, doused himself with gasoline, was sitting in the car, and had to be, and the sheriff's department, they talked him, sheriff deputies, talked him down and talked him out, and thank God no one was hurt.

[06:11:45] Unfortunately, I've heard this now three times, the same story of the very small child, five-year-old, It was in the lake, and they went in to get the child out, and they did retrieve the child, but unfortunately the child did not make it.

[06:12:05] And as they were talking about the incident, I'm just looking at the faces of the sheriff's deputies, and, I mean, you can just tell that, yes, they are heroes, and they should be celebrated as that,

But you can see the pain on their faces if that issue was being talked about.

[06:12:27] And so we often say thank you to our first responders, our firefighters, our police officers, our deputies, our EMT. And then we kind of keep it moving. But I am telling you, I mean, we are, I could not do the job that the first responders do.

[06:12:45] And they are, it is really, really very incredible. I will also notice that over half of the incidents that were discussed today were incidents of mental health calls. And so in Virginia, this has been kind of a hard week for Virginia.

[06:13:05] And so I will say what I always say, if mental health is health, and just like you reach out for physical health, reach out for mental health because there's no shame in that. And finally, I want to say that tomorrow is the last day for Mr. Vincent Jones, who's leaving to go to work in Hopewell County.

[06:13:25] If you guys give me just 15 more seconds. Vincent is someone who is an assistant county administrator, and he said that he's always wanted to go back and give back to the place he grew up.

[06:13:41] Everyone says that, and people never do it, because once you get in a bigger county and you're in a place with lots of resources and you're making money, people don't normally just go, I'm going to give all this up and go back home and help people where I came from. And he's doing exactly that.

[06:13:56] And although, you know, he's such a nice, he's just a nice, competent, just gentle, wonderful man, but he didn't have to leave Loudoun County and go to Hopewell County to help, is it Hopewell?

[06:14:12] Is that the name of, yes, stop motioning to me. He didn't have to do that, but he's doing it because he wants to go give back to the place where he grew up. And so, Vincent, I just want to publicly say from all of us, thank you so much for what you've done for Loud, and we will miss you so much.

[06:14:31] Please come visit us, and when we're driving through Hopeville County, do not be surprised if we stop in and don't act like you don't know us when we come to Hopeville County to visit you. And thank you, thank you, thank you, Vincent Jones. You're just a remarkable human being, and they are lucky to have you.

[06:14:48] All right, supervisors, we have one more item. let's go on and get through it it's item number seven it's a planning and zoning dpz work plan hello hello good evening listen it's only 10 o'clock i thought we were going to be voting to stay here after 12 so we we are we are we're doing great and you're the last item and we're

[06:15:28] we're fine we are i'm hoping you're not using that as an excuse to make the conversation last longer believe me no i am not doing that i'm getting the feeling but you know us we can make it last longer. You know this board. It's possible. We are ready when you are. Thank you, Madam Chair. So I am back with our quarterly update for the Department of Planning and Zoning work plan. And if it's okay with the board, I'm going to work through the newest information and some projects that we are proposing to add or that the board already has added. A lot of the things

[06:16:06] that we already have ongoing are making good progress, but I don't think there's a number of significant updates worth your time tonight to rehash things that you've recently seen at board meetings we'll see in the near future. So I want to start doing one thing which I do in the item and haven't typically highlighted during presentations and also focus on some of the things that we've actually accomplished and gotten off of the work plan. So we the board did approve January 21st the 2024 review of the 2019

general plan comprehensive plan amendment. There were a number of work products that came out of that including some that we'll talk about in a moment and then the electrical infrastructure CPAM phase one was also approved by the board on February

[06:16:46] 18th so we were able to remove both of those items from the work plan so starting with really a lot of the additions all the additions frankly that are in the work plan are zoning amendments so we have added seven new zoning amendments to the work plan I know that sounds like a lot and I'll explain as we walk through them for number six number six and number seven are both directly being added to implement state legislation that we are confident will pass in some form or fashion. Number seven is regarding the cannabis sale of

[06:17:26] cannabis and other things related to it that we talked about earlier today already. Number six is to implement legislation that's going to allow by right affordable housing by religious and nonprofit organizations. I've prioritized that slightly higher mainly just because at the moment at least it has an earlier estimated, or excuse me, an earlier implementation date, so we will need to take action sooner in order to have something on the books by the time that would become operative state law.

[06:17:55] So for number six, under House Bill 1279, the zoning ordinance will be required to permit as a by right mix, as a by right use, mixed use in residential projects meeting certain conditions by a property tax exempt religious organization or 501c3.

[06:18:11] If it becomes law, we will need these amendments to the ordinance to implement the mixed use and residential projects authorized by the bill and also to mitigate to the extent that it's authorized again by the bill, the land use impacts and other impacts on health, safety and welfare.

[06:18:28] One last minute change I had made to the item that given a comment that the chair made earlier, actually, I should highlight. So in the item, the dates I used were based on the governor's recommended changes. But since it has not been acted on, technically, HB 1279 could be effective September 1st or January 1st.

[06:18:49] In either case, that's very fast and we will need to take quick action. For number seven, you all approved the ROYA earlier tonight regarding the sale of cannabis and other cannabis uses. So again, we will need to implement the new authority through the zoning ordinance. We have a number of potential amendment options that we will look at as part of that that we covered in the earlier conversation.

[06:19:11] And there, also, I will highlight that the original bill would have that go into effect January 1st. And as Jan talked earlier, the governor's recommendation is to have that become effective July 1st, 2027. So both of those essentially must be taken up if we need to regulate them ahead of their effective dates, which we think we do.

[06:19:34] I will also warn the board that those were just the first two that we have captured, and I think in some cases, obviously, the board's interest in. I do believe that there are other bills out there that we are still reviewing that we will need to add more projects like this in the very near future that will also have pretty quick action dates associated with them so I do not have all of that for you right now but we will let you know as soon as we do anything else that we have identified that needs something to change in the zoning ordinance numbers nine ten and eleven all came from the 2024 review cpam that was

[06:20:13] adopted. The board may recall that the motion there specifically added three, these three zoning projects to the work plan. There were also some additional policy issues that it recommended

further action on, but we did not include that in the motion at the time. I think some of those we can capture in a future CPAM that rolls a number of things together. So I do not have them listed here, but those will be brought back forward to you in the future. These three, number one is land in lieu of affordable dwelling units. So when you approved that CPM in January 21st,

[06:20:49] it included the addition of this OAM to explore the potential amendments to the ordinance and specifically section 901H for ADU modifications. And this would discuss if and when there's land on site that's fully developable lots or land off site, how we might use land that's proffered up and offered by a developer instead of having them actually build the housing itself. So that's the idea behind that one that we will eventually cover. There's also a zoning amendment for infill development. This would touch a number of different zoning ordinance sections, but it's to provide

[06:21:26] more flexibility for infill parcels. Our policies in the general plan I think are generally pretty flexible. This would try to ensure that the zoning ordinance has the ability to to better match that from a regulatory standpoint. Number 11 is the adaptive reuse of office and commercial space residential development here again it would touch a few different zoning sections and really this would consider multi-family attached residential dwellings should be allowed and allowed use in the areas like commercial industrial areas potentially largely commercial to to allow those uses in areas

[06:22:05] where they might not otherwise be allowed now to better allow the adaptive reuse if an opportunity arises recommendation for number 12 the number 12 project on the zoeum work plan is for kennel use specific standards and this was prompted by a informal request of the planning commission they have been dealing with a number of kennel applications lately and they have been struggling both individually and collectively i think to try to define what is appropriate on a given site

[06:22:40] there's really no standards in the ordinance for how many animals should be allowed by acreage or by proximity to other uses or anything of that nature to better guide them from a more researched and thought out standpoint than otherwise using their best judgment and staff's best judgment on a case-by-case basis. So they have requested that we take a look at that when we have an opportunity and that is why we are suggesting adding number 12 to this work plan. And then 13 is the last of of those added and it's an idea that staff has had for at least the past three years that we've been working on the work plan and it's one of those things that we constantly

[06:23:19] say we will get to when the list gets shorter. And so I wanted to put it on here now so at least this one can also stay on here in front of us for probably a decent length of time. But as noted in the item, we have not looked at our development fees since 2009.

[06:23:37] So at some point in the near future, we do need to take a look at that and determine if we need to raise rates, if we need to add rates for new projects, if we need to take anything off for things that we are no longer doing. Since we included that as Appendix B of the Zoning Ordinance, that does require a formal ZOAM in order to do it.

[06:23:56] So those are all of the additions, proposed additions at least, to the zoning amendment work plan. One other thing highlighted in the work plan as well, and it was just highlighted last time too, is that the Virginia Property Maintenance Code work that we are undertaking and that the board approved some positions for, we are anticipating bringing that to hearing at the July hearing for the board so that you can consider whether you want to adopt the remaining chapters of the Virginia Property Maintenance Code.

[06:24:31] Under community planning initiatives, the one thing I would highlight, and it's the third paragraph under the Electrical Infrastructure CPAM, that obviously Surpriser Briskman's BMI that was passed by the board at the last business meeting. A lot of the requests in there are really in a zoning analysis. The only thing that really overlaps with the phase two CPAM for electrical infrastructure are the requests for the simple overview and map of possible power line routes. So we still have not worked out with our consultant if there be any additional cost or if we are just kind of moving things around under the existing scope. But I anticipate that we should

[06:25:11] be able to report back to the board likely with a zoning analysis to answer most of the questions and at that time probably ask the board if necessary for any additional money we would need in order to do that part of the analysis. If we can do it under the existing scope just by moving things around then we will pursue that even quicker.

[06:25:30] But we did not normally add BMIs to the work plan unless they are BMI to do a zoning amendment or a comprehensive plan amendment. outcome of this could feed in the phase two so whenever we come back if the board wants to take action at that time and we'll explain it in the future item uh those ideas can be can be inserted into the eventual work product coming out of the phase two cpam as well uh so for staffing capacity

[06:26:06] so the department currently is at 98 positions uh before the next budget comes into effect 10 of those positions right now are vacant uh we have a couple of outs a couple of offers out i thought they said we had 98 positions they like they needed more okay i'm sorry 98 in total yes okay not 98 vacant thankfully so we have 10 that are vacant um we have uh one actually position i think was accepted today and then a couple offers that are that are out right now but we are making progress on it um i think we have some good candidates coming in and we've generally minimized the churn of people leaving for the past few years luckily so y'all just keep giving us position so

[06:26:44] we keep having openings. So I appreciate it, but also that's why there's continue to be openings. That said, I do want to take a couple of minutes since I am your last item and you can editorialize slightly. I do want the board to understand, especially from the zoning standpoint, and not that I would put our zoning administrator here on the spot, but I do know that one of the things that senior staff and the zoning administration team is struggling with is the amount of work that we having to put into grandfathered applications and whether the vested rights of any given application or potential application coming through. While I agreed with grandfathering

[06:27:23] under phase one of the data center ZOAM and under the zoning ordinance rewrite, and those were, I think, good things to do and they make sense from a business standpoint and being a good government working towards that, what we're finding is that a number of the Applicant reps that we deal with are really poking and prodding and trying to figure out how much leeway they have to make changes, big and small, on what they already had submitted.

[06:27:48] And having us go through and having to do those analyses over and over is taking up a lot of time. And that's trickling down to the zoning staff as well and moving on to the department from there. So there's no easy fix for that. Sometimes myself or Judy Burkett as deputy directorate have stepped in and kind of put an end to some of those discussions if they keep going on and on.

[06:28:12] But I just want you all to be aware, and to some degree you probably are, whether you realize the effect on us or not, that a lot of those discussions about what can I change, what can I not change,

what's a tweak, what is a substantial change, are constantly ongoing. So that's the first thing.

[06:28:29] The other thing that I would actually echo your comments earlier, Chair Randall, is that the time that staff spends on preparing items for things that are either deferred, requested by the applicant, or that we then push to future meeting is a lot of hours for the land use review team that is essentially being wasted.

[06:28:45] In some cases, not many, what goes from one meeting to another is static. And so it's really just making a few small changes in the item and updating it. But in others, when they are updating things like you heard with Cochran Tech and Allison listed off earlier, that's a substantial amount of review that has to go back in and see what has changed, what are the exact changes between the two so that we can highlight them for you.

[06:29:08] Do those changes better comply with policy or the regs or are they actually worse in some cases? and essentially do a whole analysis usually in a pretty quick turnaround a month or so to try to get that information back to you. Given our workload overall the more that we do that the more we face it the more time that staff is functionally wasting on some of these things to try to get you the answers you need but then you don't need them at that meeting you need them in a future meeting because of however the conversation plays out. So those are two things that we are we are definitely facing right now that are taking time away from other things that

[06:29:42] we could be doing for you for these projects that I wanted to highlight so that I will gladly step off of my small soapbox and happy to answer any questions. That was really very helpful although it was done in a you statement and we'll have that discussion later that was really that was good editorializing so thank you.

[06:30:02] All right questions for the Dan, Ms. Bricksman. Thank you Madam Chair. Did you go back to slide six real quick, please? I don't have any major issues with the order of things right now.

[06:30:21] I was just a little bit concerned when you were talking about the BMI that I brought forth at the last business meeting. Are you saying that's going to be rolled into number three, the phase two of the electrical infrastructure? Or you're not sure yet? Because I think spring 27 might be a little late to be getting the BMI.

[06:30:39] So I'm saying no, it's not. It's not automatically. If some of the mapping that we produce for the BMI response is something that the board wants us to ensure we include in what comes out of phase two, then we will have a motion for you right at that time. You can make that guidance.

[06:30:55] Right now, I'm viewing them completely separately. There's just a little bit of overlap. Oh, okay, great. All right. I think those are all my questions. Thank you so much. Thank you. Mr. Kirshner. Thank you, Madam Chair. Just a couple of follow-up questions. You did not talk about it, but I know it's still TBD. That's the village small area plans.

[06:31:12] Do we, and the reason I bring this up is obviously we've got a couple big projects going around two of the villages, obviously Payonian Springs with the water and septic. We're looking for solutions and working through some of those solutions there as well as the bypass going around Lockett's. Do you have any order of which villages you will take first?

[06:31:29] Have you even got to that point yet? Or are we still just basically sitting on a TBD until we have open space? Any thoughts on that? So the three that are listed, which are Lockett's, Payonian Springs, and Willisville, I believe, are still the three that we would propose moving forward with and that was the board's most recent direction. We are, I think, partly before we started realizing how much work might be coming out of the General Assembly's latest session, we have been gearing up to do some initial outreach in those three communities, not to kick off the village plan exactly, but to talk to them about the concept of the village plan, see what they're interested in, try just to have a conversation

[06:32:06] about the scope of what could be and what they kind of would want to be included in some sort document we're hoping to do that still early May we have this year yes and we've worked with our consultants WSP to work towards that okay but my biggest concern is I really do not want to kick that off especially if we do identify a number of additional zoning amendments that we'll need to do in response to the general assembly so I don't want to kick it off wholesale just yet but it's still our hope to do that very soon and I understand so to repeat what I understood you just said is We've got a lot of stuff coming down from the legislature.

[06:32:42] We don't want to jump into this too fast in case we have to address this first. But there is a thought or we're moving in the direction of having some early preliminary discussions with a couple of these villages. Is that a concept? Yes. And to Ms. Skinner's earlier comment during public comment, we have talked to her about speaking more broadly to the Historic Village Alliance.

[06:33:04] Just again in concept to explain what we're thinking and those thoughts. So we do intend to do that, too, regardless of exactly when we formally kick off the village plans. In the near future, I don't have an exact date yet, but we've been trying to line up with our consultants that initial outreach to three communities and then be able to go to the Alliance and explain those things to them.

[06:33:22] And that's great. I mean, I did have a meeting with some of the members of the village of Panion Springs in the last week or so. obviously if we were to provide them with um septic and water they have a lot of buildable lots there and they did not want to see the character of the village change they were open and accepting for some small development here and there but obviously they don't want to see the character change so they're how we were going to address that and i told them in all likelihood that would be something we would address to the small area plan and i'm assuming i'm correct in that statement you are and i i think it's fair to say that that's um in our internal discussions the the number one issue that we've identified as well, the potential issues that are going to go along with that.

[06:34:02] And I'll just leave it at that. I mean, there's something we're going to have to work through to determine how we best give guidance and if we need to make any regulatory changes to try to address that. But there are a lot of lots, many of them too small to really comply with the ordinance in general, but people can go in, buy up things, they can boundary line adjust.

[06:34:23] So it's definitely something that we'll work through with the village plan. Fair enough. Thank you. Mr. Kirsten, since you missed the conversation, did you really quickly, very, very quickly, since your time is up, want to ask about the cannabis legislation? I know you were late because your plane was late. You couldn't help that. Yes. So I don't have any specific questions.

[06:34:41] I had had a friendly that maybe I would have offered, and that is basically whether or not we have really looked at the impacts of these sort of cannabis stores throughout the country, And will that be a part of what zoning and planning looks at when they're reviewing how we should or should not

implement our zoning ordinance based upon the requirements that we've received from Richmond in terms of what have they done in other states?

[06:35:10] How effective have they been and what have the impacts been? It definitely would be, I think, the one thing that we're still trying to wrap our head around because I admittedly have not read the hundred and whatever page bill covered. Why not? I've tried, and just the number of dates of when different parts are effective just blew my mind to start with.

[06:35:27] But that is what we generally do when it comes to developing zoning regulations. We would do the same thing here, but it's going to have to be within the confines of what the bill allows, and that's what we're still trying to fully determine. And I get that. If you could let me know if there's something we need to bring forward later for you guys to authorize to look more closely, because I think that could be really instructive to you and maybe even to us in terms of how we go forward on this zoning ordinance amendment in terms of what to allow and what not to allow and how that's impacted other communities.

[06:35:57] That's my thought process. Thank you. Thank you. Mr. Crony. Thank you, Chair Randall. So I'm glad you added the kennel use specific standards. You know, I've had two in my district. I know Supervisor Kirshner's had a few. Is there anything the board has to do regarding that since it came from the Planning Commission to to add that as a so it did not formally come from the planning commission they've we've talked to leadership and some individual commission members and brian wegner who's the liaison to them has talked with them in general so it was not like a motion that was made per se but we agree with them that it's something that's worth looking into obviously it's prioritized well down the list

[06:36:37] given the other items we have so for the board's action would just be one to accept it when you make the motion tonight that it should be added to the work plan and then two if you disagree with the prioritization to add that to the motion to move it around. Yeah, and it's TBD, it's TBD, right? It's not, it doesn't have a date. Okay. I got, I think the whole board got a letter from the Heritage Commission just asking if there could be a priority on the Heritage Preservation Plan, which hasn't been updated since 2009. And I saw that you were contemplating hiring a consultant.

[06:37:10] Is that still your plan, and could it be more of a priority if a consultant is hired? So it is, and we have had some very preliminary conversations when we first brought on our two consultants on the new contracts earlier this year with them about that potential.

[06:37:27] We have not pursued it further just because we've been overcome by events of dealing with other ongoing projects, but that would be how we would have to tackle it. The biggest problem is even with bringing in that additional support, there still has to be someone available to manage that contract and any other contracts that we have ongoing.

[06:37:43] I mean, even just for the data center standards project, the electroinfrastructure project between Kimley-Horn and WSP, we have them working on 10 to 12 various products at various stages right now just for those two projects. So adding anything else on, especially as big as rewriting that whole document, I have concerns with, but it is something that we're looking into.

[06:38:08] - Okay, thank you. - Thank you, Mr. Turner. - Thank you, Madam Chair, really quickly. So I know you guys are swamped and I know this is a really complex project, but it bothers me we're all the way a year from now before we see the data center standards and locations phase two.

[06:38:29] Once we do pass that, that'll affect new data centers, but all data centers are now specs, so we can hold them to the new performance standards under the new zoning ordinance. What are our options with existing data centers? When we pass phase two of data center standards and locations, does that automatically make all existing data centers nonconforming?

[06:38:54] It could. It's going to depend on the nature of the regulations because they have their existing affirmative approval from the board or from administrative staff and development for their site plans, depending on the specific case. I mean, it's going to be on a case-by-case basis unless we make any wholesale changes to some standards that wouldn't otherwise be on one of those documents.

[06:39:17] But, I mean, it's definitely part of what we're trying to consider about how we want to word these things, how we want to build in the ability for change over time so that they can try to come further into compliance and that having new regulations and new policies out there is not a hindrance to them where they lock themselves into where they are now, even if they could do something better.

[06:39:40] And I don't know how we thread that needle, but that is our intention of what we're trying to do. And I kind of kicked around the idea of incentives. I mean, financial incentives mean nothing to the data centers. It's -- they have so much money, it's whatever's convenient, frankly.

[06:39:56] And I thought about, what about making them -- I'm just doing this on the fly, but making them apply to non-high consumer, high-energy consumers, so called 20 megawatts, 25 megawatts, what it is, or lower, and they apply immediately.

[06:40:14] But if you are a high-energy consumer, we give them two years or three years probationary time to step up to the new standards, and after that they become non-conforming or create some other disincentive for them to ignore that.

[06:40:31] For example, tier four generators. Tier four generators ought to be in the new standards for backup generators. So we make it tier four standards, so there's no incentive or mechanism by which we can force the 200 data centers we have now to shift over to tier four generators.

[06:40:46] We're very expensive generators, so I don't know whether we could come up with that kind of financial incentive. Any thought to that at all, how we're going to do that other than, I mean, what you just said, it sounds like we're all just kind of scratching our head. I mean, a lot of thought, no answers yet.

[06:41:03] We have, we've had Kimberly Horne working on a couple of different components of that. WSP has just given us some very rough white paper drafts for three different topics right now. It's the first product we've had with them on this project. We actually asked them to give us something, you know, a little bit more on the back of a napkin instead of, like, fully polished so we could work with them to get where we want to be.

[06:41:25] So we are working on a lot of these different ideas and concepts. Fully agree with you and do not have an answer for you just yet. Okay, thank you. So I want to go back to slide, I guess this is slide four, for the new things on the new work plan because I'm really very, very worried.

[06:41:44] I mean, the Affordable Housing Religious Nonprofit Organization is well worse than I thought it was going to be, and I thought it was going to be bad. I am really, really, really worried about what that's going to do to Evergreen Mills Road, because Evergreen Mills Road actually has, can be hooked up to water and sewer.

[06:42:05] They have quite a few religious establishments down there, including schools. And if we start adding thousands of homes an acre with no proffers at all, then, I mean, it's going to, one, ruin that corridor completely, and it's going to get real dangerous real fast.

[06:42:23] Every fear I had plus happened in the General Assembly on this one. You know, I guess I thought, and maybe Governor Spanberger changed it, I thought it was actually a delayed, not a reenactment, but a delayed enactment until January of next year.

[06:42:51] But what I'm seeing here is that it is not a delayed enactment at all. This happens, this is basically right now. If it's a delayed enactment, it can help some because I feel like I can maybe grab some General Assembly members, drive them down every Green Mills Road. But if it's not a delayed enactment, then it really is fall of 26.

[06:43:10] I mean, we are in such big trouble. And one of my concerns is what do we do if someone decides that their house is now a nonprofit headquarters or their house is now a religious headquarters?

[06:43:26] Because that's nothing but some tax paperwork. So what do we do with that? I mean, if I'm reading that bill right, the moment homes go down, it changes our comp plan. It just changes it automatically. We don't have to do anything to change our comp plan.

[06:43:44] I actually don't know if Save Rural Loudoun can hear me right now, but you all have been screaming at us for years and years and years, and we haven't put any new homes in Western Loudoun County. If you're going to activate yourselves, Save Rural Loudoun, activate yourselves right now, because we're about to get inundated, inundated, in ways that you – and we have – we do not have the structures, neither the roads or anything else, to take care of that.

[06:44:12] And so I do want to find out, like, what I want to really understand that legislation and what Ms. Van Berger has put forward. Number nine, on page five, the land in lieu.

[06:44:29] I see it's TBD, but as soon as I'd like to get, I think that's something I'd like to get to as soon as possible. And I will associate myself with Mr. Turner's comments as well. so let me go find back to the motion and make the motion just a second here we go all right let's see where's the motion motion motion motion hold on one second must have gone past it no I didn't go past it should be at the very very end there's no attachments with this

[06:45:08] one okay I'm with the voice of advisors approve the current list of projected the current list to projects listed in Table 1, 2, and 3 on the Department of Planning and Zoning Work Plan that's identified in the April 21st, 2026 Board of Advisors Business Meeting Action Item.

[06:45:28] Motion is made and seconded by Mr. Crony. First of all, thank you all. I actually -- I'm glad you said what you said tonight, Dan, because there are times that I, with respect, say often to the wonderful people sitting next to me that planning and zoning can't do anymore. Please stop adding stuff to their work plan.

[06:45:44] Please stop bringing BMIs. stop, please stop, especially this late in our term. And also I do think that hopefully the message goes out to applicants that, you know, when you are basically trying to delay because you're trying to get the vote that you want, you're delaying it, you're delaying for everything else too. And so that's really helpful. I also just want to say to you, Dan, This department is -- you're doing well.

[06:46:17] You're doing well. I know this is a challenging department, and it's a lot of interfacing with us, sometimes not on our best days, and interfacing out there, and then you guys -- there's a lot going on in your department right now, and it is not lost on, I don't think, any of us how heavy your lift is and how much you're doing.

[06:46:36] We keep giving you positions because we keep realizing how tough this department is. When you have a county that's still changing this much and it's still growing this fast, department takes a lot of that, a lot of that brunt. So you're doing a great job and I just want to say that as well. Thank you. All right. Anybody else on this item? All right. Seeing none.

[06:46:57] I made the motion. Six-five seconds. Seconds the motion. All in favor say aye. Aye. Any opposed? That motion will pass. Um, 8-0-1. All right. We have one more closed session, um, to go to.

[06:47:14] yeah we do we do we do um do we need a break before the closed session wow does in but besides mr kirchner who just arrived 15 minutes ago does anyone have to break before the closed session no okay mr tournament you mean it's in the closed session please i move the board of supervisors resets this public meeting and enter into closed session pursuant to section 2.2 3711a3 of the code of virginia to consider the acquisition of parcels of property for public use in ashburn broad run leesburg and sterling election districts Does anybody in Ashburn, Broadrun, Leesburg, or Sterling want to second that?

[06:47:50] Oh, God, Lord. And then Little River says second. I will give that to Mr. Sains. Ms. Bixman will be leaving, so she will not be voting us into closed session. Any discussion on this motion? All people say aye. Aye. Any opposed? That motion will pass 7-0-2, and we are back in closed session.

[06:48:08] You go home. Thank you for everything.

[07:05:27] Thank you.

[07:31:24] Okay, we are back, and Mr. Turner is going to read it. I know, but is that a closed session? Mr. Turner? I move the closed session be adjourned, that the Board of Supervisors reconvene in its public meeting, that the minutes of the public meeting should reflect that no formal action was taken in the closed session, and further move that the resolution certifying in the closed session be adopted to reflect in the minutes of the public meeting.

[07:31:44] I will second that. Discussion on that motion? All in field do say aye. Aye. Any opposed? That motion will pass 7-0-2. Affirm. I'm with everyone for you to affirm. Affirm. - Affirm.

[07:31:59] - And I affirm as well. We are adjourned.

